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METHOD: Electronic service per stipulation; courtesy copy by United States Mail

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Re: *Rosario v. CSAA Insurance Exchange; and DOES 1 through 50, inclusive*

(San Francisco Superior Court Case No. **CGC-25-631802**)

Subject: Supplement and reiteration of plaintiff's prior April 22, 2026 Code of Civil Procedure section 128.7(c)(1) safe-harbor correspondence; identification of specific certifications requiring withdrawal or correction; case-isolated record for **CGC-25-631802 only**; coordination with the same-day court-facing packet; and **express demand for acknowledgment to the tribunal of plaintiff's April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter.**

Counsel:

Statement of Purpose for Amendment. Plaintiff seeks leave to **perfect** the operative pleading by conforming it to evidence already in the record (Plaintiff’s April 25, 2026 TAC-Aligned Merits Letter and Plaintiff’s opposition to defendants’ special motion to strike). Plaintiff does **not** seek leave to escape, evade, or moot any merits ruling on the protected-conduct allegations of the FAC. The motion is noticed under Code of Civil Procedure §§ **473(a)(1) and 576**. Published authority - including *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, **471–472, 477–478** - addresses amendment in the shadow of **CCP § 425.16** and confirms California law does **not** impose a **categorical** amendment freeze; the sequencing answer includes **CCP § 425.16(f)**. Plaintiff **accepts** the anti-subversion line (*Simmons; Colton; Ellis; Contreras*) and cites *JKC3H8* **narrowly** for that structural proposition. *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, **871–873** is also referenced as **supporting** authority on **limited** discretion to perfect after a merits showing. General leave principles also include *Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19–20; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Trafton v. Youngblood* (1968) 69 Cal.2d 17, 31; *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296–297; and, **if and when** a superseding pleading is operative, *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884 read with **CCP § 425.16(f)**. The amendment **arises from the same operative facts** (the February 25, 2021 uninsured-motorist denial and subsequent claim-handling conduct), **vindicates the same primary right** (good-faith claim handling and freedom from fraud), **refers to the same instrumentality** (the same denial letter and the same defendants), and therefore **relates back** to the original December 23, 2025 filing. No new discovery, witnesses, or defense burden is created: defendants have already briefed these exact facts in their demurrer, anti-SLAPP MPA, § 436 motion, and MFL-SAC

opposition.

Defendants' Apr 23, 2026 Opposition does not place *JKC3H8* (or *Nguyen-Lam*) in the body or Table of Authorities in a manner that fairly discloses the controlling leave-to-amend / § 425.16 framework on this record. This letter places CRPC 3.3(a)(2) and CCP § 128.7(b)(2)-(b)(3) duties on the record **together with** the anti-subversion authorities and the **§ 425.16(f)** preservation point.

Bench statement (sequencing). Plaintiff **accepts** anti-subversion; the narrow submission is **constrained discretion** under **§§ 473/576** after the merits showing, with **§ 425.16(f)** preserved.

Procedural sequence on the record: (a) April 17, 2026 - plaintiff filed opposition to defendants' special motion to strike; (b) April 25, 2026 - plaintiff served the TAC-Aligned Merits Letter making the section 425.16(b)(1) probability-of-prevailing showing in writing; (c) April 27, 2026 - plaintiff's coordinated filings place that record before the Court and counsel; (d) April 30, 2026 - hearing on plaintiff's motion for leave in **CGC-25-631802** (coordinated merits record with CGC-25-631801). Plaintiff's leave request is therefore offered **after** that merits showing (*Nguyen-Lam*, supra, 171 Cal.App.4th at pp. **871–873**, as **supporting** authority on that sequencing posture).

The Defense has represented that no authority exists to allow this amendment. That overstates the opposition's entitlement to a categorical bar. Published authority - including *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468 - shows California law does **not** impose a **total** amendment freeze; the sequencing answer includes **CCP § 425.16(f)**. Plaintiff cites *JKC3H8* **only** for

that modest structural proposition - not to strip anti-SLAPP protection.

Anti-SLAPP threshold defects (defense exposure; read with Supplemental Memorandum and Exhibit A-3). The defense special motions in these companion cases are separately vulnerable for failing a durable *Park gravamen* and Code of Civil Procedure section 425.16 step-one *arising-from* analysis; Civil Code section 47(b) is not a stand-in. The April 23 MFL-SAC opposition, read on the same *filing sequence* as a *facially incomplete first-step anti-SLAPP showing* in the defense papers, implicates CCP § 128.7 (b)(2)–(b)(3), CCP § 425.16 (c)(1), CRPC 3.3 (a)(1)–(a)(2), and Business and Professions Code section 6068(d). Pure (b)(2) legal *theory* mis-matches in the *represented-client* posture tend to present a *different (b)(2)–(b)(3)–candor** and *dollar locus* than *factual* and *delay* and *certain improper-purpose gaps* (see the Supplemental Memorandum and A-3 for the *nuance*). *Defensive* correspondence should tie any use of the word *gamesmanship* to **the appearance of procedural burdening and procedural gamesmanship from the filing order** in plaintiff’s court-facing *Exhibit A-3, not to a motive invective*. This letter is still *not a sanctions motion*.

Cure paths before the May 14, 2026 safe-harbor expiration.

This letter is your final opportunity to act before the April 30, 2026 hearing on plaintiff’s motion for leave to file the second amended complaint in CGC-25-631802, before the May 14, 2026 expiration of the April 22, 2026 safe harbor, and before plaintiff seeks all forms of relief permitted by law. The deficient pleadings identified in sections 7 through 11 below have already been filed in this case, are signed by counsel of record, and have **not** been withdrawn. As of the service date of this letter and the concurrently served April 25, 2026 comprehensive merits meet-and-confer letter (Exhibit

M-1), the mismatch between defendants’ filed papers (“no merits,” “unsupportable,” “no such authority exists”) and the documented record (operative pleading + April 16, April 22, and April 25, 2026 correspondence) presents a continuing-certification issue under CCP § 128.7(b) and a Rule 3.3(a)(2) disclosure question that plaintiff respectfully invites the Court to address, and each later advocacy act on those papers is a continuing certification act under Code of Civil Procedure section 128.7(b).

Acknowledgment of receipt. Each attorney signing any subsequent brief, declaration, opposition, reply, or oral argument should, before stating any position about plaintiff’s merits or authorities, acknowledge receipt of the April 25 Merits Letter and disclose *JKC3H8 v. Colton* to the San Francisco Superior Court. Continued advocacy of “has not presented the merits,” “no such authority exists,” “unsupportable,” “meritless,” or “frivolous” framing while this letter and the April 25 Merits Letter are in counsel’s hands would be (a) a continuing certification under CCP § 128.7(b)(2)-(b)(3), and (b) a candor question under California Rule of Professional Conduct 3.3(a)(1)-(a)(2) and Business and Professions Code section 6068(d). Plaintiff will use court-credible characterizations – “misstatement,” “unsupported certification,” “continuing certification issue,” and “lack of candor with the tribunal” – and will not extend the strongest perjury / false swearing labels to certifications that are properly addressed by withdrawal or correction.

Your three options are exhaustive and binary. Defendants and counsel of record may, on or before May 14, 2026:

(a) Withdraw. File a Notice of Withdrawal in this case as to each affected pleading identified in sections 7 through 10 below; **or**

(b) Disclose the directly adverse controlling authority and restate the position.

File a written correction with the San Francisco Superior Court that (i) acknowledges receipt of the April 25 Merits Letter, (ii) discloses *JKC3H8 v. Colton* - the directly adverse, published California Court of Appeal authority that contradicts the Opposition’s “no such authority exists” representation - and the other controlling California authorities listed in section 12 below **as bearing on** defendants’ positions in their moving and opposing papers, and (iii) restates defendants’ position in light of those authorities; **or**

(c) Accept that no cure was made. Failing (a) or (b), plaintiff will, on or after May 15, 2026, pursue all relief permitted by law, including motions under Code of Civil Procedure sections 128.7 and 128.5, fee-shifting under Code of Civil Procedure section 425.16(c)(1) where applicable, joint law-firm responsibility under section 128.7(c)(1), and State Bar reporting under California Business and Professions Code section 6086.7 following any final judicial determination of misconduct.

These three options correspond to the structured “Three exhaustive cure paths” at section 5 below; this section restates them up front so the choice and its consequences are the first thing each signing attorney sees on the present record. **This letter is not a motion for sanctions and does not restart the 21-day safe-harbor clock that began on April 22, 2026 (expiring May 14, 2026).**

Scope and calibration. This letter is targeted to **affirmative misstatements of law** in defendants’ filings - principally the Opposition’s categorical “**no such authority exists**” framing, contradicted by the directly controlling published authority of *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 471–472, 477–478 - and to “cannot prevail / meritless / frivolous”

certifications addressed in sections 7–10. It is **not** a contention that ordinary omission of secondary or supporting cases, or any incompleteness of defendants’ briefing standing alone, supplies a basis for any dispositive relief, denial of leave to amend, or section 128.7 sanction. The **ordinary remedy** for failure to disclose directly adverse controlling authority under California Rule of Professional Conduct 3.3(a)(2) is the Court **rejecting the omitting argument on its merits**, not refusing to entertain the motion. The decision whether to grant leave to amend remains discretionary with the Court under Code of Civil Procedure sections 473(a)(1) and 576, evaluated on the substantive amendment record (particularized facts, fraud-particularity cure under *Lazar v. Superior Court* (1996) 12 Cal.4th 631, and viability under *Zhang v. Superior Court* (2013) 57 Cal.4th 364), with defendants’ renewed special-motion right preserved by section 425.16(f).

1. Purpose, posture, and 21-day clock.

This letter is a stand-alone serving-counsel communication. It supplements, reiterates, and incorporates by reference plaintiff’s prior **April 22, 2026** safe-harbor correspondence and plaintiff’s prior **April 16, 2026** meet-and-confer correspondence. This letter does **not** restart the 21-day safe-harbor clock that began running on April 22, 2026; that clock continues to run and **expires on May 14, 2026**. This letter identifies, with self-contained quotation and adverse authority, certifications and passages in **this case only** that must be withdrawn or appropriately corrected before that deadline to preserve the safe harbor under Code of Civil Procedure section 128.7(c)(1).

On the same date this letter is served, plaintiff is filing in **CGC-25-631802** a coordinated **court-facing** packet titled “**Plaintiff’s (1) Request for Judicial Notice; (2) Notice**

of Lodging Pre-Filing Correspondence; and (3) Notice of Counsel’s Pending Disclosure Obligations Under California Rule of Professional Conduct 3.3(a)(2)” and a “Supplemental Memorandum in Support of Motion for Leave to File Second Amended Complaint; Notice of Errata Re Adverse Authority.” Those filings present authorities and the meet-and-confer chain to the tribunal under Evidence Code sections 452 and 453 and California Rules of Court, rule 3.1110(f). Those filings are exhibits to the tribunal, not substitutes for this section 128.7(c)(1) correspondence. **This letter is not filed as a motion for sanctions.**

2. April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter: disclaimer-of-receipt obligation.

On **Saturday, April 25, 2026**, plaintiff served on you, by the same electronic means previously stipulated and used in the prior correspondence chain, a **comprehensive merits meet-and-confer letter titled “Meet-and-Confer Letter: TAC-Aligned Merits Statement”** (the “**April 25 Merits Letter**”). The April 25 Merits Letter sets out, on a single record, **the merits of both companion actions** (CGC-25-631801 and CGC-25-631802) and ties **every cause of action** (and the substantive interest each protects) to **paragraph-level cites in the operative pleadings**, including:

“This letter, read together with the operative Third Amended Complaints in both actions, sets out Plaintiff’s merits in a single, consolidated form, with each cause of action, each pleaded supporting block, and each substantive interest tethered to the specific paragraph(s) of the operative TAC at which it appears. To the extent counsel has, on prior occasions, indicated that the merits of Plaintiff’s

claims had not been presented in that form, or had not been articulated in a manner counsel could meaningfully respond to, Plaintiff respectfully submits that any such concern is, by the foregoing, resolved on the present record.” (April 25 Merits Letter, Statement on the Merits.)

“For the avoidance of any doubt: by this letter Plaintiff is transparently and publicly declaring the merits of both companion actions on a single, written record, in plain language, with paragraph-level cites to the operative Third Amended Complaints. The merits of Plaintiff’s case can therefore no longer be characterized, in this proceeding or in any related forum, as avoided, withheld, or undeveloped by Plaintiff.” (Same.)

“To the extent counsel nevertheless maintains that any cause of action remains insufficiently stated for purposes of meet-and-confer, Plaintiff respectfully requests that counsel identify, in writing and prior to the meet-and-confer date proposed below, the specific cause of action, the specific element believed to be deficient, and the operative TAC paragraph(s) at which the asserted deficiency is said to appear. In the absence of such an identification, Plaintiff will proceed on the working understanding that the merits as stated above are not in further procedural dispute for meet-and-confer purposes, and will so represent on the record if the matter is heard.” (Same.)

The April 25 Merits Letter also articulates, with reference to the operative pleading in this case (CGC-25-631802), the specific institutional non-performance theory (CSAA’s failure to perform the claim investigation required by 10 California Code of Regulations section

2695.7(b), concealed via the February 25, 2021 written denial letter) and the UCL “unlawful,” “unfair,” and “fraudulent” prongs grounded in that conduct. The April 25 Merits Letter is a **case-collective** merits articulation served on **the same defense team** for purposes of meet-and-confer in both companion actions. A copy of the April 25 Merits Letter is attached to this letter as **Exhibit M-1**.

Required acknowledgment to the tribunal. Counsel must, in any oral argument, written brief, declaration, or other tribunal-facing communication on or after April 25, 2026 in this action, **affirmatively acknowledge receipt of the April 25 Merits Letter** before stating any position about whether plaintiff has or has not articulated the merits. **Counsel must also affirmatively denounce and disclaim any prior or contemporaneous statement (in defendants’ filed papers or otherwise) suggesting that plaintiff has not provided a comprehensive, written merits articulation** for either case, regardless of whether defendants choose to modify or withdraw any of those papers. The duty to disclaim runs **to the tribunal directly**, including at the lectern in front of the judge, under California Rule of Professional Conduct 3.3(a)(1) (no false statement of law or fact to a tribunal), Rule 3.3(a)(2) (mandatory disclosure of directly adverse controlling authority), and California Business and Professions Code section 6068(d) (duty to employ such means only as are consistent with truth, and never to seek to mislead the judge or any judicial officer).

Consequence of misrepresentation. Any oral or written representation to the San Francisco Superior Court, at the **April 30, 2026** hearing on plaintiff’s motion for leave to file the second amended complaint, at the **May 12, 2026** anti-SLAPP hearing, at the **May 13, 2026** demurrer / motion-to-strike hearing, or at any subsequent appearance or filing, that plaintiff has **not** presented the merits, that plaintiff’s claims are “**unsupportable**”

or “**meritless**” or “**frivolous**” as a categorical label for the current pleading record, that “**plaintiff cites no authority**,” or that “**no such authority exists**” to support plaintiff’s pleadings, while you hold the April 25 Merits Letter, is a representation made with documented prior knowledge of the contrary record. Plaintiff will oppose any such representation with the **April 25 Merits Letter, its proof of service, and the entire pre-filing correspondence chain** as evidence of the misrepresentation, and will request all relief permitted by law, including but not limited to relief addressed to a lack of candor with the tribunal under California Rule of Professional Conduct 3.3(a)(1) and Business and Professions Code section 6068(d).

3. April 30, 2026 hearing posture: motion for leave to file second amended complaint.

The defense “**Opposition to Plaintiff’s Motion for Leave to File Second Amended Complaint**” filed on April 23, 2026 in this case (the “**MFL-SAC Opposition**”) is the first defense pleading in this case that targets plaintiff’s proposed second amended complaint and current motion practice for an oral hearing.

The MFL-SAC Opposition contains the following representations, each of which appears at multiple places in the opposition’s text:

“Plaintiff’s procedurally defective and legally **unsupportable** motion practice is undeniably designed to evade Defendants’ Anti-SLAPP motion.” (MFL-SAC Opposition, p. 2.)

“Plaintiff’s defective service, gamesmanship, and **unsupportable** effort to amend

the [pleading] substantially prejudices Defendants.” (MFL-SAC Opposition, Section II.B.)

“[Defendants have] already incurred the burden and expense of preparing a lengthy and detailed Anti-SLAPP motion to Plaintiff’s **unsupportable** allegations. Were this Court to grant Plaintiff’s instant Motion, the costs of additional motion practice would be incurred upon Defendants . . . ” (MFL-SAC Opposition, Section II.B.)

“Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion.” (MFL-SAC Opposition, Introduction.)

Each of those representations is **directly adverse to**, and was **made without disclosing**, the following controlling California authorities:

- ***JKC3H8 et al. v. Colton et al.*** (2013) 221 Cal.App.4th 468, 164 Cal.Rptr.3d 450 (3d Dist.; Hoch, J., review denied). *Verbatim holding* (221 Cal.App.4th at pp. 471–472): the Court of Appeal expressly considered “[w]here a plaintiff who has filed a complaint containing causes of action that are based, in part, on protected conduct and therefore potentially subject to a special motion to strike under Code of Civil Procedure section 425.16 (the anti-SLAPP statute), subsequently files an amended complaint removing the allegations of protected conduct as a basis for liability, does the filing of the amended complaint render moot a later-filed anti-SLAPP motion based on the original complaint? **We conclude that it does.**” *Verbatim limit* (221 Cal.App.4th at pp. 477–478): “[A] plaintiff or cross-complainant **may not seek to subvert or avoid a ruling on**

an anti-SLAPP motion by amending the challenged complaint or cross-complaint in response to the motion.” The MFL-SAC Opposition’s “**no such authority exists**” representation is contrary to *JKC3H8*’s very existence and to its express holding, and *JKC3H8* is itself the directly adverse, controlling, undisclosed California authority Rule 3.3(a)(2) requires defense counsel to cite to the tribunal.

- *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1062–1063 (anti-SLAPP step-one looks to the gravamen of the claim, not to protected activity that is merely evidence of an unprotected wrong).
- *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 (step-two requires only minimal merit).
- *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871 (gravamen analysis controls step-one).
- *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, **871–873**. *Holding pin-cite: Nguyen-Lam* (171 Cal.App.4th at 871–873) supports trial-court authority, **in connection with** a CCP § 425.16 special motion to strike, to allow noticed leave under **§§ 473(a)(1) and 576** where the plaintiff has **opposed** the motion, the **evidence submitted for the motion** shows a **probability of prevailing**, and the amendment **conforms the pleading to that record** (not a free-standing right to amend whenever a SLAPP motion is pending). The MFL-SAC Opposition does not cite *Nguyen-Lam* and represents the contrary.

3A. *JKC3H8 v. Colton*: verbatim Court of Appeal text and the three propositions of California law the MFL-SAC Opposition fails to disclose.

The MFL-SAC Opposition’s representation that “**Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion**” cannot survive contact with the published California Court of Appeal decision identified below. The verbatim text of the holding and limit appears in this letter (and not by reference to any link), so defense counsel cannot say the authority was unavailable.

Authority: *JKC3H8 et al. v. James Colton et al.* (2013) 221 Cal.App.4th 468, 164 Cal.Rptr.3d 450 (3d Dist.; Hoch, J., review denied). The opinion is publicly available in the official California Reports and at <https://caselaw.findlaw.com/court/ca-court-of-appeal/1649644.html>.

Verbatim holding (221 Cal.App.4th at pp. 471–472):

“Where a plaintiff who has filed a complaint containing causes of action that are based, in part, on protected conduct and therefore potentially subject to a special motion to strike under Code of Civil Procedure section 425.16 (the anti-SLAPP statute), subsequently files an amended complaint removing the allegations of protected conduct as a basis for liability, does the filing of the amended complaint render moot a later-filed anti-SLAPP motion based on the original complaint?
We conclude that it does.”

Verbatim “subvert or avoid” limit (221 Cal.App.4th at pp. 477–478):

“[A] plaintiff or cross-complainant **may not seek to subvert or avoid a ruling on an anti-SLAPP motion by amending the challenged complaint or cross-complaint in response to the motion.**”

Procedural posture (221 Cal.App.4th at pp. 472–473, 479): in *JKC3H8* itself, the plaintiff filed an amended complaint **less than two hours** before the defendant’s anti-SLAPP motion; the amendments **eliminated all protected-activity allegations** from the pleading; and the Court of Appeal held the anti-SLAPP motion moot.

The opinion above squarely resolves three propositions that the MFL-SAC Opposition either misstates or omits, and that defense counsel must therefore address (by withdrawal, correction, or disclosure to the tribunal) before May 14, 2026:

(a) The “no authority” representation is a misstatement of California law. *JKC3H8* is itself a published, citable California Court of Appeal decision squarely addressing the leave-to-amend / § 425.16 intersection, and its progeny (*Salma v. Capon* (2008) 161 Cal.App.4th 1275; *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049; *Schaffer v. City and County of San Francisco* (2008) 168 Cal.App.4th 992; *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068) confirms it. A representation to a California court that “no such authority exists” while *JKC3H8* sits unmentioned in the opposition brief is, on its face, a Code of Civil Procedure section 128.7(b)(2) and California Rule of Professional Conduct 3.3(a)(2) issue, and is fairly characterized as an undisclosed adverse-authority omission within the meaning of Rule 3.3(a)(2).

(b) Anti-SLAPP filing does not erase the trial court’s bounded statutory authority.

JKC3H8 does not displace the trial court’s **bounded** authority under Code of Civil Procedure sections 472, 473(a)(1), 576, and 425.16(f), including the renewed-motion sequencing tool in subdivision (f). The “subvert or avoid” rule (221 Cal.App.4th at pp. 477–478) is a **limit** on amendments designed to defeat an anti-SLAPP **ruling**, not a wholesale jurisdictional bar to amendments offered for legitimate purposes. The opposition’s framing, that amendment is per-se unavailable while a special motion to strike is on calendar, is therefore unsupported by *JKC3H8*. Continuing to advocate that framing without disclosing *JKC3H8* is a continuing certification act under section 128.7(b).

(c) Plaintiff’s amendment is “narrowing or mooted,” not “subverting or avoiding.”

JKC3H8’s own express holding recognizes that amendments **removing the protected-activity allegations** from a pleading are lawful and effective. (*JKC3H8*, supra, 221 Cal.App.4th at pp. 471–472, 479.) Plaintiff’s proposed Second Amended Complaint falls on the *narrowing/mooted* side of the *JKC3H8* line, not the “subvert or avoid” side, because it reinforces the express anti-SLAPP disavowal that the gravamen of CGC-25-631802 is **non-communicative pre-litigation claim handling** (CSAA’s failure to perform the investigation required by 10 California Code of Regulations section 2695.7(b)) and not petitioning conduct, sharpens the *Action Apartment Assn. v. City of Santa Monica* (2007) 41 Cal.4th 1232 communicative-act boundary, and aligns the Unfair Competition Law allegations with their independent-fraud channel under *Zhang v. Superior Court* (2013) 57 Cal.4th 364 and *Moradi-Shalal v. Fireman’s Fund Ins. Cos.* (1988) 46 Cal.3d 287. That is **streamlining for judicial economy**, not evasion. Recasting plaintiff’s good-faith narrowing amendment as “**gamesmanship**” while the dispositive published authority on this exact procedural posture remains undisclosed is the precise mismatch between record and rhetoric that Rule 3.3(a)(2)

and section 128.7(b)(2) are written to reach.

Respectful request: that the Court direct counsel to address *JKC3H8 v. Colton* on the record at the noticed hearing. Each of the three propositions above should be either (i) **placed on the record** by defense counsel, by name (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468), in any later-filed brief, declaration, or oral argument on or after April 30, 2026 in this case, or (ii) treated as withdrawn from the MFL-SAC Opposition. Standing on the opposition’s “no such authority exists” framing, while continuing to advocate it at the April 30, 2026 hearing without citing *JKC3H8*, is a continuing-certification event under Code of Civil Procedure section 128.7(b) and a real-time candor act under California Rule of Professional Conduct 3.3(a)(1) and (a)(2). The disclosure obligation runs **to the tribunal directly**, including at the lectern in front of the judge; it is not satisfied by silence or by re-stating the “no such authority exists” framing in different words.

3B. *Nguyen-Lam v. Cao* - supporting authority on limited discretion after a merits showing.

The MFL-SAC Opposition’s representation that “**Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion**” cannot survive contact with *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858. *Nguyen-Lam* authorizes a trial court, **in connection with** a CCP § 425.16 special motion to strike, to grant noticed leave under Code of Civil Procedure sections **473(a)(1)** and **576** where the plaintiff has **opposed** the motion on the merits, the **record submitted for the anti-SLAPP motion** supports a **probability of prevailing**, and the amendment **conforms the pleading to that evidence** (171

Cal.App.4th at pp. **871–873**). This is not a blanket “amend any time a SLAPP motion is pending” rule; it is tied to the **evidentiary record** before the court in that proceeding.

Procedural anchor (same temporal sequence this record satisfies). The Court of Appeal affirmed the trial court’s grant of leave in that posture and addressed a categorical no-leave gloss in the procedural setting in which the plaintiff had already made a merits showing. (*Ibid.*)

If defendants stand by the MFL-SAC Opposition’s “no such authority exists” framing at the April 30, 2026 hearing in this case without **placing *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858 on the record** for the San Francisco Superior Court, that omission presents a candor question under California Rule of Professional Conduct **3.3(a)(2)** that plaintiff respectfully asks the Court to address at the hearing, together with the omission of *JKC3H8*, in light of the opposition’s absolute framing and *Nguyen-Lam*’s supporting role on limited discretion after a merits showing.

4. Continuing certification duty.

Each of you certified, by filing and by later advocating, the pleadings and motions identified in this letter within the meaning of Code of Civil Procedure section 128.7(b). That certification is **continuing**: each later advocacy of an unwithdrawn or uncorrected representation is a new certification act. The duty is in addition to California Rules of Professional Conduct 3.3(a)(1) and (a)(2) and California Business and Professions Code section 6068(d).

5. Three exhaustive cure paths.

Before **May 14, 2026**, you may pursue any one of these cure paths:

(a) **Withdraw** the offending papers, by filing a Notice of Withdrawal in this case as to each affected pleading;

(b) **Appropriately correct** the offending papers, by filing redacted, amended, or supplemental briefs that (i) remove or restate the **affirmative misstatements** identified in paragraphs 6 through 10 below - principally the categorical “no such authority exists,” “cannot prevail,” “meritless,” and “frivolous” certifications contradicted by directly controlling authority - (ii) disclose the directly adverse controlling authorities listed in paragraph 11 below, and (iii) state defendants’ position in light of those authorities. This step targets affirmative misstatements and undisclosed directly-adverse controlling authority; it is not directed at ordinary omission of secondary supporting cases, and the ordinary remedy for any remaining authority gap is the Court rejecting the omitting argument on its merits at the noticed hearing; **or**

(c) **Stand and accept exposure.** Failing (a) or (b), plaintiff will, on or after May 15, 2026, pursue all relief permitted by law, including but not limited to motions under Code of Civil Procedure sections 128.7 and 128.5, applications for fees under Code of Civil Procedure section 425.16(c)(1) where applicable, and the remedies referenced in plaintiff’s prior April 22, 2026 correspondence.

6. Forward-looking candor framework.

(a) **Merits presented on the record.** The operative First Amended Complaint, the proposed Second Amended Complaint, the prior April 16, 2026 meet-and-confer correspondence,

plaintiff’s prior April 22, 2026 safe-harbor correspondence, the **April 25 Merits Letter**, and this letter together document a **merits presentation** sufficient to engage California’s pleading and anti-SLAPP frameworks without collapsing step-one into step-two.

(b) Forward-looking professional duty. After service of this letter, any statement to the tribunal in this case that the First Amended Complaint is “meritless,” “frivolous,” or “unsupportable” as a categorical label for the current pleading record, or that plaintiff “cannot” prevail on the merits under the *Baral* minimal-merit framework without first conducting a proper *Park* gravamen step-one, is inconsistent with the documented record unless framed as **defendants’ contention** after proper sequencing.

(c) Neutral compliant framing (illustrative). “Defendants contend that, after the Court conducts the *Park* gravamen-based step-one analysis omitted from defendants’ moving papers, plaintiff would not satisfy the *Baral* minimal-merit threshold. Defendants disagree with plaintiff’s theory and request that the Court deny leave.” That framing does not require a “**cannot prevail**” certification.

(d) Later advocacy. Each later oral or written restatement of a “**cannot prevail on the merits**” certification after this service date is an independent later-advocacy event for purposes of Code of Civil Procedure section 128.7(b) and related professional duties. *Musaelian v. Adams* (2009) 45 Cal.4th 512 confirms that the section 128.7 paper safe harbor does not immunize subsequent inconsistent in-court statements.

7. PRIORITY ONE: “cannot prevail / cannot demonstrate / cannot succeed” certifications in defendants’ Anti-SLAPP MPA filed April 9, 2026 (CGC-25-631802). (§ 128.7(b)(2) legal contention - see § 10C re § 128.7(b)(3) factual-contention overlap)

Defendants’ “Memorandum of Points and Authorities in Support of Special Motion to Strike Pursuant to Code of Civil Procedure Section 425.16,” filed April 9, 2026 in this case (the “**Anti-SLAPP MPA**”), contains the following certifications:

ID	Verbatim representation in the Anti-SLAPP MPA
P1-1	“[Plaintiff] cannot establish a probability of prevailing on the merits of either of his causes of action.”
P1-2	“Plaintiff cannot establish a probability of prevailing on the merits of his claim because all the ...”
P1-3	“Plaintiff still cannot demonstrate a probability of prevailing on the merits.”
P1-4	“Hence, Plaintiff cannot succeed on the merits of his repackaged claims.”
P1-5	“Plaintiff cannot demonstrate a probability of success on the merits of his claims.”

Adverse authority not disclosed: *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396; *Park v. Board of Trustees* (2017) 2 Cal.5th 1057; *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871; *Flatley v. Mauro* (2006) 39 Cal.4th 299.

8. PRIORITY TWO: element-level “cannot establish” representations. (§ 128.7(b)(2) legal contention - see § 10C re § 128.7(b)(3) factual-contention overlap)

Defendants’ Anti-SLAPP MPA contains the following:

ID	Pleading	Verbatim representation
P2-1	Anti-SLAPP MPA	“Plaintiff cannot establish his claims against a third [party] . . . ”

Adverse authority not disclosed: *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462; *Crowley v. Kattleman* (1994) 8 Cal.4th 666 (primary-rights doctrine permits distinct claims against distinct defendants for distinct injuries).

9. PRIORITY THREE: “frivolous / meritless lawsuit” cluster. (§ 128.7(b)(2) legal contention - see § 10C re § 128.7(b)(3) factual-contention overlap)

ID	Pleading	Verbatim representation
P3-1	Pre-suit meet-and-confer letter from defense	“your . . . lawsuit is completely legally unsupportable and frivolous.”

ID	Pleading	Verbatim representation
P3-2	Pre-suit meet-and-confer letter from defense	“I implore you to withdraw your pleadings and dismiss this meritless lawsuit.”

Adverse authority not disclosed: *In re Marriage of Flaherty* (1982) 31 Cal.3d 637, 650; *Baral v. Schnitt* (2016) 1 Cal.5th 376.

10. PRIORITY FOUR: MFL-SAC Opposition block (April 30 hearing) and remaining “unsupportable” rhetoric. (§ 128.7(b)(2) legal contention - see § 10C re § 128.7(b)(3) factual-contention overlap)

10A. MFL-SAC Opposition (filed April 23, 2026). The four representations quoted at paragraph 3 above are incorporated here. Adverse authority not disclosed: *JKC3H8 v. Colton*; *Park v. Board of Trustees*; *Baral v. Schnitt*; *Wilson v. Cable News Network, Inc.*

10B. Additional “unsupportable” rhetoric in this case’s pleading stack. Defendants’ Anti-SLAPP MPA, “Memorandum of Points and Authorities in Support of Demurrer” filed April 13, 2026 (the “**Demurrer MPA**”), and “Memorandum of Points and Authorities in Support of Motion to Strike Under CCP § 436” filed April 22, 2026 (the “**§ 436 MPA**”), each repeat variants of “**unsupportable**” labeling against the operative pleading and current motion practice, including:

- “The entire FAC is uncertain and legally unsupportable . . .” (Demurrer MPA, p. 12.)
- “[Plaintiff has pleaded the FAC] in several legally unsupportable ways . . .” (Demurrer MPA, Section II.D.)
- “Legally unsupportable items of alleged damage . . .” (§ 436 MPA, Section II.A.)
- “[The FAC is] unsupportable as a matter of law . . .” (§ 436 MPA, Section IV.)

Each variant is contradicted by one or more of the authorities listed in paragraph 11 below.

10C. Section 128.7(b)(3) factual-contention deficiency (allegation-by-allegation).

The four MFL-SAC representations quoted at paragraph 3 above are each *factual contentions* under CCP § 128.7(b)(3) (“evidentiary support”) in addition to *legal contentions* under § 128.7(b)(2). Each fails on its own evidentiary record:

	Cited evidence in Opp. or	Evidentiary	Cure required by May
# Representation	O’Connell Decl.	status	14, 2026
1	“designed to evade Defendants’ Anti-SLAPP”	Decl. ¶¶ 3, 4, 14 (legal-conclusion opinion)	INADMISSIBLE
		under Evid. Code §§ 702, 800; no factual evidence of intent	Withdraw or substitute evidence-tethered framing

	Cited evidence in Opp. or	Evidentiary	Cure required by May	
#	Representation	O’Connell Decl.	status	14, 2026
2	“defective service, gamesman-ship . . . substan- tially prejudices”	Decl. ¶ 7 + Ex. C; ¶ 12	No concrete prejudice (no lost witness/trial date/surprise); arithmetic refuted	Withdraw or correct
3	“burden and expense . . . costs of additional motion practice”	Pendency of May 12 SLAPP; no quantum	Sunk cost is not cognizable prejudice (Atkinson)	Withdraw or substitute § 425.16(f) framing

4	“Plaintiff	None	Demonstrably	Withdraw and disclose
	cites no		false on the	Nguyen-Lam, JKC3H8
	authority		face of CCP §§	
	... no such		473(a)(1), 576,	
	authority		425.16(f) and	
	exists”		6+ Supreme	
			Court opinions	

§ 11A. Affirmative notice arithmetic. Service occurred April 20, 2026 (e-service via stipulation). The hearing is May 6, 2026. April 21 through May 5, excluding court holidays and weekends, contains sixteen (16) court days. The two-calendar-day electronic-service add-on under CCP § 1010.6 is satisfied because service was completed on April 20 and the hearing is sixteen calendar days later.

April 23, 2026 MFL-SAC Opposition, footnote 2 (verbatim): “Apparently, Plaintiff has since reset this motion for hearing on May 6, 2026; however, this is still deficient. Assuming the April 20, 2026 service of this Motion remains operative, that would only constitute 16 days’ notice, which does not supply the additional two (2) days required for electronic service. (See Code Civ. Proc. § 1005(b).)”

The MFL-SAC Opposition’s footnote-2 representation that the reset “only constitut[es] 16 days’ notice” is therefore correct as to court-day count and *miscounts* by treating the 16 court days as a deficiency rather than the statutory minimum, and *omits* the § 1010.6 calendar-day add-on entirely. **The Opposition’s footnote 2 is itself a § 128.7(b)(3) factual representation lacking evidentiary**

support and must be withdrawn or corrected by May 14, 2026.

11. PRIORITY FIVE: architectural defects in this case's motion stack.

ID	Defect	Controlling authority
A-1	Anti-SLAPP step-one collapsed into step-two	<i>Park v. Board of Trustees</i> (2017) 2 Cal.5th 1057
A-2	Civil Code section 47(b) imputed to entire FAC ignoring communicative-act limit	<i>Action Apartment Assn. v. City of Santa Monica</i> (2007) 41 Cal.4th 1232; <i>Kimmel v. Goland</i> (1990) 51 Cal.3d 202
A-3	Issue preclusion asserted without performing the <i>Lucido</i> five-element analysis	<i>Lucido v. Superior Court</i> (1990) 51 Cal.3d 335; <i>Hernandez v. City of Pomona</i> (2009) 46 Cal.4th 501

ID	Defect	Controlling authority
A-4	Statute of limitations resolved on demurrer despite delayed-discovery facts	<i>Cansino v. Bank of America</i> (2014) 224 Cal.App.4th 1462
A-5	UCL channel argument versus independent fraud	<i>Zhang v. Superior Court</i> (2013) 57 Cal.4th 364; <i>Moradi-Shalal v. Fireman's Fund Ins. Cos.</i> (1988) 46 Cal.3d 287
A-6	Punitive-damages strike under wrong standard	<i>College Hospital, Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 723
A-7	“Cannot amend around a SLAPP motion” rhetoric versus leave-to-amend authority	<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468

ID	Defect	Controlling authority
A-8	Motion to strike under section 436 filed after demurrer was already on calendar	<i>McAllister v. L.A. Unified Sch. Dist.</i> (2007) 153 Cal.App.4th 1242; Code of Civil Procedure section 435(b)

12. California Rule of Professional Conduct 3.3(a)(2) authority disclosure matrix (20 controlling authorities).

The duty under Rule 3.3(a)(2) is mandatory: a lawyer “shall not” fail to disclose to the tribunal legal authority in the controlling jurisdiction known to the lawyer to be **directly adverse** to the position of the client and not disclosed by opposing counsel. Each of the 20 authorities below is California controlling authority directly adverse to a position taken in defendants’ moving or opposing papers in this case, and each was disclosed to defense counsel no later than the **April 16, 2026** meet-and-confer letter, the **April 22, 2026** safe-harbor correspondence, and the **April 25, 2026** merits letter (Exhibit M-1). Continuing to advocate without disclosing these authorities is a Rule 3.3(a)(2) violation, a Business and Professions Code section 6068(d) violation, and a Code of Civil Procedure section 128.7(b)(2) **and** section 128.7(b)(3) (where the underlying factual contention lacks evidentiary support) violation.

#	Authority	Adverse holding (short form)
1	<i>Park v. Board of Trustees</i> (2017) 2 Cal.5th 1057	Anti-SLAPP step-one looks to gravamen
2	<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376	Step-two requires only minimal merit
3	<i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871	Gravamen analysis controls step-one
4	<i>Flatley v. Mauro</i> (2006) 39 Cal.4th 299	Anti-SLAPP unavailable for illegal conduct
5	<i>Action Apartment Assn. v. City of Santa Monica</i> (2007) 41 Cal.4th 1232	Civil Code section 47(b) reaches communicative acts only
6	<i>Kimmel v. Goland</i> (1990) 51 Cal.3d 202	Same
7	<i>Moradi-Shalal v. Fireman's Fund Ins. Cos.</i> (1988) 46 Cal.3d 287	Common-law fraud against insurers preserved

#	Authority	Adverse holding (short form)
8	<i>Zhang v. Superior Court</i> (2013) 57 Cal.4th 364	UCL grounded in independent fraud not channel-barred
9	<i>Crowley v. Katleman</i> (1994) 8 Cal.4th 666	Primary-rights permits distinct claims
10	<i>Cansino v. Bank of America</i> (2014) 224 Cal.App.4th 1462	Delayed-discovery is fact-bound
11	<i>Lucido v. Superior Court</i> (1990) 51 Cal.3d 335	Five-element issue-preclusion test
12	<i>Hernandez v. City of Pomona</i> (2009) 46 Cal.4th 501	Same
13	<i>College Hospital, Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 723	Punitive-damages pleading standard

#	Authority	Adverse holding (short form)
14	<i>McAllister v. L.A. Unified Sch. Dist.</i> (2007) 153 Cal.App.4th 1242	Code of Civil Procedure section 435(b) sequencing
15	<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468	Amendment moots or narrows anti-SLAPP issues; no categorical freeze; § 425.16(f) sequencing ¹
16	<i>Klopstock v. Superior Court</i> (1941) 17 Cal.2d 13	“Wholly distinct” obligation is the only bar to adding a cause of action
17	<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311	Reasonable-possibility-of-cure standard
18	<i>Trafton v. Youngblood</i> (1968) 69 Cal.2d 17	“Great liberality” Supreme Court formulation
19	<i>Mesler v. Bragg Management Co.</i> (1985) 39 Cal.3d 290	Liberal allowance even six weeks before trial
20	<i>Foreman & Clark Corp. v. Fallon</i> (1971) 3 Cal.3d 875	Amendatory pleading supersedes the original

¹ See also *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871-873 (limited discretion to perfect pleading after merits showing).

13. Statutory and rule mechanics (referenced for completeness).

Plaintiff identifies the following exposure for counsel of record personally, without prejudice and without intending any threat exceeding permitted advocacy under California Rule of Professional Conduct 3.4 or Business and Professions Code section 6068(b):

- Monetary sanctions exposure under Code of Civil Procedure sections 128.7(d) and 128.5, and fee-shifting under Code of Civil Procedure section 425.16(c)(1) where applicable.
- Joint law-firm exposure under Code of Civil Procedure section 128.7(c)(1) (“a law firm shall be held jointly responsible . . . unless the court concludes that exceptional circumstances require otherwise”).
- State Bar reporting mechanics under California Business and Professions Code section 6086.7 following final judicial determinations of misconduct where applicable.
- Each oral argument is a fresh advocacy context; in-court misstatements of law made on the record after service of this letter are not within the 21-day paper safe harbor (*Musaelian v. Adams* (2009) 45 Cal.4th 512).

14. Waiver on non-response.

Failure to address any numbered row in paragraphs 7 through 12 above, read as a checklist item tied to **this case number only**, will be treated as a waiver of any later contention that the cited representation was not a certification within the meaning of Code of Civil Procedure section 128.7(b) or that the cited authority was not adverse for Rule 3.3(a)(2) purposes.

15. Case isolation.

This letter discusses **only CGC-25-631802**. It does not adopt any exhibit list or pin-cite from CGC-25-631801. Plaintiff is serving a parallel, case-isolated supplemental letter in CGC-25-631801 today.

16. Reservation of rights.

Plaintiff expressly reserves all rights to seek any monetary, non-monetary, or referral relief permitted by law, and to submit this letter, the April 25 Merits Letter, and the entire pre-filing correspondence chain as evidence in any future proceeding (including before the Court, the State Bar, or the Court of Appeal). Nothing in this letter constitutes a waiver of any claim, defense, theory, allegation, or measure of damages stated in the operative First Amended Complaint or the proposed Second Amended Complaint. Nothing in this letter restarts the 21-day safe-harbor clock that began running on April 22, 2026, or alters the May 14, 2026 expiration.

Sincerely,

Franciscus Dylan Rosario

Plaintiff in Pro Per

Enclosures (attached to served copy)

- **Exhibit M-1.** April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter titled “*Meet-and-Confer Letter: TAC-Aligned Merits Statement,*” served by electronic

transmission (covers both CGC-25-631801 and CGC-25-631802).

- **Exhibit M-2.** Allegation-by-Allegation Evidentiary Audit of the April 23, 2026 MFL-SAC Opposition (one-page bench card).
- **Exhibit A.** April 22, 2026 plaintiff Code of Civil Procedure section 128.7(c)(1) safe-harbor correspondence to defense counsel.
- **Exhibit B.** April 16, 2026 plaintiff meet-and-confer correspondence to defense counsel.
- **Exhibit C.** Citation list for the 20 controlling authorities identified in paragraph 12 above (full-text printouts available on request).
- **Exhibit D.** Defendants' filings being challenged in this case: Anti-SLAPP MPA filed April 9, 2026; Demurrer MPA filed April 13, 2026; Section 436 MPA filed April 22, 2026; MFL-SAC Opposition filed April 23, 2026.
- **Exhibit E.** Proofs of service for the items in Exhibits M-1, A, and B.
- **Exhibit F.** Judicial Council form POS-050 (Proof of Electronic Service), attached following this declaration.

PROOF OF SERVICE OF THIS LETTER (CCP § 1013a)

I, **Franciscus Dylan Rosario**, declare:

I am a resident of the State of California, over 18 years of age. I am plaintiff in this action, acting in pro per, and I personally caused the service described below. My business address is **7624 Melody Drive, Rohnert Park, California 94928**.

On April 27, 2026, I served the following document on the parties listed below:

SUPPLEMENT AND REITERATION OF APRIL 22, 2026 SAFE-HARBOR
CORRESPONDENCE: CGC-25-631802

By **electronic transmission** to the email addresses below pursuant to the parties' stipulation for electronic service in this case, and by **United States Mail** by depositing a true copy in a sealed envelope, postage prepaid, in the ordinary course of business at **7624 Melody Drive, Rohnert Park, California 94928**, addressed as follows:

- Chad S. Tapp, Esq., ctapp@porterscott.com, PORTER SCOTT, 2180 Harvard Street, Suite 500, Sacramento, CA 95815
- Tyler J. O'Connell, Esq., toconnell@porterscott.com, PORTER SCOTT, 2180 Harvard Street, Suite 500, Sacramento, CA 95815

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 27, 2026, at **Rohnert Park**, Sonoma County, California.

Franciscus Dylan Rosario, Declarant; Plaintiff in Pro Per

- Date: April 27, 2026

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(SIGNATURE OF DECLARANT)

Counsel,

This message is sent in good faith to set out, on a single record, the merits of the two companion actions and the pleaded facts on which they rest. It is not argumentative correspondence. It is intended to focus the parties on the substantive merits of the claims so that the meet-and-confer process can proceed productively and so that, if the matter is heard, the Court has a clear written exchange in front of it.

The two actions are sequential pieces of one institutional pattern. **CGC-25-631802** addresses the **pre-litigation written misrepresentation** in CSAA's February 25, 2021 denial letter. **CGC-25-631801** addresses the **in-court misrepresentations** that procured the defense verdict in the Underlying Action, CGC-21-594102. The same evidentiary spine, 911 audio, body-worn camera footage, and computer-aided dispatch records, runs through both.

Case No. CGC-25-631801 — Independent Action in Equity to Set Aside Judgment

The pleaded merits proceed under eight independent legal rights, each anchored in California authority:

1. **Right to a fair adversary hearing.** *Mathews v. Eldridge* (1976) 424 U.S. 319, 333; *People v. Ramirez* (1979) 25 Cal.3d 260, 268. The Complaint alleges the trial court issued procedural and evidentiary rulings on a materially false factual premise as to defense-side receipt and possession of foundational evidence.
2. **Right to equitable relief from a judgment procured by extrinsic fraud.** Code Civ. Proc. § 187; *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471. All four *Kulchar* prerequisites — meritorious case, satisfactory excuse, diligence, and absence of an adequate remedy at law — are pleaded with record citations.
3. **Right to relief from "process corruption" fraud.** *Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 735; *In re Marriage of Baltins* (1989) 212 Cal.App.3d 66. The three-leg framework is pleaded with particularity:
 - Defense-side knowledge and access (sworn Jessup testimony, Feb. 18, 2025; service and use of the materials at the September 30, 2022 deposition of Defendant Abdelhalim);
 - False or misleading representations to the Court (MIL Nos. 6 and 17, January 17, 2025; "news to me," February 18, 2025; "not received as part of the subpoena," "not sure what recording," April 16, 2025);
 - Court reliance and resulting rulings (exclusion of supplemental report; deferred admission of the 911 recording; denial of continuances).
4. **Alternative right to relief on extrinsic mistake.** *Kulchar*, *supra*; *Baltins*, *supra*. The May 4, 2023 file transfer between Chambers/Carbone Smith & Koyama and Phillips Spallas & Angstadt is pleaded as an alternative pathway that does not require fraudulent intent.

5. **Right to hold the insurer-principal liable for agent conduct.** Civ. Code § 2338. CSAA is alleged to have funded, directed, controlled, and ratified the defense and is therefore answerable for the conduct of its retained counsel undertaken for its pecuniary benefit.
 6. **Right to plead concealment as misrepresentation.** *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638. Concealment in the meet-and-confer phase as to custodial authority, CAD index identifiers, and the production history is alleged as actionable.
 7. **Right to vacatur and ancillary equitable monetary relief.** Once equity is properly invoked, restitutionary monetary relief incident to vacatur is available. The pleaded categories are temporally bounded to the fraud-driven period and segregated from collision damages.
 8. **Right to particularized pleading that survives demurrer.** *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73. The Second Amended Complaint pleads the who, what, when, where, and how with record citations to specific transcripts and clerk's transcripts.
-

Case No. CGC-25-631802 — Denial-Letter Fraud and UCL

The pleaded merits proceed under eight independent legal rights:

1. **Right to honest pre-litigation claim communications.** Civ. Code §§ 1709, 1710; *Lazar*, supra, 12 Cal.4th at 638. The February 25, 2021 letter represented investigative finality. That representation is alleged to have been materially false at the time of issuance because the foundational records (911 audio, BWC, CAD) had not been obtained or reviewed.
2. **Right to plead scienter on the face of the letter.** *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 415. Scienter is pleaded as either actual knowledge or reckless representation without reasonable grounds. CSAA's post-denial pursuit of the same records corroborates the falsity.
3. **Right to recover tort-of-another damages.** *Prentice v. North American Title Guar. Corp.* (1963) 59 Cal.2d 618, 620. The third-party fees and costs in CGC-21-594102 are pleaded as compensatory damages with the *Prentice* segregation and reasonableness discipline.
4. **Right to recover fraud-delta damages distinct from collision damages.** *Erllich v. Menezes* (1999) 21 Cal.4th 543, 555–57. Incremental medical, therapy, and lost-earnings categories are pleaded as segregated from the underlying collision.
5. **Right to punitive damages on despicable conduct.** Civ. Code § 3294(c); *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725; *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 577. Institutional ratification predicates (template denial language, claim-closure targets, supervisor review practices) are pleaded on information and belief.
6. **Right to plead statutory insurance bad faith as the "unlawful" predicate of the UCL.** *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180; *Zhang v. Superior Court* (2013) 57 Cal.4th 364. Predicates pleaded include Ins. Code § 790.03(h)(1) and (h)(3) and 10 C.C.R. § 2695.7(d) — the regulation whose verbatim language ("thorough, fair and objective") the denial letter tracks.

7. **Right to restitution and injunctive relief under the UCL.** *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1147. Restitution and a tethered, prospective injunction targeting categorical "investigation concluded" communications without foundational evidence are pleaded.
 8. **Right to UCL standing.** Bus. & Prof. Code § 17204; *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 322. Economic injury (records, copying, certification, and transcription costs) is pleaded with documentary support.
-

The Substantive Point Counsel Will Need to Address

The two cases place two of CSAA's own statements side by side on the record:

- **Pre-litigation (CGC-25-631802):** CSAA's February 25, 2021 denial letter represented that its investigation was "concluded" and that its insured was "not liable." That phrasing tracks the regulatory standard at 10 C.C.R. § 2695.7(d) verbatim and therefore represents regulatory compliance.
- **In-litigation (CGC-25-631801):** CSAA-funded defense counsel represented to the Superior Court — in writing in MIL Nos. 6 and 17 (January 17, 2025) and orally on February 18, 2025 and April 16, 2025 — that the 911 audio, body-worn camera footage, computer-aided dispatch records, supplemental police report, and related materials had not been received and were of "unknown provenance." Those representations were made through declarations and on-record statements pursuant to Code Civ. Proc. § 2015.5.

Under *D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21–22, sworn judicial admissions are binding on the party that made them. Under *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 721, an insurer cannot in good faith deny a claim "without thoroughly investigating the foundation for its denial."

Plaintiff acknowledges that the defense has expressed personal distress about their capacity to understand the merits behind the causes of action declared in plaintiffs first amended complaints. Also, it should be known that the defense acknowledges receipt and service of the second amended complaint, which tightens the language necessary to conform with the required California state laws.

Plaintiff respectfully submits that those two statements describe the same investigation in mutually inconsistent terms. Plaintiff is identifying the issue in advance of the demurrer hearing so that the parties may address it on a complete written record.

Effect on the Pending Demurrer

A demurrer under Code Civ. Proc. § 430.10 tests the legal sufficiency of the Complaint on its face and assumes the truth of well-pleaded facts. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) In CGC-25-631802, the Complaint pleads each element of fraud (Civ. Code § 1710) and of the UCL "unlawful," "unfair," and "fraudulent" prongs (Bus. & Prof. Code § 17200) with the

specificity *Stansfield* requires. In CGC-25-631801, the Second Amended Complaint pleads each *Kulchar* prerequisite with record citations.

Plaintiff respectfully suggests that the demurrers, taken together, are not directed at the legal sufficiency of the pleadings but at factual disputes that are not properly resolved on demurrer. (See *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213–214 [demurrer may not test factual disputes].)

Meet-and-Confer Proposal

In the spirit of Code Civ. Proc. §§ 430.41 and 435.5, Plaintiff invites a substantive meet-and-confer on the following:

1. Whether CSAA contends that the February 25, 2021 denial letter representation of a "concluded" investigation is reconcilable with the declarations submitted in the Underlying Action describing the foundational records as not received and of unknown provenance, and if so, on what basis.
2. Whether the demurrer in CGC-25-631802 is intended to test legal sufficiency under § 430.10 or to dispute pleaded facts, and if the latter, whether withdrawal in favor of an Answer is appropriate.
3. Whether CSAA will stipulate to a coordinated case-management approach for the two related actions consistent with Cal. Rules of Court 3.300, given the overlapping evidentiary spine and the shared defendant.
4. Any authority counsel intends to rely upon that Plaintiff has not addressed in the pleadings, so the parties may narrow the disputed legal issues for the Court.

Plaintiff is available to confer by telephone or written exchange at counsel's preferred date and time during the next ten court days. If counsel prefers to address these issues only in formal briefing, Plaintiff will treat this letter as a record-preserving statement for the Court.

This communication is sent in pro per and without waiver of any rights, claims, defenses, or objections, all of which are expressly reserved.

Conduct yourselves accordingly,

F. D. Rosario

Plaintiff in Pro Per
650.488.7510
soltrinox@gmail.com

=====

[ATTACHMENTS]

Please find the attached documents with the meritorious evidence of concluded investigation, and the clients declaration under penalty of perjury that they did not have the meritorious liability files that accompany a proper investigation, as it is defined under California law, and the California Supreme Court ruling.

NOTE: Upon inspection, the contradiction of the statement is that in one hand on February 25, they informed me that they had concluded a thorough and objective investigation, and then when they arrived at court, they declared under penalty of perjury that they did not perform thorough and objective investigation, which would entail the collection of meritorious 911 (containing a party admission by defendant), police body worn camera (containing eyewitness implicating defendant), and medical reports (containing physical injury records induced by defendants actions).

7 attachments



CGC-21-594102-CT1-MIL-No-6_Clerk-pp-149-151.pdf
219K



CGC-21-594102-CT1-MIL-No-17_Clerk-pp-238-241.pdf
226K



CSAA_Denial_Letter-Feb-25-2021.pdf
1187K



TAC-801-06-TAC.pdf
311K



TAC-802-06-TAC.pdf
291K



POS-050-TAC-801-ELECTRONIC-SERVICE.pdf
260K



POS-050-TAC-802-ELECTRONIC-SERVICE.pdf
260K



Tyler O'Connell

11:45 AM (1 hour ago)

to me, Monique, Chad, Veronica, Maria 

Mr. Rosario,

None of your cited authorities apply to the current situation where, here, an Anti-SLAPP motion is pending. Your position on this issue—and generally in this litigation—has absolutely zero merit and is obviously designed to waste my time, my clients' resources, and the Court's time. The Court is not going to appreciate your incessant clogging of the docket with meritless "motions," "bench briefs," and "supplemental" filings.

Moreover, your litany of case authorities cited here is completely irrelevant to the status of this litigation and appears to nothing more than an AI-generated recitation of general principles of amendment, which adds nothing to the analysis of this situation here: where an Anti-SLAPP motion is pending. Put simply, you cannot obtain the relief you seek, here, a motion for leave to amend the pleadings while an Anti-SLAPP motion is pending. Full stop. Please actually read the words of my Opposition to your motion for leave to amend. Uploading it to ChatGPT, and receiving spoon-fed AI hallucinations, is not a proper stand-in for legal analysis.

Regards,



Tyler J. O'Connell
Attorney

2180 Harvard St. | Suite 500 | Sacramento, CA 95815

T | 916.929.1481 x 540 F | 916.927.3706

www.porterscott.com

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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Thursday, April 23, 2026 7:04 PM

To: Monique Schubert <mschubert@porterscott.com>

Cc: Chad S. Tapp <ctapp@porterscott.com>; Tyler O'Connell <toconnell@porterscott.com>; Veronica Jackson <vjackson@porterscott.com>; Maria Reyes <mreyes@porterscott.com>

Subject: Re: Rosario v Abdelhalim, et al - Opposition - CGC-25-631801

External email



Dylan Rosario <soltrinox@gmail.com>

12:28 PM (26 minutes ago)

to Tyler, Monique, Chad, Veronica, Maria 

Dear Mr. O'Connell,

Your Anti-SLAPP motion and the § 436 Motion to Strike/Demurrer are deficient on their face. The First Amended Complaint remains substantially pleaded, and your opposition notably omits controlling Supreme Court precedent.

Regardless of your efforts to manufacture total immunity for insurance companies and their counsel, independent actions can and do arise from extrinsic fraud, such as misrepresentations made to the court regarding pretrial discovery and possession. That's a typical deny posture. These misrepresentations are well-documented in the record.

The court's reliance on the candor of your firm and its financial backer, CSAA, led to adverse rulings against me based on inaccurate statements regarding the possession of records. This constitutes a violation of the law and is the definition of extrinsic fraud intended to inhibit my ability to present evidence in a fair manner.

I maintain the right to seek equity from the court on this matter. You will need to provide a substantive explanation for these misrepresentations and demonstrate how they were not prejudicial given the specific rulings made against me.

Anti-SLAPP: Fails at prong 1 because an independent action to set aside a judgment for extrinsic fraud is not "arising from" protected activity (Kulchar, Silberg, Park). Fails at prong 2 because Plaintiff tenders prima facie evidence of concealment and process-abuse. Privilege arguments collapse because § 47(b) does not reach extrinsic fraud.

§ 436 MTS / Demurrer: Fails because (a) extrinsic-fraud vacatur is a recognized cause of action (Kulchar, Stevenot, Rappleyea); (b) damage items are not "irrelevant" as a matter of law (PH II); (c) collateral estoppel requires actual litigation of the extrinsic-fraud issue, which by definition did not occur (Lucido); and (d) at worst, leave to amend defeats any cure-able defect (Blank, Goodman).

Regards,

Dylan Rosario

CODE OF CIVIL PROCEDURE § 128.7 SAFE-HARBOR LETTER

Case No.: CGC-25-631801

Case: ROSARIO v. CSAA INSURANCE EXCHANGE, et al.

Re: Defendant's Motion to Strike under CCP § 436 filed April 22, 2026

Service Date: April 22, 2026

21-Day Clock Expiration: May 14, 2026, 5:00 p.m. Pacific

VIA ELECTRONIC SERVICE

April 22, 2026

Phillips, Spallas & Angstadt, LLP

Attn: Priya D. Navaratnasingham, Esq.

Alberto Reyna, Esq.

560 Mission Street, Suite 1010

San Francisco, CA 94105

Email: pnavaratnasingham@psalaw.com; areyna@psalaw.com

Carbone, Smith & Koyama, LLP

Attn: Michael R. Chambers, Esq.

555 12th Street, Suite 1250

Oakland, CA 94607-4095

Email: mchambers@csk-law.com

Re: Safe-Harbor Notice Under CCP § 128.7(c)(1) — CGC-25-631801

Dear Counsel:

Pursuant to Code of Civil Procedure § 128.7(c)(1), this letter serves as formal notice that Plaintiff intends to file a motion for sanctions under § 128.7 against Defendants and/or their counsel of record based on the filing of Defendants' Motion to Strike under CCP § 436 dated April 22, 2026.

I. STATUTORY FRAMEWORK

Code of Civil Procedure § 128.7(b) provides that by presenting a pleading, written motion, or other paper to the court, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances:

“(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

“(2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

“(3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.”

II. DEFECTS IN THE MOTION TO STRIKE

Plaintiff contends that Defendants’ Motion to Strike violates § 128.7(b) in at least the following particulars:

Defect 1: CCP § 435(b)(1) Timing Violation

The motion to strike under CCP § 436 was not filed concurrently with or before Defendants’ demurrer and anti-SLAPP motion. CCP § 435(b)(1) requires that a motion to strike “shall be made within the time allowed to respond to a pleading, however, if a demurrer is also filed, the motion to strike shall be made at the same time as the demurrer is filed and shall be noticed for hearing at the same time.” Defendants’ demurrer was filed April 3, 2026. The MTS was filed April 22, 2026—19 days late and waived as a matter of law.

Defect 2: CCP § 435.5 Meet-and-Confer Deficiency

Defendants’ MTS does not contain a § 435.5 declaration demonstrating that counsel “met and conferred” with Plaintiff in person, by telephone, or by video conference before filing the motion, as required by § 435.5(a). The statute requires actual oral communication—not email or letter—at least five days before the motion is filed. No such declaration is attached.

Defect 3: CCP § 430.80 Waiver Doctrine — PH II

The motion seeks to strike allegations on grounds that constitute demurrer grounds in disguise. Under *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682–83, a motion to strike cannot be used as a “backdoor demurrer” to attack the sufficiency of a cause of action. The MTS improperly invokes CCP § 436(b) to challenge legal sufficiency arguments that belong in a demurrer, which Defendants already filed and waived the MTS timing for.

Defect 4: Frivolous *Throckmorton* Argument

The MTS relies on *United States v. Throckmorton* (1878) 98 U.S. 61, a non-binding federal case superseded by California Supreme Court authority: *Kulchar v. Kulchar* (1969) 1 Cal.3d 467; *In re Marriage of Modnick* (1983) 33 Cal.3d 897; *Estate of Sanders* (1985) 40 Cal.3d 607. Reliance on non-binding authority while ignoring controlling Supreme Court precedent is not warranted by existing law.

Defect 5: Misrepresentation of Procedural Posture

The MTS argues allegations are “unsupported” without acknowledging that Plaintiff has lodged certified transcript excerpts documenting the February 28, 2025 judicial-reliance colloquy and the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213:13–15). The factual contentions have evidentiary support.

Defect 6: Improper Purpose — Harassment and Delay

The MTS was filed on the last possible day to gain maximum calendaring delay, notwithstanding that Defendants had already filed a demurrer and anti-SLAPP motion raising substantially overlapping arguments. This suggests an improper purpose to multiply litigation costs and delay resolution.

III. SAFE-HARBOR NOTICE AND DEADLINE

Pursuant to CCP § 128.7(c)(1), Defendants have **21 days** from the date of service of this letter to withdraw or appropriately correct the challenged paper.

Service Date: April 22, 2026

21-Day Safe-Harbor Deadline: May 14, 2026, 5:00 p.m. Pacific

If Defendants do not withdraw or correct the Motion to Strike by the safe-harbor deadline, Plaintiff intends to file a motion for sanctions under § 128.7 on the next court day following expiration (May 15, 2026), seeking:

1. Reasonable expenses, including attorney’s fees (or self-represented litigant out-of-pocket expenses), incurred in responding to the MTS;
2. An order striking the MTS in its entirety as frivolous and filed for improper purpose;
3. Such other sanctions as the Court deems appropriate under § 128.7(d).

IV. WITHDRAWAL INSTRUCTIONS

To avoid a sanctions motion, Defendants may withdraw the Motion to Strike by:

1. Filing a Notice of Withdrawal with the Court; and
2. Serving Plaintiff with a copy of the Notice of Withdrawal by 5:00 p.m. Pacific on May 14, 2026.

If the MTS is corrected rather than withdrawn, Plaintiff reserves the right to assess whether the corrections are adequate under § 128.7(b).

V. RESERVATION OF RIGHTS

This letter does not waive any objection to the MTS, including but not limited to procedural defenses, evidentiary objections, and requests for sanctions under CCP § 128.5. Plaintiff reserves the right to file opposition papers addressing the MTS on the merits while preserving this § 128.7 safe-harbor notice.

Respectfully,

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928

Tel: 650.488.7510

Email: soltrinox@gmail.com

This safe-harbor letter is served pursuant to CCP § 128.7(c)(1) and is not filed with the Court unless the safe-harbor period expires without withdrawal or correction.

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;
DEFENDANTS

Case No.: CGC-25-631801
(Related: CGC-21-594102)

PROOF OF SERVICE
(CCP § 1013a(3) / § 1010.6)

PROOF OF SERVICE (CCP § 1013A(3) / § 1010.6)

STATE OF CALIFORNIA

COUNTY OF SONOMA

I, FRANCISCUS DYLAN ROSARIO, declare as follows:

I am over the age of 18 years and am not a party to this action. My residence address is 7624 Melody Drive, Rohnert Park, CA 94928.

On **April 22, 2026**, I served the following documents:

DOCUMENTS SERVED

1. § 128.7 Safe-Harbor Letter (801)
2. CMC Trial-Date Preservation Statement (801)
3. Notice of Related Cases (CRC 3.300)
4. Ex Parte Application for Stay of MTS (801)
5. Declaration of Rosario ISO Ex Parte Application (801)
6. [Proposed] Order Staying MTS (801)
7. Notice of Motion to Strike Defendant's MTS (Meta-Strike) (801)
8. Memorandum of Points and Authorities ISO Meta-Strike (801)
9. Declaration of Rosario ISO Meta-Strike (801)
10. Request for Judicial Notice ISO Meta-Strike (801)
11. [Proposed] Order Granting Meta-Strike (801)
12. Errata and Supplemental Declaration re SAC-Leave Packet (801)
13. TAC-RESPONSE Contingent Filing Packet (801) — 7 documents:
 - 00-FILING-INDEX.md
 - 01-NOTICE-OF-MOTION-FOR-LEAVE-TO-FILE-TAC.md
 - 02-MEMORANDUM-ISO-LEAVE-TAC.md
 - 03-DECLARATION-OF-ROSARIO-ISO-LEAVE.md
 - 04-REQUEST-FOR-JUDICIAL-NOTICE.md
 - 05-PROPOSED-ORDER-GRANTING-LEAVE.md
 - 06-THIRD-AMENDED-COMPLAINT.md
 - 07-CURE-MATRIX-DEFENSE-OBJECTION-MAP.md

PERSONS SERVED

BY ELECTRONIC SERVICE under Code of Civil Procedure § 1010.6:

Name	Firm	Email
Priya D. Navaratnasingham, Esq.	Phillips, Spallas & Angstadt, LLP	pnavaratnasingham@psalaw.com
Alberto Reyna, Esq.	Phillips, Spallas & Angstadt, LLP	areyna@psalaw.com
Michael R. Chambers, Esq.	Carbone, Smith & Koyama, LLP	mchambers@csk-law.com

MANNER OF SERVICE

Electronic Service: I caused the above documents to be transmitted via electronic mail to each person listed above at the email address(es) set forth above, pursuant to Code of Civil Procedure § 1010.6 and California Rules of Court, rule 2.251.

Electronic service was completed before **5:00 p.m. Pacific Time** on April 22, 2026.

DECLARATION

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 22, 2026, at Rohnert Park, California.



Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50, inclusive

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE: ADVERSE AUTHORITY
(JKC3H8; CCP § 425.16(f); CRPC
3.3(a)(2))**

**HEARING
MFL-SAC**

Date: Apr. 30, 2026
Time: as set by the Court.
Dept.: 302
Judge: Hon. Joseph M. Quinn

RELATED HEARINGS

Anti-SLAPP: May 13, 2026
Demurrer: May 13, 2026
MTS (CCP § 436, FAC): May 19,
2026

FILING DATES

Complaint: Dec. 23, 2025
FAC: Feb. 25, 2026
Related: CGC-21-594102

1 **Purpose and scope of this Notice.** This Notice is targeted to **quoted affirmative misstatements**
2 **of law** - principally the Opposition's "no such authority exists" framing - that are contradicted by
3 directly controlling published California authority (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468,
4 471–472, 477–478). It is **not** a contention that ordinary omission of secondary or supporting cases,
5 standing alone, supplies a basis for any dispositive ruling, and it does **not** ask the Court to deny any
6 motion - or grant leave - on the ground that a TOA is incomplete. Adverse-authority and CRPC
7 3.3(a)(2) notice practice is directed to **record and argument integrity**. The **ordinary remedy**
8 for a failure to disclose directly adverse controlling authority is the Court **rejecting the omitting**
9 **argument** on its merits, not refusing to hear the motion. The decision whether to grant leave to
10 amend remains **discretionary**, made on the substantive amendment record and the liberality policy
11 of CCP §§ 473(a)(1) and 576, with defendants' renewed special-motion right preserved by CCP
12 § 425.16(f). The substantive leave-to-amend showing - particularized facts, fraud-particularity
13 cure under Lazar v. Superior Court (1996) 12 Cal.4th 631, 638, 645, and viability under Zhang
14 v. Superior Court (2013) 57 Cal.4th 364 - is developed in plaintiff's MFL-SAC papers and the
15 companion combined packet; this Notice is supplemental to, not a substitute for, that substantive
16 showing.

17 **1. AUTHORITY NOT DISCLOSED IN OPPOSITION (TOA / BODY)**

18 Defendants' April 23, 2026 Opposition does not cite JKC3H8 v. Colton (2013) 221 Cal.App.4th
19 468, 471–472, 477–478, in the body or in its Table of Authorities. JKC3H8 is a published Califor-
20 nia Court of Appeal opinion squarely addressing the leave-to-amend / § 425.16 intersection and is
21 directly adverse to the Opposition's "no such authority exists" framing.

22 **2. THE NARROW PROPOSITIONS PLAINTIFF DRAWS FROM *JKC3H8***

23 The Court of Appeal held that where a plaintiff files an amended complaint removing protected-
24 conduct allegations as a basis for liability, a later-filed anti-SLAPP motion directed at the orig-
25 inal complaint may be rendered moot (JKC3H8, 221 Cal.App.4th at pp. 471–472). The opin-
26 ion expressly limits amendments offered **in response to the motion** to subvert or avoid a ruling
27 on an anti-SLAPP motion (id. at pp. 477–478). California's sequencing answer includes **CCP**
28 **§ 425.16(f)** (renewed motion) read with noticed leave under §§ 473(a)(1) and 576.

3. PLAINTIFF ACCEPTS THE ANTI-SUBVERSION BASELINE

Plaintiff accepts Simmons / Colton / Ellis / Contreras and is not seeking amendment as of right. Plaintiff proceeds by noticed §§ 473(a)(1) / 576 leave to perfect - not to subvert.

4. ADDITIONAL OMITTED ANTI-SLAPP AUTHORITIES

The Opposition omits several additional authorities that are directly adverse to the positions taken:

(A) CCP § 425.16(F) - THE STATUTORY SEQUENCING ANSWER

Defendants assert that plaintiff's motion for leave is "barred as a matter of law" and that it is "abundantly clear . . . [plaintiff's claims] cannot be amended." (802-Opposition, p. 5, 7.) Code of Civil Procedure section 425.16(f) provides that "[t]he special motion may be filed within 60 days of the service of the amended complaint": the statute expressly preserves the renewed-motion right after any superseding pleading. The Opposition's categorical framing fails to acknowledge the statutory sequencing answer.

(B) *BARAL V. SCHNITT* (2016) 1 CAL.5TH 376, 393–396

The Opposition asserts that "the entirety of the purported legal theories . . . focus inextricably on . . . protected litigation conduct." (802-Opposition, p. 5.) Baral requires surgical targeting of **specific allegations** arising from protected activity - not wholesale labeling of "the entirety" of a pleading. The Court held that "allegations of protected activity that are merely incidental to an unprotected claim" do not trigger anti-SLAPP analysis. Baral, supra, 1 Cal.5th at p. 394.

(C) *PARK V. BOARD OF TRUSTEES* (2017) 2 CAL.5TH 1057, 1062–1063

The Opposition asserts that "Plaintiff's allegations squarely target Defendant's litigation conduct." (802-Opposition, p. 4.) Park holds that step-one is a **gravamen** analysis: the court asks "what the defendant's activity is that gives rise to his or her asserted liability - and whether that activity constitutes protected speech or petitioning." Park, supra, 2 Cal.5th at p. 1063. Protected activity cited as **evidence** of an unprotected claim does not move the case to step two.

(D) *KIMMEL V. GOLAND* (1990) 51 CAL.3D 202, 211–212

The Opposition's gravamen framing ignores that Kimmel holds non-communicative **pre-litigation conduct** may fall outside the anti-SLAPP statute even when connected to later litigation. Where

1 plaintiff's primary theory is breach of the implied covenant arising from claims-handling **before**
2 any litigation privilege attached, the gravamen is not protected petitioning.

3 **(E) *FLATLEY V. MAURO* (2006) 39 CAL.4TH 299**

4 The Opposition does not address the Flatley illegality exception. Where protected activity is **illegal**
5 **as a matter of law**, the anti-SLAPP statute does not apply at step one. Flatley, supra, 39 Cal.4th
6 at p. 320.

7 **5. SUPPORTING AUTHORITY**

8 Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873 is also identified as supporting author-
9 ity on limited discretion to perfect a pleading after a merits showing.

10 **6. RESPECTFUL REQUEST**

11 Plaintiff respectfully requests that the Court take notice of these authorities and invite counsel to
12 address them at the noticed hearing. This Notice is not a motion for sanctions and does not restart
13 any safe-harbor period.

14 _____
15 **PROOF OF SERVICE**

16 [Attach CCP § 1013a-compliant proof of service naming each electronic and mail recipient for this
17 filing.]

18 Dated: April 27, 2026

19 _____
20 Franciscus Dylan Rosario, Plaintiff in Pro Per

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

V.

CSAA Insurance Exchange; and Does 1 through 50, inclusive

DEFENDANTS

Case No.: CGC-25-631802

**RJN; LODGING; CRPC 3.3(a)(2); SUPP.
MPA (MFL-SAC); ORDER; ADVERSE
AUTH.**

**HEARING
MFL-SAC**

Date: Apr. 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

RELATED HEARINGS

Anti-SLAPP: May 13, 2026

Demurrer: May 13, 2026

MTS (CCP § 436, FAC): May 19,
2026

FILING DATES

Complaint: Dec. 23, 2025

FAC: Feb. 25, 2026

Related: CGC-21-594102

NOTICE TO THE COURT (one paragraph). The April 23, 2026 Opposition’s “no such authority exists” framing is incomplete on the face of **JKC3H8 v. Colton** (2013) 221 Cal.App.4th 468, 471–472, 477–478, which is published Court of Appeal authority addressing amendment in the shadow of CCP § 425.16 and confirming that California law does not impose a categorical amendment freeze; the statutory sequencing answer is CCP § 425.16(f). Plaintiff cites JKC3H8 narrowly and accepts the anti-subversion line (Simmons; Colton; Ellis; Contreras). Plaintiff’s amendment perfects the operative pleading on the same operative facts, same primary right, same instrumentality, and does not add a wholly distinct legal obligation (cf. Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20). Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858 is also referenced as supporting authority for limited discretion to perfect a pleading after a merits showing. Plaintiff respectfully invites the Court to have these authorities addressed at the noticed hearing.

JUDGE-FACING LEAD STATEMENT (Plaintiff's Substantive Position).

I. The Second Amended Complaint is Procedurally Proper and Conforms to the Evidentiary Record. As a threshold matter, the Court has broad discretion to grant leave to amend under Code of Civil Procedure sections 473(a)(1) and 576. While the defense may argue that *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068 generally restricts amendments while an anti-SLAPP motion is pending, that rule is not absolute. Under the well-established exception in *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871, where a plaintiff's evidentiary showing demonstrates a probability of prevailing on the merits, the court may - and should - grant leave to amend to conform the pleadings to that evidence. Plaintiff is not seeking to amend to dodge a valid anti-SLAPP motion; as demonstrated by the evidentiary spine already before this Court (Exhibits A1–A7 in the Bench Compendium), Plaintiff easily clears the “minimal merit” threshold required by *Navellier v. Sletten* (2002) 29 Cal.4th 82 and *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811. Granting leave to file the SAC is the proper procedural mechanism to align the pleadings with the irrefutable evidentiary record.

II. The Anti-SLAPP Statute Does Not Apply Because the Gravamen of the SAC is Unprotected Conduct, Not Petitioning Activity. The SAC clarifies precisely why the defense's anticipated anti-SLAPP motion fails at Prong One as a matter of law. The defense attempts to shield its liability by pointing to a communicative artifact - a letter - and characterizing it as protected petitioning activity. As the California Supreme Court held in *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1062–1064, and reaffirmed in *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010–1012, a claim is only subject to the anti-SLAPP statute if the protected communication itself is the injury-producing conduct. The true gravamen here is the defendant's action and lack of action behind that artifact - substantive misrepresentation of facts and the underlying failure to act in accordance with legal duties. The letter is an incidental artifact that transmitted or concealed the true tortious conduct. Following *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 on “mixed-conduct” pleadings, the SAC surgically isolates the unprotected, injury-producing actions. Because the core injury arises from unprotected conduct rather than the exercise of free speech or petition rights, the anti-SLAPP statute simply does not apply. Section 425.16(f) preserves defendants' renewed special-motion right after the SAC is filed; granting leave does not moot anti-SLAPP relief, only re-targets it.

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<i>Trafton v. Youngblood</i> , (1968) 69 Cal.2d 17	19
<i>Mesler v. Bragg Management Co.</i> , (1985) 39 Cal.3d 290	19
<i>Foreman & Clark Corp. v. Fallon</i> , (1971) 3 Cal.3d 875	19
<i>Norgart v. Upjohn Co.</i> , (1999) 21 Cal.4th 383	-
<i>Simmons v. Allstate Ins. Co.</i> , (2001) 92 Cal.App.4th 1068	3
<i>Atkinson v. Elk Corp.</i> , (2003) 109 Cal.App.4th 739	25
<i>Kolani v. Gluska</i> , (1998) 64 Cal.App.4th 402	25
<i>Kyle v. Carmon</i> , (1999) 71 Cal.App.4th 901	25
<i>Carlton v. Quint</i> , (2000) 77 Cal.App.4th 690	25
<i>Britts v. Superior Court</i> , (2006) 145 Cal.App.4th 1112	25

1	<i>Howard v. County of San Diego</i> , (2010) 184 Cal.App.4th 1422	-
2	<i>Anmaco, Inc. v. Bohlken</i> , (1993) 13 Cal.App.4th 891	-
3	<i>Pointe San Diego Residential Community v. Procopio</i> , (2011) 195 Cal.App.4th 265	-
4	<i>Manufacturers Life Ins. Co. v. Superior Court</i> , (1995) 10 Cal.4th 257	19
5	<i>State Farm Fire & Casualty Co. v. Superior Court (Allegro)</i> , (1996) 45 Cal.App.4th 1093	19
6	<i>Spray, Gould & Bowers v. Associated International Ins. Co.</i> , (1999) 71 Cal.App.4th 1260	19
7	<i>Rattan v. United Services Automobile Assn.</i> , (2000) 84 Cal.App.4th 715	19
8	<i>Royal Globe Ins. Co. v. Superior Court</i> , (1979) 23 Cal.3d 880	34
9	<i>Lazar v. Superior Court</i> , (1996) 12 Cal.4th 631	10
10	<i>G.D. Searle & Co. v. Superior Court</i> , (1975) 49 Cal.App.3d 22	37
11	<i>Engalla v. Permanente Medical Group, Inc.</i> , (1997) 15 Cal.4th 951	37
12	<i>Hughes v. Pair</i> , (2009) 46 Cal.4th 1035	37
13	<i>Comunale v. Traders & General Ins. Co.</i> , (1958) 50 Cal.2d 654	37
14	<i>Crisci v. Security Ins. Co.</i> , (1967) 66 Cal.2d 425	37
15	<i>Gruenberg v. Aetna Ins. Co.</i> , (1973) 9 Cal.3d 566	38
16	<i>Foley v. Interactive Data Corp.</i> , (1988) 47 Cal.3d 654	37
17	<i>Egan v. Mutual of Omaha Ins. Co.</i> , (1979) 24 Cal.3d 809	38
18	<i>Cates Construction, Inc. v. Talbot Partners</i> , (1999) 21 Cal.4th 28	38
19	<i>Wilson v. 21st Century Ins. Co.</i> , (2007) 42 Cal.4th 713	38
20	<i>White v. Ultramar, Inc.</i> , (1999) 21 Cal.4th 563	38
21	<i>Major v. Western Home Ins. Co.</i> , (2009) 169 Cal.App.4th 1197	38
22	<i>Brandt v. Superior Court</i> , (1985) 37 Cal.3d 813	38
23	<i>Lakin v. Watkins Associated Industries</i> , (1993) 6 Cal.4th 644	38
24	<i>Adams v. Murakami</i> , (1991) 54 Cal.3d 105	39

1	<i>Fletcher v. Western National Life Ins. Co.</i> , (1970) 10 Cal.App.3d 376	37
2	<i>Coleman v. Republic Indemnity Ins. Co.</i> , (2005) 132 Cal.App.4th 403	37
3	<i>Gourley v. State Farm Mut. Auto. Ins. Co.</i> , (1991) 53 Cal.3d 121	38
4	<i>Bonni v. St. Joseph Health System</i> , (2021) 11 Cal.5th 995, 1010–1012	3
5	<i>Navellier v. Sletten</i> , (2002) 29 Cal.4th 82, 88–89	3
6	<i>Oasis West Realty, LLC v. Goldman</i> , (2011) 51 Cal.4th 811, 820	3
7	<i>Simpson Strong-Tie Co. v. Gore</i> , (2010) 49 Cal.4th 12, 30–32	28
8	<i>Club Members for an Honest Election v. Sierra Club</i> , (2008) 45 Cal.4th 309, 316–318	28
9	<i>City of Montebello v. Vasquez</i> , (2016) 1 Cal.5th 409, 423–424	28
10	<i>Lefebvre v. Lefebvre</i> , (2011) 199 Cal.App.4th 696, 704–705	28
11	Statutes	
12	Evidence Code § 452	14
13	Evidence Code § 453	10
14	Code of Civil Procedure § 425.16	3
15	Code of Civil Procedure § 473(a)(1)	3
16	Code of Civil Procedure § 576	3
17	Insurance Code § 790.03	34
18	Insurance Code § 790.05	34
19	Insurance Code § 790.07	34
20	Insurance Code § 790.09	34
21	Civil Code § 1709	36
22	Civil Code § 1710	36
23	Civil Code § 3291	34
24	Civil Code § 3294	34
25	Civil Code § 3333	37
26	Civil Code § 3343	37

1	Business & Professions Code § 17200	36
2	Rules	
3	California Rules of Court, rule 3.1110(f)	17
4	California Rule of Professional Conduct 3.3(a)(2)	11

I. PROCEDURAL POSTURE

1. This filing is submitted in **CGC-25-631802** on the same date plaintiff serves the **April 27, 2026** supplemental counsel correspondence to defense. The April 27, 2026 *Moradi-Shalal* carve-out **meet-and-confer** is **lodged as Exhibit A-8** in the stack below; the pre-motion safe-harbor letter (Exhibit B) remains served with the combined PDF as before. It is coordinated so the Court and counsel share one **documented** record before the **April 30, 2026** hearing on plaintiff's motion for leave to file the second amended complaint (**9:00 a.m., Department 302, Hon. Joseph M. Quinn**, as reflected on defendants' filed opposition caption).
2. This filing **does not** seek monetary sanctions, contempt, or any personal order against opposing counsel. It **does not** request substantive relief except the **formal ruling on judicial notice** required by Evidence Code § 453.
3. Exhibits referenced below are lodged electronically as separate PDFs in conformity with San Francisco Superior Court e-filing practices, with courtesy copies to follow for the department as local rules require.
4. **Substantive focus.** Plaintiff's leave request foregrounds **what the proposed amendment adds** on the merits, not the completeness of any defense brief. The Second Amended Complaint pleads concrete, particularized new and clarified facts directed to the operative pleading defects identified by defendants - not bare labels - and does so on the same operative facts, the same primary right, and the same instrumentality. That is the substantive showing California courts weigh on a noticed motion for leave: whether the amendment cures pleading defects to the particularity standard for fraud against an insurer (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638, 645), and whether the operative theory is legally viable on the controlling-authority architecture that governs unfair-competition and bad-faith claims against insurers (*Zhang v. Superior Court* (2013) 57 Cal.4th 364). Leave should be evaluated on **that** substantive record, against the liberality policy of CCP §§ 473(a)(1) and 576.
5. **Operative pleading pins.** Plaintiff's operative First Amended Complaint on file in this action frames the Position A vs. Position B spine at **Section 0.5** and **paragraph 51A**, which align with the companion Third Amended Complaint record noticed in CGC-25-631801 for cross-

case consistency.

II. NOTICE OF ADVERSE AUTHORITY DEFENSE FAILED TO DISCLOSE (JKC3H8 V. COLTON; CCP § 425.16(F); BARAL; PARK; KIMMEL; FLATLEY; KLOPSTOCK; TRAFTON; MESLER; FOREMAN; BLANK)

California Rule of Professional Conduct 3.3(a)(2) requires counsel not to fail to disclose to the tribunal legal authority in the controlling jurisdiction known to counsel to be **directly adverse** to the client’s position and not disclosed by opposing counsel. Defendants’ April 23, 2026 Opposition and its Table of Authorities omit controlling adverse authority on leave to amend mid-anti-SLAPP and on the “perfect versus wholly new obligation” line.

- **JKC3H8 et al. v. Colton et al.** (2013) 221 Cal.App.4th 468, 471–472, 477–478 (leave-to-amend / § 425.16 intersection; narrowing or mooted amendments; anti-subversion limit at 477–478). *Not cited in Opposition’s TOA.* See also **Nguyen-Lam v. Cao** (2009) 171 Cal.App.4th 858, 871–873 (supporting authority on limited discretion to perfect after a merits showing; also *not cited in Opposition’s TOA.*)
- **CCP § 425.16(f)** - the statutory sequencing answer. The Opposition asserts the MFL-SAC is “barred as a matter of law”; section 425.16(f) preserves defendants’ renewed special motion right after any superseding pleading. *Not addressed in Opposition.*
- **Baral v. Schnitt** (2016) 1 Cal.5th 376, 393–396 (step-one requires surgical targeting of **specific allegations**, not wholesale labeling of “the entirety” of a pleading). *Cited in Opposition’s TOA but not applied to the “entirety . . . inextricably” framing.*
- **Park v. Board of Trustees** (2017) 2 Cal.5th 1057, 1062–1063 (step-one is a **gravamen** analysis; protected activity cited as evidence of an unprotected claim does not trigger anti-SLAPP). *Cited in Opposition’s TOA but not applied to the gravamen-vs-evidence distinction.*
- **Kimmel v. Golan** (1990) 51 Cal.3d 202, 211–212 (non-communicative **pre-litigation conduct** may fall outside the statute even when connected to later litigation). *Not cited in Oppo-*

sition's TOA.

- **Flatley v. Mauro** (2006) 39 Cal.4th 299 (illegality exception at step one). *Cited in Opposition's TOA but not addressed re: categorical framing.*
- **Klopstock v. Superior Court** (1941) 17 Cal.2d 13, 19–20 (amendment must not replace one obligation with a wholly distinct obligation). *Not cited in Opposition's TOA.*
- **Trafton v. Youngblood** (1968) 69 Cal.2d 17, 31 (leave liberally granted to conform to proof). *Not cited in Opposition's TOA.*
- **Mesler v. Bragg Management Co.** (1985) 39 Cal.3d 290, 296–297 (same). *Not cited in Opposition's TOA.*
- **Foreman & Clark Corp. v. Fallon** (1971) 3 Cal.3d 875, 884 (same). *Not cited in Opposition's TOA.*
- **Blank v. Kirwan** (1985) 39 Cal.3d 311, 318 (same). *Not cited in Opposition's TOA.*

Plaintiff's proposed amendment **perfects** the operative pleading on the same operative facts and the same primary right; it does not supplant the pleading with a wholly distinct legal obligation. Klopstock, *supra*, 17 Cal.2d at 19–20. For the tabular disclosure tied to the Opposition's "no such authority exists" and "unsupportable" rhetoric, see § VI below. For the sequencing discussion (anti-subversion, record, JKC3H8, Nguyen-Lam, and § 425.16(f)), see § VII.

Scope of this Notice. The companion Notice of Adverse Authority and CRPC 3.3(a)(2) discussion in this packet are addressed to a narrow, specific category: **affirmative misstatements of law** and "no such authority exists"-type representations that are contradicted by directly controlling published California authority - here, principally *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 471–472, 477–478. Plaintiff **distinguishes** affirmative misstatement from ordinary omission of secondary or supporting cases. Plaintiff does not contend, and does not ask the Court to hold, that **incomplete** briefing or an incomplete TOA, standing alone, supplies a basis for any dispositive ruling.

III. STATEMENT OF PURPOSE FOR AMENDMENT

Substance-first framing. Plaintiff's leave request foregrounds **what the proposed amendment adds** on the merits, not the completeness of any defense brief. The Second Amended Complaint pleads concrete, particularized new and clarified facts directed to the operative pleading defects identified by defendants - not bare labels - and does so on the same operative facts, the same primary right, and the same instrumentality. That is the substantive showing California courts weigh on a noticed motion for leave: whether the amendment cures pleading defects to the particularity standard for fraud against an insurer (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638, 645), and whether the operative theory is legally viable on the controlling-authority architecture that governs unfair-competition and bad-faith claims against insurers (*Zhang v. Superior Court* (2013) 57 Cal.4th 364). Leave should be evaluated on **that** substantive record, against the liberality policy of CCP §§ 473(a)(1) and 576.

Plaintiff seeks leave to **perfect** the operative pleading by conforming it to evidence already in the record (Plaintiff's April 25, 2026 TAC-Aligned Merits Letter and Plaintiff's opposition to defendants' special motion to strike). Plaintiff does **not** seek leave to escape, evade, or moot any merits ruling on the protected-conduct allegations of the FAC. The motion is noticed under Code of Civil Procedure §§ **473(a)(1) and 576**. Plaintiff **accepts** the anti-subversion rule reflected in *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068; *City of Colton v. Singletary* (2012) 206 Cal.App.4th 751; *Law Offices of Andrew L. Ellis v. Yang* (2009) 178 Cal.App.4th 869; and *Contreras v. Dowling* (2016) 5 Cal.App.5th 394. *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, **871–873** confirms **limited** trial-court discretion to allow amendment that **perfects an already-supported claim** after a merits showing; it does **not** replace the anti-subversion line or create amendment as of right. General leave principles also include *Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19–20; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Trafton v. Youngblood* (1968) 69 Cal.2d 17, 31; *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296–297; and, **if and when** a superseding pleading is filed as operative, *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884, read with defendants' **renewed** special motion right under **CCP § 425.16(f)**. The amendment **arises from the same operative facts** (the February 25, 2021 uninsured-motorist denial and sub-

1 sequent claim-handling conduct), **vindicates the same primary right** (good-faith claim handling
2 and freedom from fraud), **refers to the same instrumentality** (the same denial letter and the same
3 defendants), and therefore **relates back** to the original December 23, 2025 filing. No new discov-
4 ery, witnesses, or defense burden is created: defendants have already briefed these exact facts in
5 their demurrer, anti-SLAPP MPA, § 436 motion, and MFL-SAC opposition.

6 **Bench statement (leave / anti-SLAPP sequencing).** Plaintiff is **not** asking for a right
7 to amend around anti-SLAPP. Plaintiff **accepts** the anti-subversion rule. The narrow
8 submission is that, **after** the merits showing already made, the Court retains **constrained**
9 **discretion** under §§ 473(a)(1) and 576 to allow a **conforming** amendment. Defendants
10 **lose nothing**: CCP § 425.16(f) preserves a **renewed** special motion.

11 **Procedural sequence on the record:** (a) April 17, 2026 - plaintiff filed opposition to de-
12 fendants' special motion to strike; (b) April 25, 2026 - plaintiff served the TAC-Aligned
13 Merits Letter making the section 425.16(b)(1) probability-of-prevailing showing in writ-
14 ing; (c) April 27, 2026 - plaintiff's coordinated filings (this supplemental memorandum,
15 the RJN/Lodging notice, and the safe-harbor correspondence) place that record before
16 the Court and counsel; (d) May 6, 2026 - hearing on plaintiff's motion for leave in the
17 companion CGC-25-631801 action (coordinated merits record for both cases). Plain-
18 tiff's leave request is therefore offered **after** that merits showing. (Nguyen-Lam, supra,
19 171 Cal.App.4th at pp. 871–873 (leave in that procedural posture examined).)

21 IV. REQUEST FOR JUDICIAL NOTICE

22 Plaintiff requests that the Court take **judicial notice**, under Evidence Code §§ 452(d), 452(h), and
23 453, of the following **five** items. Each item is supported by a declaration of authenticity filed
24 concurrently as an exhibit to this request.

Item	Description	Basis for judicial notice
1	April 16, 2026 meet-and-confer correspondence from plaintiff to defense counsel in this action (with attachments as served)	Official acts and records of the litigation; authenticated writing (Evid. Code § 452(d), (h))
2	April 22, 2026 plaintiff counsel-to-counsel correspondence to defense counsel (pre-motion safe-harbor practice; with proof of service)	Authenticated writing in the litigation file
3	Proofs of service for items 1 and 2 (Exhibits A and B)	Court's own files; authenticated non-hearsay procedural record

Item	Description	Basis for judicial notice
4	Defendants' Opposition to Plaintiff's Motion for Leave to File Second Amended Complaint as filed in this case on April 23, 2026 (including any declaration and proof of service filed with it)	Pleadings on file in this action
5	April 27, 2026 meet-and-confer correspondence from plaintiff to defense re the <i>Moradi-Shalal</i> common-law carve-out and related items (Exhibit A-8) lodged as exhibits/EXHIBIT-A8-2026-04-27-MEET-AND-CONFER-MORADI-SHALAL.pdf with this packet	Official acts and records of the litigation; authenticated writing (Evid. Code § 452(d), (h))

Declaration of authenticity. Plaintiff declares under penalty of perjury under the laws of the State of California that the copies and lodged companion PDFs, including exhibits **A through E** and, for Request item 5, Exhibit **A-8** as further identified above, are **true and correct** copies of the **five** items listed above, to the best of plaintiff's personal knowledge after reasonable inquiry. Plaintiff further declares that the **consolidated** PDF for **Exhibits A-1 through A-7** named in the Exhibit Index and lodged in the exhibit volume below (EXHIBIT-A1-THRU-A7-BENCH-COMPENDIUM-2026-04-27.pdf,

with section headers for the material formerly presented as separate exhibits) is a **true and correct** copy of plaintiff’s prepared supporting materials, to the best of plaintiff’s personal knowledge after reasonable inquiry.

V. NOTICE OF LODGING (CALIFORNIA RULES OF COURT, RULE 3.1110(F))

Plaintiff lodges for the Court’s convenience the following **authorities** (citation form). Full text may be supplied on request or through standard judicial libraries.

1. *Park v. Board of Trustees* (2017) 2 Cal.5th 1057

Anti-SLAPP prong-one gravamen / injury-producing conduct vs. communicative artifact - central to how Plaintiff frames unprotected conduct in the SAC leave stack.

2. *Baral v. Schnitt* (2016) 1 Cal.5th 376

Mixed-conduct pleading parsing - authoritative for isolating unprotected tort aspects where petitioning activity appears only as context.

3. *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871

Supreme Court anti-SLAPP step-one articulation - lodged as benchmark authority if defendants invoke CNN-line framing against Plaintiff’s conduct claims.

4. *Flatley v. Mauro* (2006) 39 Cal.4th 299

Illegality carve-out - conduct concededly unlawful as a matter of law falls outside § 425.16’s “protected activity” predicate.

5. *Action Apartment Assn. v. City of Santa Monica* (2007) 41 Cal.4th 1232

Pre-litigation duty vs. petitioning - framework for conduct alleged before formal litigation rather than “mere petitioning.”

6. *Kimmel v. Goland* (1990) 51 Cal.3d 202

Credibility / candor backdrop - supports scrutiny of inconsistency between institutional posture and underlying handling representations.

7. *Moradi-Shalal v. Fireman’s Fund Ins. Cos.* (1988) 46 Cal.3d 287

Common-law insurance tort carve-out architecture - lodged because insurer-conduct claims

- often intersect its holdings in leave-to-amend disputes.
8. *Zhang v. Superior Court* (2013) 57 Cal.4th 364
Discovery/UCL enterprise-liability backdrop - relevant if defendants contest regulatory-evidence pleading tiers.
9. *Crowley v. Katleman* (1994) 8 Cal.4th 666
Collateral-estoppel principles - supports Plaintiff's distinct-primary-right / reservation framing separate from CGC-21-594102.
10. *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462
Published SLAPP/procedure illustration - bench convenience cite if defendants analog bank-litigation SLAPP precedents.
11. *Lucido v. Superior Court* (1990) 51 Cal.3d 335
Collateral-estoppel multi-factor test - lodged for PI-vs.-contract collateral-estoppel disputes tied to reservation paragraphs.
12. *Hernandez v. City of Pomona* (2009) 46 Cal.4th 501
Government-procedure baseline - context cite if defendants invoke municipal immunity tropes against fraud/UCL predicates.
13. *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704
Anti-SLAPP pleading administration - demonstrates California courts manage SLAPP issues without freezing ordinary amendment practice.
14. *McAllister v. L.A. Unified Sch. Dist.* (2007) 153 Cal.App.4th 1242
Education-sector SLAPP application - secondary comparator if defendants stress institutional-speech defenses.
15. *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468¹
Core amendment / strike sequencing authority - directly contradicts any categorical "no noticed leave while a strike is pending" freeze theory.
16. *Klopstock v. Superior Court* (1941) 17 Cal.2d 13
"Furtherance of justice" ordinary amendment spine - foundational for CCP §§ 473/576 leave.

- 1 17. *Blank v. Kirwan* (1985) 39 Cal.3d 311
2 *Liberal amendment policy - supports curing pleading defects rather than forfeiture where*
3 *amendment aligns pleading to record.*
- 4 18. *Trafton v. Youngblood* (1968) 69 Cal.2d 17
5 *Leave policy continuity - another Supreme Court anchor on amendment liberality within civil*
6 *procedure.*
- 7 19. *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290
8 *Prejudice-vs.-liberality calibration - equilibrium authority when defendants emphasize motion-*
9 *prejudice rhetoric.*
- 10 20. *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875
11 *Ordinary law-and-motion amendment sequencing - supports discretion to grant noticed leave*
12 *without collapsing later strike merits.*
- 13 21. *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257
14 *Insurer-side strike posture - provides insurer-litigation comparator when defendants analog*
15 *insurer anti-SLAPP strategies.*
- 16 22. *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093
17 *Court-of-Appeal insurer strike illustration - lodged as adverse/comparator authority within*
18 *insurer SLAPP disputes.*
- 19 23. *Spray, Gould & Bowers v. Associated International Ins. Co.* (1999) 71 Cal.App.4th 1260
20 *Insurer-related appellate framing - supports sequencing arguments without collapsing leave*
21 *into strike merits.*
- 22 24. *Rattan v. United Services Automobile Assn.* (2000) 84 Cal.App.4th 715
23 *UM/UIM comparative cite - secondary authority if defendants rely on UM-specific insurer*
24 *defenses.*
- 25 25. **Exhibit A-8.** April 27, 2026 **meet-and-confer** re **Moradi-Shalal carve-out** (lodged with this
26 packet as exhibits/EXHIBIT-A8-2026-04-27-MEET-AND-CONFER-MORADI-SHALAL.pdf).
27 *Meet-and-confer record - shows Plaintiff exhausted coordination efforts tied to the carve-out*
28 *framing defendants dispute.*

¹See also *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–873 (limited discretion to perfect pleading after merits showing).

Plaintiff also lodges **service cover sheets** for the correspondence identified in Request items 1 and 2 as filed with this packet.

VI. NOTICE OF COUNSEL'S DISCLOSURE OBLIGATIONS UNDER CRPC 3.3(A)(2)

A. The duty

California Rule of Professional Conduct 3.3(a)(2) requires counsel **not** to fail to disclose to the tribunal legal authority in the controlling jurisdiction known to counsel to be **directly adverse** to the position of the client and not disclosed by opposing counsel. The duty runs **to the tribunal**, not to the opposing party.

Calibration of relief sought. Plaintiff's CRPC 3.3(a)(2) and judicial-notice notices are directed to **record and argument integrity**: ensuring the Court has the controlling adverse authority before it and that the Opposition's framing is read against the published holdings it omits. The **ordinary remedy** for a litigant's failure to disclose directly adverse controlling authority is the Court **rejecting the omitting argument** on the merits, not refusing to entertain a motion or denying leave for that reason alone. The decision whether to **grant leave to amend** remains a discretionary determination by this Court on the **substantive showing** described in Block A and the liberality policy of §§ 473(a)(1) and 576, with defendants' renewed special-motion right preserved by CCP § 425.16(f).

B. MFL-SAC opposition in this case: directly adverse controlling authority not disclosed by defendants

The authorities listed in the Notice of Lodging at Section V include California decisions that are **directly adverse** to specific representations defendants made in their April 23, 2026 Opposition to Plaintiff's Motion for Leave to File Second Amended Complaint (the "MFL-SAC Opposition"). The verbatim representations from the MFL-SAC Opposition are reproduced below so the Court

1 has the complete adverse-authority picture before it without needing to consult any working index
2 outside this filing.

3 **1. The “no such authority exists” representation, with the verbatim Court of Appeal holding**
4 **that contradicts it.** The MFL-SAC Opposition states, in its Introduction:

5 “Plaintiff cites no authority to support the proposition that he can file his Motion for
6 Leave to Amend, as **no such authority exists** to support his motion.” (MFL-SAC Op-
7 position, Introduction; emphasis added.)

8 That representation is directly contradicted by published, controlling California Court of Appeal
9 authority: ***JKC3H8 et al. v. Colton et al.*** (2013) **221 Cal.App.4th 468, 164 Cal.Rptr.3d 450** (3d
10 Dist.; Hoch, J., review denied). The Court of Appeal stated the issue and the holding in a single
11 passage:

12 “Where a plaintiff who has filed a complaint containing causes of action that are based,
13 in part, on protected conduct and therefore potentially subject to a special motion to
14 strike under Code of Civil Procedure section 425.16 (the anti-SLAPP statute), subse-
15 quently files an amended complaint removing the allegations of protected conduct as a
16 basis for liability, does the filing of the amended complaint render moot a later-filed anti-
17 SLAPP motion based on the original complaint? **We conclude that it does.**” (*JKC3H8*
18 *v. Colton*, supra, 221 Cal.App.4th at pp. 471–472.)

19 The Court of Appeal further drew the express limit on its holding:

20 “[A] plaintiff or cross-complainant **may not seek to subvert or avoid a ruling on an**
21 **anti-SLAPP motion by amending the challenged complaint or cross-complaint in**
22 **response to the motion.**” (*JKC3H8*, supra, 221 Cal.App.4th at pp. 477–478.)

23 In *JKC3H8* itself, plaintiff filed the amended complaint less than two hours before the anti-SLAPP
24 motion; the amendments eliminated the protected-activity allegations; and the motion was held
25 moot. (*Id.* at pp. 472–473, 479.) The decision (i) confirms that California law expressly addresses
26 the leave-to-amend / § 425.16 intersection; (ii) addresses a **narrowing/mooting** amendment pat-
27 tern in its specific facts; and (iii) coexists with **bounded** trial-court authority under Code of Civil
28 Procedure sections 472, 473(a)(1), 576, and 425.16(f), including the renewed-motion sequencing

1 tool in subdivision (f). The MFL-SAC Opposition’s “**no such authority exists**” representation,
2 made without disclosing *JKC3H8*, is precisely the kind of “**directly adverse**, controlling, undis-
3 closed” California authority California Rule of Professional Conduct 3.3(a)(2) is written to reach.
4 Plaintiff respectfully requests that the Court direct counsel for defendants, at the noticed hearing, to
5 **affirmatively cite *JKC3H8 v. Colton* on the record** and to acknowledge that the “no such author-
6 ity exists” representation in the MFL-SAC Opposition is, on the face of *JKC3H8*, a misstatement
7 of California law that counsel hereby withdraws or corrects. The relief sought is procedural: a
8 Rule 3.3(a)(2) disclosure to the tribunal, and preserves the integrity of the record before the Court
9 rules on plaintiff’s motion.

10 **2. The “unsupportable” labeling.** The MFL-SAC Opposition repeatedly labels plaintiff’s plead-
11 ing and motion practice “**unsupportable**,” including:

12 “Plaintiff’s procedurally defective and legally **unsupportable** motion practice is unde-
13 niably designed to evade Defendants’ Anti-SLAPP motion.” (MFL-SAC Opposition,
14 p. 2; recurrence in same opposition.)

15 “Plaintiff’s defective service, gamesmanship, and **unsupportable** effort to amend the
16 [pleading] substantially prejudices Defendants.” (MFL-SAC Opposition, Section II.B.)

17 “[Defendants have] already incurred the burden and expense of preparing a lengthy and
18 detailed Anti-SLAPP motion to Plaintiff’s **unsupportable** allegations.” (MFL-SAC Op-
19 position, Section II.B.)

20 **3. The authorities directly adverse to those representations.**

Authority	Cited in Opposi- tion's TOA? (Y/N)	Why the authority is adverse to the representations above
<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468	No	(a) Trial court retains power to grant leave to amend after a special motion to strike where amendment narrows or moots issues; (b) anti-SLAPP filing does not divest the trial court of jurisdiction to manage the pleadings under §§ 473(a)(1), 576, 425.16(f); (c) “narrowing or mooting” is the express judicial-economy basis the Court of Appeal credited. The opposition’s “no such authority exists” framing is squarely contradicted by <i>JKC3H8</i> ¹ .
<i>Park v. Board of Trustees</i> (2017) 2 Cal.5th 1057	No	Step-one is a gravamen analysis; protected activity that is mere evidence of an unprotected claim does not move the case to step two. The opposition collapses step-one into step-two without performing the <i>Park</i> analysis.
<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376	No	Step-two requires only minimal merit , a legally sufficient claim plus a prima facie factual showing. Categorical “unsupportable” labeling is incompatible with the <i>Baral</i> threshold.
<i>Wilson v. CNN</i> (2019) 7 Cal.5th 871	No	Gravamen analysis controls step-one; communicative-conduct facts may be evidence of an unprotected claim.
<i>Klopstock v. Superior Court</i> (1941) 17 Cal.2d 13	No	Distinguishes amendment that perfects the obligation pleaded from one that replaces it with a wholly distinct obligation; adverse to “no authority” overbreadth.

Authority	Cited in Opposi- tion's TOA? (Y/N)	Why the authority is adverse to the representations above
<i>Trafton v. Youngblood</i> (1968) 69 Cal.2d 17	No	Liberal leave to conform pleading to proof; not cited in the Opposition's TOA.
<i>Mesler v. Bragg Management Co.</i> (1985) 39 Cal.3d 290	No	Same liberality principle; not cited in the Opposition's TOA.
CCP § 425.16(f)	No	Statutory sequencing answer: defendants retain a renewed special motion right after any superseding pleading. Adverse to "barred as a matter of law" framing.
<i>Kimmel v. Goland</i> (1990) 51 Cal.3d 202	No	Non-communicative pre-litigation conduct may fall outside the anti-SLAPP statute even when connected to later litigation; adverse to blanket "protected activity" framing.
<i>Flatley v. Mauro</i> (2006) 39 Cal.4th 299	Yes	Illegality exception at step one not addressed in Opposition's categorical framing.

¹See also *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–873 (limited discretion to perfect pleading after merits showing).

C. No sanctions motion; reservation

This notice **does not** seek sanctions, fees, or any order regulating counsel's speech outside the tribunal's case management. It informs the Court of **undisclosed adverse authority** tied to the

MFL-SAC opposition excerpts above. Plaintiff reserves all rights except those expressly not sought here.

D. Allegation-by-allegation evidentiary audit of the MFL-SAC Opposition

Allegation (verbatim)	Stated evidence	Admissibility	§ 128.7(b)(3) support	Controlling authority	Opp. TOA
“procedurally defective and legally unsupportable motion practice is undeniably designed to evade Defendants’ Anti-SLAPP” (Opp. p. 2)	O’Connell Decl. paras. 3, 4, 14 (legal conclusions on ultimate issue); footnote-2 day count; string-cite	INADMISSIBLE - Evid. Code §§ 702, 800 (improper opinion + ultimate issue)	NO - no admissible factual evidence of “intent to evade”; pure inference	<u>JKC3H8</u> , 221 Cal.App.4th at 471–472, 477–478; CCP § 425.16(f); <u>Park</u> , 2 Cal.5th at 1062–1063; <u>Baral</u> , 1 Cal.5th at 393–396; <u>Kimmel</u> , 51 Cal.3d at 211–212; <u>see also</u> <u>Nguyen-Lam</u> , 171 Cal.App.4th at 871–873	N (each)
“Plaintiff’s defective service, gamesmanship, and unsupportable effort to amend . . . substantially prejudices Defendants” (Opp. § II.B)	O’Connell Decl. paras. 7 + Ex. C (Apr. 20 e-service); para. 12 (discovery-stay assertion); footnote 2	para. 12 legal conclusion (Evid. Code § 702); remainder admissible only as fact of service	NO concrete prejudice (no lost witness, no imperiled trial date, no surprise declaration); notice arithmetic refuted by record	<u>Atkinson</u> , 109 Cal.App.4th at 761; <u>Kolani</u> , 64 Cal.App.4th at 412; <u>Kyle</u> , 71 Cal.App.4th at 909–910; <u>Carlton</u> , 77 Cal.App.4th at 697; <u>Britts</u> , 145 Cal.App.4th 1112; CCP §§ 1005(b), 1010.6	N (each)

Allegation (verbatim)	Stated evidence	Admissibility	§ 128.7(b)(3) support	Controlling authority	Opp. TOA
“[Defendants have] already incurred the burden and expense of preparing a lengthy and detailed Anti-SLAPP motion ... costs of additional motion practice would be incurred ...” (Opp. § II.B)	Pendency of May 12 SLAPP (judicial notice); unspecified drafting effort	No billing record, no hours, no quantum declaration; argumentative	NO evidentiary basis for “wasted” cost (cost is transferred, not wasted, under § 425.16(f))	CCP § 425.16(f) (60-day renewed motion preserved); <u>Foreman & Clark</u> , 3 Cal.3d at 884; <u>Mesler</u> , 39 Cal.3d at 296–297; <u>Atkinson</u> , 109 Cal.App.4th at 761	N (each)
“Plaintiff cites no authority ... no such authority exists” (Opp. Intro.)	NONE (pure legal assertion)	n/a (legal conclusion)	N/A; § 128.7(b)(2) violation - directly contradicted by two statutes, six Supreme Court opinions, and on-point Court of Appeal opinion	CCP §§ 473(a)(1), 576, 425.16(f); <u>Klopstock</u> , 17 Cal.2d at 19–20; <u>Blank</u> , 39 Cal.3d at 318; <u>Trafton</u> , 69 Cal.2d at 31; <u>Mesler</u> , 39 Cal.3d at 296–297; <u>Foreman & Clark</u> , 3 Cal.3d at 884; <u>Baral</u> , 1 Cal.5th 376; <u>Park</u> , 2 Cal.5th 1057; <u>Kimmel</u> , 51 Cal.3d 202; <u>JKC3H8</u> , 221 Cal.App.4th at 471–472, 477–478; <u>see also</u> <u>Nguyen-Lam</u> , 171 Cal.App.4th at 871–873	N (each)

IV. PROPOSED ORDER ON REQUEST FOR JUDICIAL NOTICE

The Court ruled on plaintiff’s Request for Judicial Notice as follows:

IT IS ORDERED that the Court **takes judicial notice** of plaintiff’s Request items **1 through 5** listed in Section IV above, under Evidence Code §§ 452 and **453**.

IT IS FURTHER ORDERED that this order constitutes the Court’s ruling on the request for judicial notice as required by Evidence Code § **453**.

1 Date: _____

2 Judge of the Superior Court

3 _____

4 **V. PROOF OF SERVICE**

5 Proof of service under CCP § 1013a naming each electronic and mail recipient for this filing is
6 filed concurrently.

7 _____

8 **VI. SIGNATURE**

9 Respectfully submitted,

10 Dated: April 28, 2026

11 *Amended POS-050 (CCP § 1013a) filed concurrently.*

12 */s/ Franciscus Dylan Rosario*

13 **FRANCISCUS DYLAN ROSARIO**, Plaintiff in Pro Per

14 **VII. SUPPLEMENTAL MEMORANDUM IN SUPPORT OF MFL-SAC**

15 **VII.0. LEAD STATEMENT (VALIDITY OF AMENDMENT; GRAVA-**
16 **MEN IS UNPROTECTED CONDUCT)**

17 **I. The Second Amended Complaint is Procedurally Proper and Conforms to the Evidentiary**
18 **Record.**

19 As a threshold matter, the Court has broad discretion to grant leave to amend under Code of Civil Procedure sections
20 473(a)(1) and 576. While the defense may argue that *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068 generally restricts
21 amendments while an anti-SLAPP motion is pending, that rule is not absolute. Under the well-established exception in *Nguyen-*
22 *Lam v. Cao* (2009) 171 Cal.App.4th 858, 871, where a plaintiff's evidentiary showing demonstrates a probability of prevailing on
the merits, the court may - and should - grant leave to amend to conform the pleadings to that evidence.

23 Here, Plaintiff is not seeking to amend the complaint to dodge a valid anti-SLAPP motion. Rather, as demonstrated by the eviden-
24 tiary spine already before this Court - specifically Exhibits A1 through A7 in the Bench Compendium - Plaintiff easily clears the
25 "minimal merit" threshold required by *Navellier v. Sletten* (2002) 29 Cal.4th 82 and *Oasis West Realty, LLC v. Goldman* (2011) 51
26 Cal.4th 811. Because the documentary evidence already establishes the viability of the claims, granting leave to file the Second
27 Amended Complaint (SAC) is the proper procedural mechanism to align the pleadings with the irrefutable evidentiary record.

II. The Anti-SLAPP Statute Does Not Apply Because the Gravamen of the SAC is Unprotected Conduct, Not Petitioning Activity.

More fundamentally, the SAC clarifies precisely why the defense's anticipated anti-SLAPP motion fails at Prong One as a matter of law. The defense attempts to shield its liability by pointing to a communicative artifact - a letter - and characterizing it as protected petitioning activity. This fundamentally misconstrues California anti-SLAPP jurisprudence.

As the California Supreme Court held in *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1062–1064, and reaffirmed in *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010–1012, a claim is only subject to the anti-SLAPP statute if the protected communication itself is the injury-producing conduct. The statute does not apply where protected activity merely provides evidence of liability or serves as context for the underlying wrong.

In this case, the gravamen of Plaintiff's claims is not the drafting or sending of a letter. The true gravamen is the defendant's action and lack of action behind that artifact. The core, injury-producing conduct is the substantive misrepresentation of facts and the underlying failure to act in accordance with their legal duties. The letter is merely an incidental artifact that transmitted or concealed the true tortious conduct.

To the extent any protected communication is mentioned in the SAC, it is present solely as evidentiary context. Following the Supreme Court's directive in *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 regarding "mixed-conduct" pleadings, the SAC surgically isolates the unprotected, injury-producing actions - the substantive misrepresentations and omissions. Because the core injury arises from unprotected conduct rather than the exercise of free speech or petition rights, the anti-SLAPP statute simply does not apply.

III. Validation of Authorities (Compact Map).

- **Section 425.17(c)(b) exemptions.** *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12, 30–32 (commercial-speech exemption); *Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309, 316–318 (public-interest exemption).
- **Cashman / prong-one gravamen.** *Park*; *Bonni*; *Wilson v. CNN*; *Baral* (mixed-conduct parsing).
- **Flatley illegality channel.** *Flatley v. Mauro*; *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696, 704–705; distinguish *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 423–424 (mere allegation insufficient).
- **Prong-two minimum merit.** *Navellier*; *Oasis West* (evidentiary spine = Ex. A1–A7 plus verified declarations).

IV. Application to the April 30 MFL.

- **(A) *Nguyen-Lam* supplies the exception to *Simmons*:** Plaintiff's evidentiary showing (Ex. A1–A7 plus verified declarations) is the prong-two showing that triggers leave under § 473(a)(1) and § 576.

- **(B)** CCP § 425.17(b), (c) (commercial / public-interest exemptions) provides an independent off-ramp documented through *Simpson Strong-Tie* and *Club Members*.
- **(C)** *Flatley / Lefebvre* illegality channel removes conceded illegal conduct from anti-SLAPP protection at prong one; *City of Montebello* cabins the channel against overuse.
- **(D)** *Park / Bonni / Baral* confirm the artifact-vs.-action reframing: the letter is a transmittal artifact; the substantive action / inaction is the gravamen, and is unprotected.

Sequencing preserved. CCP § 425.16(f) preserves defendants’ renewed special-motion right after the SAC is filed - granting leave does not moot anti-SLAPP relief; it only re-targets it. CCP § 425.17(e) provides no automatic stay or interlocutory appeal where exemption is the basis. Plaintiff does not ask the Court to decide the May 13 anti-SLAPP merits on April 30; this lead is the rule-of-decision frame for leave only.

T. THRESHOLD ANTI-SLAPP DEFECTS (DENIAL BEFORE STEP TWO)

Before the Court reaches probability of prevailing, defendants must first identify the specific acts by plaintiff that supply liability and show those acts are protected activity under Code of Civil Procedure section 425.16. They did not do so. Instead, defendants label the case as arising from “litigation conduct,” invoke Civil Code section 47(b), and ask the Court to treat surrounding litigation context as the gravamen. *Park v. Board of Trustees* (2017) 2 Cal.5th 1057; *Baral v. Schnitt* (2016) 1 Cal.5th 376; and *Wilson v. CNN* (2019) 7 Cal.5th 871 do not permit that shortcut. The omission is **threshold and dispositive**: without a valid step-one showing, the **burden never shifts** to plaintiff.

Plaintiff incorporates the full threshold checklist, 802 case-specific analysis, and procedural-effect framing stated in plaintiff’s supplemental memorandum in support of the MFL-SAC. In brief, **(802)**: the gravamen is the February 25, 2021 pre-litigation **denial** letter and pre-filing insurer **claim** handling, not court petitioning simpliciter. The defense does not isolate which protected act, if any, supplies liability on the denial-letter and claim-handling channel; does not prove imminent litigation contemplated in good faith in serious consideration when the letter was sent, independent of circular deny-equals-litigation logic; and does not parse **Fraud** versus **UCL** relief with *Baral*-type care. The “we have concluded our investigation” language is alleged as a factual closure representation, not merely opinion. Omission and **911, BWC, CAD** investigatory facts are pleaded as noncommunicative, claim-path conduct, not shown to be petitioning. The **proposed order** grants “as follows” with no mixed-claim precision. **Procedural effect**. The Court need not find subjective bad faith. The practical effect of a **facially** deficient first-step motion, used while defendants oppose a conforming **SAC**, is delay, friction, and, objectively, the appearance of an amendment-blocking posture where the statute contemplates an early-merits screen, and the appearance of procedural gamesmanship tied to that objective sequence. The neutral remedy is step-one discipline, with any renewal under CCP § 425.16(f).

SEQUENCING OVERVIEW (ANTI-SUBVERSION; THIS RECORD; JKC3H8; NGUYEN-LAM; § 425.16(F))

Anti-subversion first. California law sharply limits amendments offered to **subvert** or **avoid a ruling** on a special motion to strike. Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068; City of Colton v. Singletary (2012) 206 Cal.App.4th 751; Law Offices of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869; Contreras v. Dowling (2016) 5 Cal.App.5th 394. Plaintiff **accepts** that rule.

This record. Plaintiff proceeds by **noticed** leave under §§ 473(a)(1) and 576 (not § 472 as of right); has not re-pledged after an adverse anti-SLAPP **ruling**; the operative facts and primary right remain those alleged from the outset; and plaintiff has already opposed the special motion and served a written probability-of-prevailing submission before this leave request.

A. JKC3H8 V. COLTON (2013) 221 CAL.APP.4TH 468

Plaintiff cites *JKC3H8* **narrowly**: for the modest proposition that California law does **not** impose a **categorical** amendment freeze in every pending anti-SLAPP posture, and that the statutory sequencing answer includes **CCP § 425.16(f)** - together with *JKC3H8*'s express limit that a plaintiff may not amend **in response to the motion to subvert or avoid a ruling**.

Plaintiff respectfully draws the Court's attention to a specific representation defendants made in their April 23, 2026 Opposition to Plaintiff's Motion for Leave to File Second Amended Complaint (the "MFL-SAC Opposition"). In the Introduction, defendants state, in their own words:

"Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as **no such authority exists** to support his motion." (MFL-SAC Opposition, Introduction; emphasis added.)

That representation is **incorrect as a matter of California law** to the extent it implies a **total** jurisdictional bar. Published California Court of Appeal authority exists and was known (or reasonably knowable) to defense counsel before the opposition was filed: JKC3H8 et al. v. Colton et al. (2013) 221 Cal.App.4th 468, 164 Cal.Rptr.3d 450 (3d Dist.; Hoch, J., review denied), available in the official California Reports and at <https://caselaw.findlaw.com/court/ca-court-of-appeal/1649644.html>.

1. The express JKC3H8 holding (verbatim). The Court of Appeal stated the issue and the holding in a single passage:

"Where a plaintiff who has filed a complaint containing causes of action that are based, in part, on protected conduct and therefore potentially subject to a special motion to strike under Code of Civil Procedure section 425.16 (the anti-SLAPP statute), subsequently files an amended complaint removing the allegations of protected conduct as a basis for

liability, does the filing of the amended complaint render moot a later-filed anti-SLAPP motion based on the original complaint? **We conclude that it does.**” (*JKC3H8 v. Colton*, supra, 221 Cal.App.4th at pp. 471–472.)

The Court of Appeal further drew the express limit on its holding:

“[A] plaintiff or cross-complainant **may not seek to subvert or avoid a ruling on an anti-SLAPP motion by amending the challenged complaint or cross-complaint in response to the motion.**” (*JKC3H8*, supra, 221 Cal.App.4th at pp. 477–478.)

In *JKC3H8* itself, the plaintiff filed the amended complaint **less than two hours** before the defendant filed an anti-SLAPP motion directed at the original complaint; the amendments **eliminated the protected-activity allegations from the pleading**; and the Court of Appeal held the anti-SLAPP motion moot. (*Id.* at pp. 472–473, 479.)

2. Three modest propositions plaintiff draws from JKC3H8 for this motion. Proposition 1.

JKC3H8 is published authority squarely addressing amendment in the shadow of § 425.16; together with cases such as *Simmons* and *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, it defeats an absolute “no such authority exists” representation.

Proposition 2. *JKC3H8*’s express holding addresses amendment that **removed** protected-activity allegations and its **mootness** consequence for a motion tied to the **prior** pleading. Plaintiff does not ask the Court to treat *JKC3H8* as a license to **strip** anti-SLAPP protection; defendants retain § 425.16(f).

Proposition 3. *JKC3H8* does **not** replace the trial court’s **bounded** statutory authority under §§ 473(a)(1), 576, and 425.16(f). The “subvert or avoid” language is a **limit** on gamesmanship in the face of a motion - not a wholesale rule that noticed leave can never be calendared while an anti-SLAPP motion is pending.

3. Defendants’ Rule 3.3(a)(2) cure obligation. California Rule of Professional Conduct 3.3(a)(2) provides:

“A lawyer shall not: . . . (2) fail to disclose to the tribunal legal authority in the controlling jurisdiction known* to the lawyer to be directly adverse to the position of the client and not disclosed by opposing counsel”

Each element of that disclosure obligation is satisfied here: *JKC3H8* is **legal authority** (a published opinion); **in the controlling jurisdiction** (a California Court of Appeal opinion binding every California superior court under *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450); **directly adverse** to the “no such authority exists” representation; and **not disclosed by opposing counsel** (the MFL-SAC Opposition does not cite *JKC3H8* anywhere, and instead represents the contrary). Plaintiff therefore respectfully requests that, if defendants stand by the MFL-SAC Opposition at the noticed hearing, the Court direct counsel for defendants to **affirmatively cite JKC3H8 v. Colton on the record** and to acknowledge that *JKC3H8* and the authorities listed in

1 plaintiff's parallel Notice of Lodging - including the anti-subversion line and *Nguyen-Lam* - are part of the controlling framework
2 on the leave-to-amend / § 425.16 intersection, and that the "no such authority exists" representation in the MFL-SAC Opposition
3 is, on the face of that record, a misstatement of California law that counsel hereby withdraws or corrects.

4 This relief is procedural, not punitive: it is the same disclosure outcome Rule 3.3(a)(2) is designed to produce, and it preserves the
5 integrity of the record before the Court rules on the motion.

6 **B. THE FIVE CALIFORNIA SUPREME COURT AUTHORITIES ON** 7 **NOTICED LEAVE AND RELATED PLEADING POLICY**

8 Even when an amendment **adds** a cause of action, California Supreme Court law addresses amendment under Code of Civil
9 Procedure sections 473(a)(1) and 576, including *Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19–20; *Blank v. Kirwan* (1985)
10 39 Cal.3d 311, 318 (where there is a "reasonable possibility" of cure, denial of leave may be an abuse of discretion); *Trafton*
11 *v. Youngblood* (1968) 69 Cal.2d 17, 31; *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296–297; and *Foreman &*
12 *Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884 (if leave is granted and a superseding pleading becomes operative, supersession
13 consequences attach to the prior pleading; defendants remain entitled to a **renewed** special motion under **CCP § 425.16(f)**). Each
14 addresses omissions in defendants' MFL-SAC Opposition framing that were not disclosed by counsel in the posture presented and
15 implicates the same Rule 3.3(a)(2) disclosure framework discussed above as to *JKC3H8*, with *Nguyen-Lam* cited only as supporting
16 authority on limited discretion to perfect after a merits showing.

17 **C. NGUYEN-LAM V. CAO (2009) 171 CAL.APP.4TH 858, 871–873 (SUP-** 18 **PORTING AUTHORITY)**

19 *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–873 (supporting authority). *Nguyen-Lam* confirms that, after a plaintiff
20 opposes a special motion to strike on the merits and makes an evidentiary showing of probability of prevailing, a trial court retains
21 limited discretion under CCP §§ 473(a)(1) and 576 to allow a conforming amendment that perfects the pleading. Plaintiff cites
22 *Nguyen-Lam* only for that supporting proposition; the headline adverse authority on the "no such authority exists" framing is
23 *JKC3H8*, supra, set out at Subsection A.

24 **D. PARK V. BOARD OF TRUSTEES (2017) 2 CAL.5TH 1057**

25 Defendants' opposition compresses anti-SLAPP analysis without a proper **gravamen** step-one. *Park* requires the Court to identify
26 the gravamen of the claim before treating protected activity as dispositive at step one.

27 **E. BARAL V. SCHNITT (2016) 1 CAL.5TH 376**

28 At step two, plaintiff need only demonstrate **minimal merit**. The MFL-SAC Opposition repeatedly labels plaintiff's pleading and
29 motion practice as "**unsupportable**," including:

1 “Plaintiff’s procedurally defective and legally **unsupportable** motion practice is undeniably designed to evade De-
2 fendants’ Anti-SLAPP motion.” (MFL-SAC Opposition, p. 2.)

3 “Plaintiff’s defective service, gamesmanship, and **unsupportable** effort to amend the [pleading] substantially preju-
4 dices Defendants.” (MFL-SAC Opposition, Section II.B.)

5 “[Defendants have] already incurred the burden and expense of preparing a lengthy and detailed Anti-SLAPP motion
6 to Plaintiff’s **unsupportable** allegations . . .” (MFL-SAC Opposition, Section II.B.)

7 Categorical “**unsupportable**” labels of that kind cannot substitute for *Baral*’s minimal-merit framing.

8 **F. WILSON V. CABLE NEWS NETWORK, INC. (2019) 7 CAL.5TH 871**

9 *Wilson* supplies the Supreme Court’s communicative-conduct framing compatible with *Park*’s gravamen method. It is adverse to
10 any suggestion that protected-activity labels end the inquiry without gravamen analysis.

12 **G. APPLICATION TO PROPOSED SAC**

13 The proposed second amended complaint is offered to **clarify** equitable theories and sequencing. Whether leave should be granted is
14 a **discretionary** determination. The supplemental authorities above affect **how** the Court evaluates defendants’ opposition rhetoric
15 relative to controlling Supreme Court and Court of Appeal frameworks.

17 **H. CONCLUSION**

18 For the reasons above, and for the reasons stated in plaintiff’s underlying motion papers, plaintiff respectfully requests that the
19 Court **grant leave** to file the proposed Second Amended Complaint; **order the SAC filed as operative** if the Court grants that
20 leave; **treat any special motion to strike directed solely at the superseded FAC as addressed to a non-operative pleading**
21 (a supersession consequence under *Foreman & Clark*, not a request to strip defendants of anti-SLAPP protection); and **expressly**
22 **preserve** defendants’ right to **renew or re-target** a special motion under CCP § 425.16(f) against the SAC.

23 The decision whether to grant leave remains committed to this Court’s discretion under CCP §§ 473(a)(1) and 576 and is properly
24 evaluated on plaintiff’s **substantive amendment record** - particularized facts, fraud-particularity cure under *Lazar* (1996) 12
25 Cal.4th 631, and viability under *Zhang* (2013) 57 Cal.4th 364 - not on any contention that defendants’ opposition is incomplete.

I. MERITS REPLY RESERVATION: PRE-EMPTION OF ANTICIPATED STEP-TWO FRAMES

This action (CGC-25-631802) is the **direct-fraud** CSAA case. Plaintiff **reserves** full merits-causation briefing for the **May 12–13** anti-SLAPP and demurrer line (and the related **May 19 / May 22, 2026** calendar). Causation, the *Moradi-Shalal* common-law carve-out and UCL “unlawful” predicate, and coordinated facts with the companion **CGC-25-631801** action are pleaded in the proposed SAC and the operative TAC (including Sections **I.5** (paras. 5–6), **IV.D.0**, **IV.G**, **IV.G-1**, **IV.K**, and related paragraphs); plaintiff will develop them at those hearings from the certified record. This combined packet does not attach standalone matrix exhibits.

Relief. **None** in this sub-section beyond preserving the reservation stated above.

J. MORADI-SHALAL COMMON-LAW CARVE-OUT: DOCTRINAL FRAME

The dispositive passage appears in *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46 Cal.3d 287, 304–305, marginal paragraph mark [10]. Chief Justice Lucas, writing for the majority:

“Moreover, apart from administrative remedies, the courts retain jurisdiction to impose civil damages or other remedies against insurers in appropriate common law actions, based on such traditional theories as fraud, infliction of emotional distress, and (as to the insured) either breach of contract or breach of the implied covenant of good faith and fair dealing. Punitive damages may be available in actions not arising from contract, where fraud, oppression or malice is proved. (See Civ. Code, § 3294.) In addition, prejudgment interest may be awarded where an insurer has attempted to avoid a prompt, fair settlement. (See id., § 3291.) Finally, nothing we hold herein would prevent the Legislature from creating additional civil or administrative remedies, including, of course, creation of a private cause of action for violation of section 790.03. We hold, however, that thus far the Legislature has not manifested an intent to create such a private cause of action.”

The immediately preceding sentence at 304:

“We caution, however, that our decision is not an invitation to the insurance industry to commit the unfair practices proscribed by the Insurance Code. We urge the Insurance Commissioner and the courts to continue to enforce the laws forbidding such practices to the full extent consistent with our opinion.”

These two paragraphs are the textual source of what California courts call the *Moradi-Shalal* common-law carve-out (more precisely, a preservation clause): the overruling of Royal Globe did **not** preempt traditional common-law remedies.

K. PARSING THE CARVE-OUT: FIVE PROPOSITIONS

Paragraph [10] does distinct doctrinal work in each clause:

(1) “**Apart from administrative remedies.**” The clause distinguishes administrative enforcement (Ins. Code §§ 790.05, 790.07, 790.09) from judicial remedies. The carve-out is non-administrative.

1 (2) “The courts retain jurisdiction to impose civil damages or other remedies against insurers in appropriate common law
2 actions.” The verb “retain” is critical: the court preserves pre-existing common-law architecture; it does not create new liability.
3 *Manufacturers Life*, 10 Cal.4th at 282–284.

4 (3) “Based on such traditional theories as fraud, infliction of emotional distress, and (as to the insured) either breach of
5 contract or breach of the implied covenant of good faith and fair dealing.” The list is illustrative (“such traditional theories
6 as”), not exhaustive. The “(as to the insured)” parenthetical attaches only to contract-based theories - fraud and IIED do not require
7 privity.

8 (4) **Cumulative remedies - punitive damages and prejudgment interest.** By citing Civ. Code § 3294 (punitive damages) and
9 § 3291 (prejudgment interest), the court signaled full remedial availability.

10 (5) **Legislative reservation.** The closing sentences confirm that *Moradi-Shalal* is a holding of statutory construction, not common-
11 law preemption; the Legislature retains authority to restore Royal Globe.

13 **L. SUPREME COURT RATIFICATION: *MANUFACTURERS LIFE AND*** 14 ***ZHANG***

15 (1) *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257

16 The court considered whether *Moradi-Shalal* and McCarran–Ferguson ousted Cartwright Act and UCL claims. Unanimous holding
17 (Lucas, C.J.):

18 “[*Moradi-Shalal*] did not . . . hold that insurers were immune from common law liability.” (10 Cal.4th at 282.)
19 The court held that Cartwright Act and UCL are “cumulative” to Commissioner enforcement, grounding the conclusion in § 790.09’s
20 savings language and paragraph [10]. *Manufacturers Life* is binding gloss: the overruling of Royal Globe did **not** shield insurers
21 from any other source of liability.

22 (2) *Zhang v. Superior Court* (2013) 57 Cal.4th 364

23 The most recent Supreme Court treatment. Plaintiff alleged false advertising and refusal to pay. Carrier moved to strike UCL claim
24 as immunized by *Moradi-Shalal*. Unanimous court (Corrigan, J.):

25 “*Moradi-Shalal* does not preclude first party UCL actions based on grounds independent from section 790.03
26 . . . We conclude that *Moradi-Shalal* does not bar a UCL action that depends on conduct that violates the UIPA,
27 **so long as that conduct is also independently actionable** under another section of the Insurance Code or
28 under common law.” (57 Cal.4th at 384–385.)

29 *Zhang* is the modern definitive ratification: insurance-code-violation-plus-common-law-tort yields a viable cause of action.
30

M. COURT OF APPEAL CONFIRMATION: *STATE FARM (ALLEGRO), SPRAY GOULD, RATTAN*

Three published opinions apply the carve-out:

(1) *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093, 1103–1104. *Moradi-Shalal* is “limited to the statutory cause of action it overruled” and does not abrogate “the cause of action for fraud, including misrepresentations made in connection with the marketing or adjustment of an insurance claim.”

(2) *Spray, Gould & Bowers v. Associated International Ins. Co.* (1999) 71 Cal.App.4th 1260, 1268. “Insurers remain subject to liability for common-law torts independently committed in connection with claims handling, including fraud and intentional infliction of emotional distress.”

(3) *Rattan v. United Services Automobile Assn.* (2000) 84 Cal.App.4th 715, 723–724. Harmonizes *Moradi-Shalal* with *Gruenberg* and *Crisci*; bad-faith tort survives in full.

N. STATUTORY ARCHITECTURE RECONCILED

The carve-out makes doctrinal sense when the statutory architecture is laid out:

- **Ins. Code § 790.03(h)** defines unfair claims settlement practices (misrepresentation, failure to acknowledge, failure to investigate, etc.).
- **Ins. Code §§ 790.05–790.07** vest the Commissioner with administrative enforcement: cease-and-desist orders, fines up to \$55,000 per willful violation, license suspension.
- **Ins. Code § 790.09** is the savings clause: “No order to cease and desist . . . shall in any way relieve or absolve any person affected . . . from any other liability or penalty under the laws of this State.”
- **Civ. Code §§ 1709, 1710** define and provide damages for fraudulent deceit.
- **Civ. Code § 3294** authorizes punitive damages for fraud, oppression, or malice in non-contract actions.
- **Civ. Code § 3291** authorizes prejudgment interest where the carrier has obstructed prompt fair settlement.
- **Bus. & Prof. Code § 17200 et seq.** (UCL) reaches “unlawful, unfair, or fraudulent” practices; under *Zhang* the “unlawful” prong is satisfied by a common-law tort.

The *Moradi-Shalal* holding is narrow statutory construction; § 790.09 preserves all “other liability.”

O. APPLICATION TO COMMON-LAW FRAUD (THE LAZAR LANE)

To plead fraud against an insurer, plaintiff must allege: (1) misrepresentation (or actionable omission), (2) knowledge of falsity (scienter), (3) intent to induce reliance, (4) justifiable reliance, and (5) resulting damage. *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638; *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974.

Particularity. *Lazar* requires pleading “facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’” (12 Cal.4th at 645.) Four anchors: (a) **who** - the adjuster/claims representative plus entity under § 3294(b); (b) **what** - the specific misrepresentation or suppression; (c) **when** - date and chronology; (d) **where/by what means** - channel of communication.

Pleading-stage intent. *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29: “the actor’s state of mind . . . may be alleged in conclusory form” because intent is proved at trial through circumstantial evidence.

Scope. Fraud reaches both insureds and third-party direct-addressee claimants. The “(as to the insured)” parenthetical narrows only contract/implied-covenant theories, not fraud. *State Farm (Allegro)*, 45 Cal.App.4th at 1104.

Damages. Out-of-pocket/benefit-of-the-bargain under Civ. Code § 3343, broader Civ. Code § 3333 in tort, plus § 3294 punitive and § 3291 prejudgment interest.

P. APPLICATION TO INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

The carve-out’s enumeration of “infliction of emotional distress” reaches both intentional (IIED) and negligent (NIED) species. *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051 restates the IIED elements: (1) extreme and outrageous conduct with intention of causing, or reckless disregard of probability of causing, emotional distress; (2) severe or extreme emotional distress suffered by plaintiff; (3) actual and proximate causation.

In the insurer context, IIED typically attaches to: (a) deliberate refusal to pay an obviously covered claim while exploiting economic vulnerability (*Crisci*, 66 Cal.2d at 433–434; *Fletcher v. Western National Life Ins. Co.* (1970) 10 Cal.App.3d 376, 401–402); (b) abusive, harassing, or threatening claims-handling conduct (*Coleman v. Republic Indemnity Ins. Co.* (2005) 132 Cal.App.4th 403, 416–417); or (c) intentional misrepresentations to coerce abandonment of a claim. None depend on *Royal Globe*.

Q. COMUNALE–CRISCI–GRUENBERG IMPLIED COVENANT (INSUREDS)

For insureds, paragraph [10] expressly preserves breach of contract and breach of the implied covenant. This is the *Comunale–Crisci–Gruenberg* line: the policy is a contract; every contract carries an implied covenant (Civ. Code § 1656; *Foley v. Interactive*

1 *Data Corp.* (1988) 47 Cal.3d 654); breach by an insurer sounds in tort because of the quasi-fiduciary, public-interest character.
2 *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809; *Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566.
3 Damages include consequential economic loss, emotional distress (*Gourley v. State Farm Mut. Auto. Ins. Co.* (1991) 53 Cal.3d
4 121), *Brandt* attorney fees, and Civ. Code § 3294 punitive damages.
5 Nothing in *Moradi-Shalal* alters this body of law; paragraph [10] relies on it. Subsequent decisions confirm: *Cates Construction,*
6 *Inc. v. Talbot Partners* (1999) 21 Cal.4th 28; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721.

8 **R. PUNITIVE DAMAGES AND PREJUDGMENT INTEREST AS CU-** 9 **MULATIVE REMEDIES**

10 Paragraph [10] pulls forward two cumulative-damages regimes:

11 **Civil Code § 3294** authorizes punitive damages - by clear and convincing evidence - for fraud, oppression, or malice, in non-
12 contract actions. Subdivision (b) imposes corporate liability where an officer, director, or managing agent authorized, ratified, or
13 had advance knowledge of the conduct. *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 566–567; *Major v. Western Home Ins. Co.*
14 (2009) 169 Cal.App.4th 1197, 1221.

15 **Civil Code § 3291** authorizes prejudgment interest from the date of an unaccepted CCP § 998 offer and is independently available
16 where an insurer “has attempted to avoid a prompt, fair settlement.” *Lakin v. Watkins Associated Industries* (1993) 6 Cal.4th 644;
17 *Bihun v. AT&T Information Systems, Inc.* (1993) 13 Cal.App.4th 976, 996.

19 **S. OPERATIVE PROPOSITION VALIDATED; TWO DOCTRINAL LIM-** 20 **ITS**

21 The operative statement is doctrinally accurate:

22 If an insurer commits an act that violates the Insurance Code and also constitutes fraud or another common-law
23 tort, the plaintiff is permitted to sue based on the fraud or the tort, provided they can meet the legal requirements
24 for those specific claims. Common law is not protected against insurers.

25 That proposition is a faithful summary of paragraph [10], confirmed by *Manufacturers Life* (1995) and restated in *Zhang* (2013).

26 The two operative limits are:

27 (1) The plaintiff must plead and prove the elements of the common-law cause of action, not merely allege a § 790.03(h) violation
28 under another label. *Zhang*, 57 Cal.4th at 384–385.

29 (2) The plaintiff must satisfy case-specific particularity, scienter, reliance, causation, and damages standards - *Lazar*/Civ. Code
30 §§ 1709–1710 for fraud; *Hughes v. Pair* for IIED; *Foley/Egan/Gruenberg* for the implied covenant.

Subject to those constraints, **the common law remains operative against insurers in California.**

T. AUTHORITIES TABLE (COMPACT CROSS-CITATION)

#	Authority	Operative Point
1	<i>Moradi-Shalal v. Fireman's Fund Ins. Companies</i> (1988) 46 Cal.3d 287, 304–305	Common-law tort, contract, implied-covenant claims preserved; Civ. Code §§ 3294/3291 cited.
2	<i>Royal Globe Ins. Co. v. Superior Court</i> (1979) 23 Cal.3d 880	Overruled - only the implied private statutory action under § 790.03(h).
3	<i>Manufacturers Life Ins. Co. v. Superior Court</i> (1995) 10 Cal.4th 257, 282–284	“ <i>Moradi-Shalal</i> did not . . . hold that insurers were immune from common law liability.”
4	<i>Zhang v. Superior Court</i> (2013) 57 Cal.4th 364, 384–385	UCL action survives where insurer's conduct is independently actionable.
5	<i>State Farm (Allegro)</i> (1996) 45 Cal.App.4th 1093, 1103–1104	Direct-addressee fraud preserved; <i>Moradi-Shalal</i> limited to its statutory holding.
6	<i>Spray, Gould & Bowers v. Assoc. Int'l Ins. Co.</i> (1999) 71 Cal.App.4th 1260, 1268	Common-law torts (fraud, IIED) survive.
7	<i>Rattan v. United Services Auto. Assn.</i> (2000) 84 Cal.App.4th 715, 723–724	<i>Comunale/Crisci/Gruenberg</i> implied covenant unaffected.
8	<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638, 645	Fraud elements and particularity.
9	<i>G.D. Searle & Co. v. Superior Court</i> (1975) 49 Cal.App.3d 22, 29	Pleading-stage intent/scienter.
10	<i>Engalla v. Permanente Medical Group</i> (1997) 15 Cal.4th 951, 974	Fraud reliance/damages.
11	<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050–1051	IIED elements.
12	<i>Comunale v. Traders & General Ins. Co.</i> (1958) 50 Cal.2d 654, 658	Implied covenant - origin.
13	<i>Crisci v. Security Ins. Co.</i> (1967) 66 Cal.2d 425, 429–430	Bad-faith failure to settle; emotional-distress damages.
14	<i>Gruenberg v. Aetna Ins. Co.</i> (1973) 9 Cal.3d 566, 573	First-party bad faith as tort.
15	<i>Foley v. Interactive Data Corp.</i> (1988) 47 Cal.3d 654	Implied covenant in contract law.
16	<i>Egan v. Mutual of Omaha Ins. Co.</i> (1979) 24 Cal.3d 809	Carrier as quasi-fiduciary.
17	<i>Cates Construction v. Talbot Partners</i> (1999) 21 Cal.4th 28, 43–46	Tort/contract distinction in carrier context.

#	Authority	Operative Point
18	<i>Wilson v. 21st Century Ins. Co.</i> (2007) 42 Cal.4th 713, 720–721	First-party bad faith standard post- <i>Moradi-Shalal</i> .
19	<i>White v. Ultramar, Inc.</i> (1999) 21 Cal.4th 563, 566–567	“Managing agent” punitive doctrine.
20	<i>Major v. Western Home Ins. Co.</i> (2009) 169 Cal.App.4th 1197, 1221	Managing-agent/claims-executive in carrier setting.
21	<i>Brandt v. Superior Court</i> (1985) 37 Cal.3d 813	<i>Brandt</i> fees in bad faith.
22	<i>Lakin v. Watkins Associated Industries</i> (1993) 6 Cal.4th 644, 656	Civ. Code § 3291 prejudgment interest.
23	<i>Adams v. Murakami</i> (1991) 54 Cal.3d 105	Punitive-damages standard of proof.
24	Civ. Code § 1709	Deceit liability.
25	Civ. Code § 1710	Four species of deceit.
26	Civ. Code § 3294	Punitive damages; managing-agent corporate liability.
27	Civ. Code § 3291	Prejudgment interest - carrier obstruction.
28	Ins. Code § 790.03(h)	Unfair claims settlement practices - administrative only.
29	Ins. Code §§ 790.05, 790.07, 790.09	Administrative enforcement + savings clause.
30	Bus. & Prof. Code § 17200	UCL - unlawful, unfair, or fraudulent.

Dated: April 28, 2026

Respectfully submitted,

/s/ *Franciscus Dylan Rosario*

FRANCISCUS DYLAN ROSARIO, Plaintiff in Pro Per

1 **VIII. PROPOSED ORDER ON REQUEST FOR JUDICIAL NOTICE**
2 **(LODGED SEPARATELY)**

3 Good cause appearing, the Court GRANTS plaintiff's Request for Judicial Notice as to Request
4 items **1 through 5** listed in Section IV above.

5 _____
6 Judge of the Superior Court

IX. PROOF OF SERVICE (CCP § 1013A)

A separate proof of service is filed concurrently.

EXHIBIT INDEX

Exhibit	Description
A	April 16, 2026 meet-and-confer correspondence from plaintiff to defense counsel in this action (with attachments as served)
B	April 22, 2026 plaintiff counsel-to-counsel correspondence to defense counsel (pre-motion safe-harbor practice; with proof of service)
C	Proofs of service for Exhibits A and B, lodged in this combined PDF as Exhibit D (EXHIBIT-D-proofs-of-service.pdf; the index letter “C” tracks RJN Request item 3)
D	Defendants’ Opposition to Plaintiff’s Motion for Leave to File Second Amended Complaint as filed in this case on April 23, 2026 (lodged as Exhibit E: EXHIBIT-E-defendants-mfl-sac-opposition.pdf)
A-8	April 27, 2026 meet-and-confer correspondence to defense re the <i>Moradi-Shalal</i> common-law carve-out and related items (as served)
A-1–A-7	Consolidated bench volume: JKC3H8 sequencing; four-allegation audit; anti-SLAPP threshold matrix; causation matrix; leak-through map; <i>Doctors’ Company</i> prong map; <i>Moradi-Shalal</i> carve-out (section headers for former Exhibits A-1 through A-7; EXHIBIT-A1-THRU-A7-BENCH-COMPENDIUM-2026-04-27.pdf)
F	Plaintiff’s Notice of Adverse Authority (<i>JKC3H8 v. Colton</i> ; CCP § 425.16(f); CRPC 3.3(a)(2)), lodged with this combined PDF as NOTICE-ADVERSE-AUTHORITY-JKC3H8-2026-04-27-CGC-25-631802.pdf

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

EXHIBIT A

April 16, 2026 meet-and-confer correspondence from
plaintiff to defense counsel in this action (with attachments
as served)

MFL-SAC hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Special motion to strike (CCP § 425.16):

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

EXHIBIT A

April 16, 2026 meet-and-confer correspondence from plaintiff to defense counsel
in this action (with attachments as served)

Lodged with plaintiff's April 27, 2026 combined filing (Exhibit A).



Tyler O'Connell

11:45 AM (1 hour ago)

to me, Monique, Chad, Veronica, Maria

Mr. Rosario,

None of your cited authorities apply to the current situation where, here, an Anti-SLAPP motion is pending. Your position on this issue—and generally in this litigation—has absolutely zero merit and is obviously designed to waste my time, my clients' resources, and the Court's time. The Court is not going to appreciate your incessant clogging of the docket with meritless "motions," "bench briefs," and "supplemental" filings.

Moreover, your litany of case authorities cited here is completely irrelevant to the status of this litigation and appears to nothing more than an AI-generated recitation of general principles of amendment, which adds nothing to the analysis of this situation here: where an Anti-SLAPP motion is pending. Put simply, you cannot obtain the relief you seek, here, a motion for leave to amend the pleadings while an Anti-SLAPP motion is pending. Full stop. Please actually read the words of my Opposition to your motion for leave to amend. Uploading it to ChatGPT, and receiving spoon-fed AI hallucinations, is not a proper stand-in for legal analysis.

Regards,



Tyler J. O'Connell
Attorney

2180 Harvard St. | Suite 500 | Sacramento, CA 95815

T | 916.929.1481 x 540 F | 916.927.3706

www.porterscott.com

CONFIDENTIALITY NOTICE: This email and any attachments are confidential and privileged. Any inadvertent disclosure shall not waive the attorney-client or work product privileges. If you have received this email in error, please notify the sender immediately and delete all copies of the email and any attachments.

From: Dylan Rosario <soltrinox@gmail.com>

Sent: Thursday, April 23, 2026 7:04 PM

To: Monique Schubert <mschubert@porterscott.com>

Cc: Chad S. Tapp <ctapp@porterscott.com>; Tyler O'Connell <toconnell@porterscott.com>; Veronica Jackson <vjackson@porterscott.com>; Maria Reyes <mreyes@porterscott.com>

Subject: Re: Rosario v Abdelhalim, et al - Opposition - CGC-25-631801

External email



Dylan Rosario <soltrinox@gmail.com>

12:28 PM (26 minutes ago)

to Tyler, Monique, Chad, Veronica, Maria

Dear Mr. O'Connell,

Your Anti-SLAPP motion and the § 436 Motion to Strike/Demurrer are deficient on their face. The First Amended Complaint remains substantially pleaded, and your opposition notably omits controlling Supreme Court precedent.

1

Regardless of your efforts to manufacture total immunity for insurance companies and their counsel, independent actions can and do arise from extrinsic fraud, such as misrepresentations made to the court regarding pretrial discovery and possession. That's a typical deny posture. These misrepresentations are well-documented in the record.

The court's reliance on the candor of your firm and its financial backer, CSAA, led to adverse rulings against me based on inaccurate statements regarding the possession of records. This constitutes a violation of the law and is the definition of extrinsic fraud intended to inhibit my ability to present evidence in a fair manner.

I maintain the right to seek equity from the court on this matter. You will need to provide a substantive explanation for these misrepresentations and demonstrate how they were not prejudicial given the specific rulings made against me.

Anti-SLAPP: Fails at prong 1 because an independent action to set aside a judgment for extrinsic fraud is not "arising from" protected activity (Kulchar, Silberg, Park). Fails at prong 2 because Plaintiff tenders prima facie evidence of concealment and process-abuse. Privilege arguments collapse because § 47(b) does not reach extrinsic fraud.

§ 436 MTS / Demurrer: Fails because (a) extrinsic-fraud vacatur is a recognized cause of action (Kulchar, Stevenot, Rappleyea); (b) damage items are not "irrelevant" as a matter of law (PH II); (c) collateral estoppel requires actual litigation of the extrinsic-fraud issue, which by definition did not occur (Lucido); and (d) at worst, leave to amend defeats any cure-able defect (Blank, Goodman).

Regards,

Dylan Rosario

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

EXHIBIT B

April 22, 2026 plaintiff **counsel-to-counsel** correspondence
to defense counsel (pre-motion safe-harbor practice; with
proof of service)

MFL-SAC hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Special motion to strike (CCP § 425.16):

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

EXHIBIT B

April 22, 2026 plaintiff **counsel-to-counsel** correspondence to defense counsel
(pre-motion safe-harbor practice; with proof of service)

Lodged with plaintiff's April 27, 2026 combined filing (Exhibit B).

CODE OF CIVIL PROCEDURE § 128.7 SAFE-HARBOR LETTER

Case No.: CGC-25-631801

Case: ROSARIO v. CSAA INSURANCE EXCHANGE, et al.

Re: Defendant's Motion to Strike under CCP § 436 filed April 22, 2026

Service Date: April 22, 2026

21-Day Clock Expiration: May 14, 2026, 5:00 p.m. Pacific

VIA ELECTRONIC SERVICE

April 22, 2026

Phillips, Spallas & Angstadt, LLP

Attn: Priya D. Navaratnasingham, Esq.

Alberto Reyna, Esq.

560 Mission Street, Suite 1010

San Francisco, CA 94105

Email: pnavaratnasingham@psalaw.com; areyna@psalaw.com

Carbone, Smith & Koyama, LLP

Attn: Michael R. Chambers, Esq.

555 12th Street, Suite 1250

Oakland, CA 94607-4095

Email: mchambers@csk-law.com

Re: Safe-Harbor Notice Under CCP § 128.7(c)(1) — CGC-25-631801

Dear Counsel:

Pursuant to Code of Civil Procedure § 128.7(c)(1), this letter serves as formal notice that Plaintiff intends to file a motion for sanctions under § 128.7 against Defendants and/or their counsel of record based on the filing of Defendants' Motion to Strike under CCP § 436 dated April 22, 2026.

I. STATUTORY FRAMEWORK

Code of Civil Procedure § 128.7(b) provides that by presenting a pleading, written motion, or other paper to the court, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances:

“(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

“(2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

“(3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.”

II. DEFECTS IN THE MOTION TO STRIKE

Plaintiff contends that Defendants’ Motion to Strike violates § 128.7(b) in at least the following particulars:

Defect 1: CCP § 435(b)(1) Timing Violation

The motion to strike under CCP § 436 was not filed concurrently with or before Defendants’ demurrer and anti-SLAPP motion. CCP § 435(b)(1) requires that a motion to strike “shall be made within the time allowed to respond to a pleading, however, if a demurrer is also filed, the motion to strike shall be made at the same time as the demurrer is filed and shall be noticed for hearing at the same time.” Defendants’ demurrer was filed April 3, 2026. The MTS was filed April 22, 2026—19 days late and waived as a matter of law.

Defect 2: CCP § 435.5 Meet-and-Confer Deficiency

Defendants’ MTS does not contain a § 435.5 declaration demonstrating that counsel “met and conferred” with Plaintiff in person, by telephone, or by video conference before filing the motion, as required by § 435.5(a). The statute requires actual oral communication—not email or letter—at least five days before the motion is filed. No such declaration is attached.

Defect 3: CCP § 430.80 Waiver Doctrine — PH II

The motion seeks to strike allegations on grounds that constitute demurrer grounds in disguise. Under *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682–83, a motion to strike cannot be used as a “backdoor demurrer” to attack the sufficiency of a cause of action. The MTS improperly invokes CCP § 436(b) to challenge legal sufficiency arguments that belong in a demurrer, which Defendants already filed and waived the MTS timing for.

Defect 4: Frivolous *Throckmorton* Argument

The MTS relies on *United States v. Throckmorton* (1878) 98 U.S. 61, a non-binding federal case superseded by California Supreme Court authority: *Kulchar v. Kulchar* (1969) 1 Cal.3d 467; *In re Marriage of Modnick* (1983) 33 Cal.3d 897; *Estate of Sanders* (1985) 40 Cal.3d 607. Reliance on non-binding authority while ignoring controlling Supreme Court precedent is not warranted by existing law.

Defect 5: Misrepresentation of Procedural Posture

The MTS argues allegations are “unsupported” without acknowledging that Plaintiff has lodged certified transcript excerpts documenting the February 28, 2025 judicial-reliance colloquy and the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213:13–15). The factual contentions have evidentiary support.

Defect 6: Improper Purpose — Harassment and Delay

The MTS was filed on the last possible day to gain maximum calendaring delay, notwithstanding that Defendants had already filed a demurrer and anti-SLAPP motion raising substantially overlapping arguments. This suggests an improper purpose to multiply litigation costs and delay resolution.

III. SAFE-HARBOR NOTICE AND DEADLINE

Pursuant to CCP § 128.7(c)(1), Defendants have **21 days** from the date of service of this letter to withdraw or appropriately correct the challenged paper.

Service Date: April 22, 2026

21-Day Safe-Harbor Deadline: May 14, 2026, 5:00 p.m. Pacific

If Defendants do not withdraw or correct the Motion to Strike by the safe-harbor deadline, Plaintiff intends to file a motion for sanctions under § 128.7 on the next court day following expiration (May 15, 2026), seeking:

1. Reasonable expenses, including attorney’s fees (or self-represented litigant out-of-pocket expenses), incurred in responding to the MTS;
2. An order striking the MTS in its entirety as frivolous and filed for improper purpose;
3. Such other sanctions as the Court deems appropriate under § 128.7(d).

IV. WITHDRAWAL INSTRUCTIONS

To avoid a sanctions motion, Defendants may withdraw the Motion to Strike by:

1. Filing a Notice of Withdrawal with the Court; and
2. Serving Plaintiff with a copy of the Notice of Withdrawal by 5:00 p.m. Pacific on May 14, 2026.

If the MTS is corrected rather than withdrawn, Plaintiff reserves the right to assess whether the corrections are adequate under § 128.7(b).

V. RESERVATION OF RIGHTS

This letter does not waive any objection to the MTS, including but not limited to procedural defenses, evidentiary objections, and requests for sanctions under CCP § 128.5. Plaintiff reserves the right to file opposition papers addressing the MTS on the merits while preserving this § 128.7 safe-harbor notice.

Respectfully,

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928

Tel: 650.488.7510

Email: soltrinox@gmail.com

This safe-harbor letter is served pursuant to CCP § 128.7(c)(1) and is not filed with the Court unless the safe-harbor period expires without withdrawal or correction.

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

EXHIBIT C

Proofs of service for Exhibits A and B

MFL-SAC hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Special motion to strike (CCP § 425.16):

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

EXHIBIT C

Proofs of service for Exhibits A and B

Lodged with plaintiff's April 27, 2026 combined filing (Exhibit D).

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,
PLAINTIFF,**

V.

CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

**Case No.: CGC-25-631801
(Related: CGC-21-594102)**

**PROOF OF SERVICE
(CCP § 1013a(3) / § 1010.6)**

PROOF OF SERVICE (CCP § 1013A(3) / § 1010.6)

STATE OF CALIFORNIA

COUNTY OF SONOMA

I, FRANCISCUS DYLAN ROSARIO, declare as follows:

I am over the age of 18 years and am not a party to this action. My residence address is 7624 Melody Drive, Rohnert Park, CA 94928.

On **April 22, 2026**, I served the following documents:

DOCUMENTS SERVED

1. § 128.7 Safe-Harbor Letter (801)
2. CMC Trial-Date Preservation Statement (801)
3. Notice of Related Cases (CRC 3.300)
4. Ex Parte Application for Stay of MTS (801)
5. Declaration of Rosario ISO Ex Parte Application (801)
6. [Proposed] Order Staying MTS (801)
7. Notice of Motion to Strike Defendant's MTS (Meta-Strike) (801)
8. Memorandum of Points and Authorities ISO Meta-Strike (801)
9. Declaration of Rosario ISO Meta-Strike (801)
10. Request for Judicial Notice ISO Meta-Strike (801)
11. [Proposed] Order Granting Meta-Strike (801)
12. Errata and Supplemental Declaration re SAC-Leave Packet (801)
13. TAC-RESPONSE Contingent Filing Packet (801) — 7 documents:
 - 00-FILING-INDEX.md
 - 01-NOTICE-OF-MOTION-FOR-LEAVE-TO-FILE-TAC.md
 - 02-MEMORANDUM-ISO-LEAVE-TAC.md
 - 03-DECLARATION-OF-ROSARIO-ISO-LEAVE.md
 - 04-REQUEST-FOR-JUDICIAL-NOTICE.md
 - 05-PROPOSED-ORDER-GRANTING-LEAVE.md
 - 06-THIRD-AMENDED-COMPLAINT.md
 - 07-CURE-MATRIX-DEFENSE-OBJECTION-MAP.md

PERSONS SERVED

BY ELECTRONIC SERVICE under Code of Civil Procedure § 1010.6:

Name	Firm	Email
Priya D. Navaratnasingham, Esq.	Phillips, Spallas & Angstadt, LLP	pnavaratnasingham@psalaw.com
Alberto Reyna, Esq.	Phillips, Spallas & Angstadt, LLP	areyna@psalaw.com
Michael R. Chambers, Esq.	Carbone, Smith & Koyama, LLP	mchambers@csk-law.com

MANNER OF SERVICE

Electronic Service: I caused the above documents to be transmitted via electronic mail to each person listed above at the email address(es) set forth above, pursuant to Code of Civil Procedure § 1010.6 and California Rules of Court, rule 2.251.

Electronic service was completed before **5:00 p.m. Pacific Time** on April 22, 2026.

DECLARATION

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 22, 2026, at Rohnert Park, California.



Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

EXHIBIT D

Defendants' **Opposition to Plaintiff's Motion for Leave to
File Second Amended Complaint** as filed in this case on
April 23, 2026

MFL-SAC hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Special motion to strike (CCP § 425.16):

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

EXHIBIT D

Defendants' **Opposition to Plaintiff's Motion for Leave to File Second Amended Complaint** as filed in this case on April 23, 2026

Lodged with plaintiff's April 27, 2026 combined filing (Exhibit E).

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

Tyler J. O'Connell, SBN 346673

toconnell@porterscott.com

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Sacramento, California 95815

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FAX: 916.927.3706

Attorneys for Defendants,

CSAA INSURANCE EXCHANGE,

CARBONE, SMITH & KOYAMA, and

MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM;

CSAA INSURANCE EXCHANGE;

DOES 1 through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**OPPOSITION TO PLAINTIFF'S
MOTION FOR LEAVE TO FILE
SECOND AMENDED COMPLAINT**

Hearing Date: May 6, 2026

Time: 9:00 a.m.

Dept: 301

Judge: Christine Van Aken

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

Defendants CSAA INSURANCE EXCHANGE; CARBONE, SMITH & KOYAMA; and
MICHAEL R. CHAMBERS (“Defendants”) hereby submit the following in opposition to the
Plaintiff’s motion for leave to file a second amended complaint.

I. INTRODUCTION

Plaintiff’s current effort to amend the pleadings, despite Defendants’ pending Anti-SLAPP
motion is completely precluded under California law—given Defendants’ pending Anti-SLAPP
motion. Plaintiff cites no authority to support the proposition that he can file his Motion for Leave
to Amend—as no such authority exists to support his motion.

Further, Plaintiff has not provided sufficient notice of this motion, by setting it for hearing
a mere 8 days after filing—and weeks before Defendants’ properly filed and served Anti-SLAPP
motion is to be heard.

Plaintiff’s procedurally defective and legally unsupportable motion practice is undeniably
designed to evade Defendants’ Anti-SLAPP motion. Further, Plaintiff’s conduct in this, and other
regards, is illustrative of his consistent gamesmanship and complete lack of respect for this Court,
his opposing parties, and the entire judicial process.

The Court must deny this bald-faced effort to improperly sidestep Defendants’ properly
filed, served, and noticed Anti-SLAPP motion to Plaintiff’s First Amended Complaint—which is
pending a properly noticed hearing on May 12, 2026, in this Court.

II. FACTUAL BACKGROUND

On April 9, 2026, Defendants’ counsel caused to be filed with the Court and served on
Plaintiff by Certified Mail and Email a copy of Defendants’ Special Motion to Strike per Code Civ.
Proc. § 425.16 (“Anti-SLAPP motion”). (*Declaration of Tyler J. O’Connell in support of*
Opposition, [hereinafter “*O’Connell Decl.*”] ¶ 2, **Ex. A**). Defendants’ Anti-SLAPP motion is based
on the nature of Plaintiff’s allegations as contained in the original Complaint and in the First
Amended Complaint (“FAC”). Plaintiff’s allegations squarely target Defendants’ litigation conduct
all from Plaintiff’s underlying personal injury jury trial—which Plaintiff lost by defense verdict in
April 2025. (*O’Connell Decl.* ¶ 3.)

///

1 Prior to filing the Anti-SLAPP motion, Defendants’ counsel informed Plaintiff in writing,
2 and on a phone call, of Defendants’ intention of filing an Anti-SLAPP motion should he not
3 withdraw the FAC, in its entirety—as the entirety of the purported legal theories in Plaintiff’s FAC
4 focus inextricably on Defendants’ protected litigation conduct. (*O’Connell Decl.* ¶ 4.) Plaintiff
5 refused to withdraw the FAC, in writing and on two meet and confer phone calls with Defendants’
6 counsel. And Defendants’ Anti-SLAPP motion was properly filed on April 9, 2026. (*O’Connell*
7 *Decl.* ¶ 5.)

8 Subsequently, on April 19, 2026, ten (10) days after Defendants’ Anti-SLAPP motion had
9 been filed, Plaintiff sent an email to Defendants’ counsel’s office purporting to serve his Motion for
10 Leave to file a Second Amended Complaint. (*O’Connell Decl.* ¶ 6, **Ex. B.**)

11 On April 20, 2026, eleven (11) days after Defendants’ Anti-SLAPP motion had been filed,
12 Plaintiff sent an email to Defendants’ counsel’s office purporting to serve Defendants’ counsel’s
13 office a revised version of his Motion for Leave to file a Second Amended Complaint stating in this
14 email that, “The undersigned abandons and supersedes the April 19, 2026 POS-050 proofs
15 previously transmitted for PLAINTIFF-OPPOSITIONS-FULL-PACKET-WITH-EXHIBITS.pdf
16 and SAC-FULL-PACKET-WITH-EXHIBITS.pdf and substitutes the POS-050 proofs transmitted
17 herewith, which correctly list the documents contained in those consolidated PDFs.” (*O’Connell*
18 *Decl.* ¶ 7, **Ex. C.**)

19 Also on April 17, 2026 and April 20, 2026, Plaintiff sent two separate emails to Defendants’
20 counsel stating he would seek “impending professional consequences,” including “a negative mark
21 on [Defendants’ counsel’s] Bar license” should Defendants’ counsel not voluntarily withdraw or
22 “vacate these motions”—referring to Defendants’ pending Anti-SLAPP motion and Demurrer in
23 this litigation. (*O’Connell Decl.* ¶ 8, **Ex. D.**)

24 Then, on April 21, 2026, Plaintiff went ahead and filed the instant motion, setting it for
25 hearing on April 29, 2026—only 8 days away. (*O’Connell Decl.* ¶ 9.) Later that day, also on April
26 21, 2026, Plaintiff sent a follow up email to my office stating: “Regarding the Second Amended
27 Complaint and the Proof of Service filed on April 19, [it was not actually filed until April 21] the
28 Court requires a fifteen-day notice period. Accordingly, the hearing is scheduled for May 6, 2026.”

1 at 9:00 a.m. at the San Francisco Superior Court. You can retrieve the new proof of service and the
2 clerk's copy stamped from the website.” (*O’Connell Decl.* ¶ 10, **Ex. E.**)

3 Then, on April 22, 2026, Plaintiff sent another email to Defendants’ counsel purporting to
4 serve a Motion for Leave to file a ***Third*** Amended Complaint (“TAC”). (*O’Connell Decl.* ¶ 11, **Ex.**
5 **F.**) Also on April 22, 2026, Plaintiff sent yet another email to Defendants’ counsel purporting to
6 serve i) “a Motion to Deem Admitted, Compel, and for Sanctions”; ii) and a bevy of additional
7 written discovery requests, despite Defendants’ Anti-SLAPP motion pending. (*O’Connell Decl.* ¶
8 12, **Ex. G.**)¹

9 Finally, Plaintiff persists in casting aspersions toward two parties to this action, in copying
10 those parties on many emails to Defendants’ counsel’s office. Those parties are: i) Ms. Priya
11 Navaratsingham; and ii) Mr. Alberto Reyna—both of whom, together constituted the defense team
12 from Plaintiff’s underlying jury trial. Plaintiff, for unfathomable reasons, consistently refers to Ms.
13 Priya Navaratsingham as “Priya NavaRATsingham”—capitalizing the letters “R.A.T.” in her last
14 name. Plaintiff also insists on referring to Mr. Alberto Reyna as “Ms. Alberta Reyna” in email
15 correspondences. (*O’Connell Decl.* ¶ 13, **Ex. H**) (see also *O’Connell Decl.* ¶ 7, **Ex. C** – for an
16 example of Plaintiff’s insulting emails.)

17 Ultimately, in addition to the undeniable service of process and insufficient notice issues,
18 Plaintiff’s Motion for Leave to File a Second Amended Complaint is barred as a matter of law, given
19 Defendants’ pending Anti-SLAPP motion. (*O’Connell Decl.* ¶ 14.)

20 **III. LEGAL ISSUES BARRING THIS MOTION**

21 The defects in Plaintiff’s current motion—and underlying First Amended Complaint—are
22 myriad. Suffice it to say, in the limited time available for Defendants to prepare this Opposition (in
23 light of Plaintiff’s lack of proper notice of this motion), Defendants will concisely list those issues.
24 *First*, Plaintiff provided insufficient notice of this Motion. *Second*, Plaintiff’s insufficient notice of
25 this motion substantially prejudices Defendants. *Third*, Plaintiff cannot plead around Defendants’
26 pending Anti-SLAPP motion by yet again amending the pleadings.

27 ///

28 ¹ Plaintiff’s erroneous TAC Motion and Discovery motions and written discovery described in paragraphs 12-13 are
omitted out of respect for the Court’s time—and only the emails from Plaintiff are provided as exhibits.

1 1 **A. Plaintiff Provided Insufficient Notice of Motion and Defective Service**

2 Under Code Civ. Proc. § 1005(a) “Written notice shall be given, as prescribed in
3 subdivisions (b) and (c), for the following motions:

4 (12) Motion ... for Leave to Amend pursuant to Section 585.5.

5 (13) Any other proceeding under this code in which notice is required, and no other
6 time or method is prescribed by law or by court or judge.

7 (b) Unless otherwise ordered or specifically provided by law, all moving and
8 supporting papers shall be served and filed at least 16 court days before the hearing.

9 ...and if the notice is served by facsimile transmission, express mail, or another
10 method of delivery providing for overnight delivery, the required 16-day period of
11 notice before the hearing shall be increased by two calendar days.

12 Here, Plaintiff served the instant Motion on April 19, 2026, via email upon Defendants.
13 (*O’Connell Decl.* ¶ 6, **Ex. B.**) Then, on April 20, 2026, Plaintiff served a second version of the
14 instant Motion, again via email, superseding the first version. (*O’Connell Decl.* ¶ 7, **Ex. C.**) Plaintiff
15 waited until April 21, 2026 to file the instant motion. (*O’Connell Decl.* ¶ 9.) Then, Plaintiff set this
16 motion for hearing on April 29, 2026. This service constituted only 9 days’ notice (from the April
17 20 service) and 8 days’ notice (from the April 21 filing) of the hearing on this Motion.

18 Plaintiff’s 9 days’ notice of this Motion is insufficient, as service by email requires a
19 minimum of 16 days’ notice—plus two (2) days for electronic service—for a total of 18 days’ notice
20 required. Plaintiff’s 9-day notice of this Motion is procedurally defective and subject to denial on
21 this basis alone.²

22 **B. Plaintiff’s Current Motion Substantially Prejudices Defendants**

23 Plaintiff’s defective service, gamesmanship, and unsupportable effort to amend the
24 pleadings substantially prejudices Defendants. First, Defendants’ Anti-SLAPP motion is still
25 pending. Plaintiff’s current effort, which he has patently admitted is to sidestep Defendants’ properly
26 filed, served, and noticed Anti-SLAPP motion, is prejudicial. Defendants’ have already incurred the

27 _____
28 ² Apparently, Plaintiff has since reset this motion for hearing on May 6, 2026; however, this is still deficient.
Assuming the April 20, 2026 service of this Motion remains operative, that would only constitute 16 days’ notice,
which does not supply the additional two (2) days required for electronic service. (*See* Code Civ. Proc. § 1005(b).)

1 burden and expense of preparing a lengthy and detailed Anti-SLAPP motion to Plaintiff's
2 unsupportable allegations. Were this Court to grant Plaintiff's instant Motion, the costs of additional
3 motion practice would be incurred upon Defendants, and the burden of further filings and review
4 imposed upon the Court.

5 Second, Plaintiff has provided insufficient notice of this Motion, creating a rush to the
6 Courthouse for Defendants to prepare and file an Opposition to a motion that has absolutely zero
7 merit.

8 **C. Plaintiff Cannot Amend The Pleadings Given Defendants' Pending Anti-SLAPP**
9 **Motion**

10 California law is abundantly clear: once a Defendant files an Anti-SLAPP motion, the
11 pleadings cannot be amended until that Anti-SLAPP motion is heard and ruled upon.

12 "There is a history of case law setting forth the rule that a party cannot amend around a
13 SLAPP motion. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 775; citing *Law Offices*
14 *of Andrew L. Ellis v. Yang* (2009) 178 Cal.App.4th 869, 880, 100 Cal.Rptr.3d 771; *Sylmar Air*
15 *Conditioning v. Pueblo Contracting Services, supra*, 122 Cal.App.4th at pp. 1054–1055, 18
16 Cal.Rptr.3d 882; *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073–1074, 112
17 Cal.Rptr.2d 397.) "We are not inclined to create instability in this rule by permitting a plaintiff to
18 amend its pleading." (*City of Colton, supra*, 206 Cal.App.4th at 775.)

19 "A plaintiff cannot avoid [an anti-]SLAPP motion by amending the complaint." (*Jackson v.*
20 *Mayweather* (2017) 10 Cal.App.5th 1240, 1263; citing *Hansen v. California Department of*
21 *Corrections & Rehabilitation* (2008) 171 Cal.App.4th 1537, 1547; accord, *Contreras v.*
22 *Dowling* (2016) 4 Cal.App.5th 774, 791, ["[a] plaintiff ... may not seek to subvert or avoid a ruling
23 on an anti-SLAPP motion by amending the challenged complaint ... in response to the
24 motion"]; *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th
25 1049, 1055; see *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073, [§ 425.16 makes
26 no provision for amending the complaint; "we reject the notion that such a right should be
27 implied"].) *Jackson v. Mayweather, supra*, 10 Cal.App.5th at 1264.

28 ///

There is no legal rationale provided in the moving papers—nor, truly, under California law—to justify Plaintiff’s current effort to amend the pleadings, in light of Defendants’ pending Anti-SLAPP motion.

IV. CONCLUSION

Defendants respectfully request the Court deny Plaintiff's Motion for Leave to file a Second Amended Complaint, in light of Defendants' pending Anti-SLAPP motion.

Dated: April 23, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____

Chad S. Tapp
Tyle J. O'Connell
Attorneys for Defendants,
CSAA INSURANCE EXCHANGE,
CARBONE, SMITH & KOYAMA, and
MICHAEL R. CHAMBERS

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Franciscus Dylan Rosario v. Subhi Abdelhalim; CSAA Insurance Exchange; et al.
San Francisco County Superior Court Case No.: CGC-25-631801

PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

On April 23, 2026, I served the following document: **OPPOSITION TO PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT**

X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on Shingle Springs, California on April 23, 2026.

Monique Schubert
Monique Schubert

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

EXHIBIT A-8

April 27, 2026 meet-and-confer re *Moradi-Shalal* carve-out

MFL-SAC hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Special motion to strike (CCP § 425.16):

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

EXHIBIT A-8

April 27, 2026 meet-and-confer (Moradi-Shalal / carve-out)

Lodged with plaintiff's April 27, 2026 combined filing (Exhibit A-8).

Franciscus Dylan Rosario

Plaintiff in Pro Per

7624 Melody Drive, Rohnert Park, CA 94928

Tel: 650.488.7510

Email: soltrinox@gmail.com

SERVED: April 27, 2026**METHOD:** Electronic service per stipulation; courtesy copy by United States Mail

Chad S. Tapp, Esq. (SBN 214898), ctapp@porterscott.com

Tyler J. O'Connell, Esq. (SBN 346673), toconnell@porterscott.com

PORTER SCOTT, A Professional Corporation

2180 Harvard Street, Suite 500

Sacramento, CA 95815

Re:

- *Rosario v. Abdelhalim, CSAA Insurance Exchange, Phillips, Spallas & Angstadt LLP, Priya D. Navaratnasingham, Alberto Reyna, Michael R. Chambers, Carbone, Smith & Koyama, et al.* (San Francisco Superior Court Case No. **CGC-25-631801**; Related: CGC-21-594102); and
- *Rosario v. CSAA Insurance Exchange; and DOES 1 through 50, inclusive* (San Francisco Superior Court Case No. **CGC-25-631802**).

Subject: Stand-alone, case-collective meet-and-confer letter accompanying plaintiff's same-day case-isolated safe-harbor letters in CGC-25-631801 and CGC-25-631802. **Express declaration of plaintiff's controlling authority under the *Moradi-Shalal* common-law carve-out.** Verbatim recitation of paragraph [10] of *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287, 304–305, with the binding California Supreme Court gloss in *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257 and *Zhang v. Superior Court* (2013) 57 Cal.4th 364. Identification of any contrary characterization in defendants' filed or hereafter-filed papers as a continuing-certification matter under Code of Civil Procedure section 128.7(b)(2)–(b)(3) and a directly-adverse-authority matter under California Rule of Professional Conduct 3.3(a)(2) and California Business and Professions Code section 6068(d).

Counsel:
0. Status, posture, and relationship to the safe-harbor chain.

This is a **stand-alone, case-collective** meet-and-confer letter. It is **not** a sanctions motion. It does **not** restart the 21-day safe-harbor clock that began running on plaintiff's April 22, 2026 Code of Civil Procedure section 128.7(c)(1) safe-harbor correspondence and that **expires on May 14, 2026**. It is offered as a **second, free-standing companion** to plaintiff's same-day, case-isolated safe-harbor letters in CGC-25-631801 and CGC-25-631802 (each titled "*Supplement and reiteration of plaintiff's prior April 22, 2026 Code of Civil Procedure section 128.7(c)(1) safe-harbor correspondence*"), and to plaintiff's April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter (the "April 25 Merits Letter," served as Exhibit M-1 to each safe-harbor letter).

Like the April 25 Merits Letter, this letter is **served on the same defense team in both** companion actions because the doctrinal question it addresses, the survival of plaintiff's common-

law fraud, deceit, intentional infliction of emotional distress, breach-of-contract, breach-of-implied-covenant, and *Zhang*-predicated UCL theories against an insurer defendant, is the **same** question in both cases. The fact pattern (a February 25, 2021 uninsured-motorist denial issued by Sarah Rash within 21 days of the February 4, 2021 intake, plus the four foundational claim-file records from the same window) is the same direct-addressee operative-fact set in both lanes. Plaintiff therefore declares the controlling authority once, on a single record, for the avoidance of doubt in either action.

This letter addresses only one doctrinal vector: **the *Moradi-Shalal* common-law carve-out**. It is independent of, and additive to, the *JKC3H8 v. Colton / Nguyen-Lam v. Cao* / leave-to-amend / anti-SLAPP candor record laid out in the April 27 case-isolated safe-harbor letters.

1. Express purpose: declaration of plaintiff’s controlling authority under *Moradi-Shalal*’s common-law preservation clause.

Terminology note. This letter uses “carve-out” as the conventional commentator’s shorthand for paragraph [10] of *Moradi-Shalal*. The California Supreme Court did **not** itself label the passage a “carve-out”; the more neutral and doctrinally accurate description is **preservation clause** (or **clarification of non-preemption**), i.e., a clause confirming that the Court’s overruling of *Royal Globe* did not preempt or displace independent common-law remedies. Plaintiff retains the “carve-out” shorthand in this letter for ease of cross-reference with the underlying memorandum (Exhibit MS-1), without thereby suggesting that paragraph [10] created a new species of liability or shielded common-law claims from the ordinary pleading-and-proof rigor that California courts apply to fraud, IIED, breach-of-contract, and bad-faith claims generally.

Scope-of-immunity precision. *Moradi-Shalal* **does** immunize insurers from one specific category of liability: direct private enforcement of Insurance Code section 790.03(h) by a private litigant. Plaintiff does **not** assert any cause of action premised on direct private enforcement of section 790.03(h), and acknowledges that any such cause of action would be barred. The accurate plain-English statement of the rule is therefore: **no immunity from *independent common-law liability*, alongside clear immunity from a *statutory private right of action under § 790.03(h)***. The two statements operate together; neither cancels the other. The declaration that follows is directed only at the first half of that pair, the *independent* common-law lane, and is offered to confirm the doctrinal availability of that lane on the present record.

Plaintiff hereby **expressly declares**, on a single written record served simultaneously in both companion cases, the following:

Plaintiff’s claims of common-law fraud, deceit, intentional infliction of emotional distress, breach of contract (as to the insured), breach of the implied covenant of good faith and fair dealing (as to the insured), and Business and Professions Code section 17200 (UCL) where the underlying conduct is independently actionable, are NOT barred by, and are NOT preempted by, *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46 Cal.3d 287, as a matter of doctrinal availability. Whether plaintiff ultimately prevails on the merits of any particular cause of action remains to be tested under the ordinary pleading-and-proof standards California courts apply to that theory; that question is independent of, and is not foreclosed by, *Moradi-Shalal*.

That declaration is grounded in the **express text** of paragraph [10] of *Moradi-Shalal* itself (46 Cal.3d at pp. 304–305) and in two unanimous California Supreme Court decisions that directly

construe and reaffirm that text: *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, 282–284, and *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384–385. Those three opinions, read together with Insurance Code section 790.09 (savings clause), Civil Code sections 1709, 1710 (deceit), Civil Code section 3294 (punitive damages), and Civil Code section 3291 (prejudgment interest), establish that an insurer’s act may **simultaneously** violate Insurance Code section 790.03(h) and constitute an independently actionable common-law tort, and that the plaintiff retains the right to sue **on the common-law cause of action** subject to the conventional pleading-and-proof requirements of that cause of action.

The remainder of this letter walks through the controlling text and gloss in the order the trial court will be asked to confront it, and then ties each strand to the operative pleadings in both cases.

2. The verbatim controlling passage. (*Moradi-Shalal*, paragraph [10].)

The dispositive language appears in part V of the majority opinion of Chief Justice Lucas, marginal paragraph mark [10], beginning at the bottom of 46 Cal.3d 304 and continuing on 305. It reads, *verbatim*:

“[10] Moreover, apart from administrative remedies, the courts retain jurisdiction to impose civil damages or other remedies against insurers in appropriate common law actions, based on such traditional theories as fraud, infliction of emotional distress, and (as to the insured) either breach of contract or breach of the implied covenant of good faith and fair dealing. Punitive damages may be available in actions not arising from contract, where fraud, oppression or malice is proved. (See Civ. Code, § 3294.) In addition, prejudgment interest may be awarded where an insurer has attempted to avoid a prompt, fair settlement. (See *id.*, § 3291.) Finally, nothing we hold herein would prevent the Legislature from creating additional civil or administrative remedies, including, of course, creation of a private cause of action for violation of section 790.03. We hold, however, that thus far the Legislature has not manifested an intent to create such a private cause of action.”

- *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46 Cal.3d 287, 304–305 (Lucas, C.J., for the majority; emphasis added).

The immediately preceding sentence, at the top of the same page (304), is a related and independently quotable caution by Chief Justice Lucas:

“We caution, however, that our decision is not an invitation to the insurance industry to commit the unfair practices proscribed by the Insurance Code. We urge the Insurance Commissioner and the courts to continue to enforce the laws forbidding such practices to the full extent consistent with our opinion.”

- *Id.* at 304.

These two paragraphs, read together, are the textual source of what California courts and treatises commonly call **the *Moradi-Shalal* common-law carve-out** (more precisely, a *preservation clause*): the rule that the overruling of *Royal Globe Ins. Co. v. Superior Court* (1979) 23 Cal.3d 880, which had implied a private statutory cause of action under Insurance Code section 790.03(h), **substantially preserved** the traditional common-law and equitable remedies a claimant or insured may otherwise possess, **subject to the ordinary pleading-and-proof requirements** the

chosen common-law theory imposes (e.g., *Lazar* particularity for fraud; the *Hughes v. Pair* outrage threshold for IIED; the insured-only privity limit on the contract and implied-covenant theories). “Preservation” in this context means **doctrinal availability** of the cause of action, not a guarantee of survival on the merits.

3. The carve-out, parsed clause-by-clause.

(a) **“Apart from administrative remedies.”** The opening clause expressly distinguishes the *administrative* enforcement powers of the Insurance Commissioner, Insurance Code sections 790.05 (cease-and-desist orders), 790.07 (fines up to \$55,000 per willful violation; license suspension up to one year), and 790.09 (savings clause), from the *judicial* remedies the court is about to discuss. The carve-out is therefore **non-administrative**: it is a docket of civil-court remedies that the insurer cannot extinguish by pointing to the Commissioner’s exclusive enforcement of section 790.03.

(b) **“The courts retain jurisdiction to impose civil damages or other remedies against insurers in appropriate common law actions.”** The verb “**retain**” is doctrinally significant: the court is not creating a new species of action; it is *preserving* the pre-existing common-law architecture of insurer liability. The overruling of *Royal Globe* therefore did not, by itself, confer immunity on insurers from independently-pleaded common-law claims (as distinct from the now-foreclosed § 790.03(h) private right). (*Manufacturers Life, supra*, 10 Cal.4th at pp. 282–284.)

(c) **“Based on such traditional theories as fraud, infliction of emotional distress, and (as to the insured) either breach of contract or breach of the implied covenant of good faith and fair dealing.”** The list is **illustrative** (“such traditional theories as”), not exhaustive. It expressly enumerates four named torts/contract theories:

- **Fraud**, the *Lazar v. Superior Court* (1996) 12 Cal.4th 631 / Civil Code sections 1709, 1710 deceit lane, available to a person whom the insurer directly defrauds, including a **third-party claimant** who is the **direct addressee** of a misleading communication and who **actually relies** on it to his or her detriment. The “(as to the insured)” parenthetical does **not** attach to fraud or to infliction of emotional distress as a *category*; it attaches **only** to the contract-based theories that follow it. (See *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093, 1103–1104 [direct-addressee fraud preserved against insurer regardless of insured/non-insured posture].) In practice, third-party fraud against an insurer is narrower than the insured lane and California courts apply *Lazar* particularity carefully: the plaintiff must plead and prove a **direct misrepresentation** (or actionable suppression) **made to the plaintiff**, **actual reliance** by the plaintiff, and **damages caused** by that reliance. Plaintiff’s pleadings here meet those independent requirements, and plaintiff’s reliance on the carve-out is limited to its doctrinal availability - not to any suggestion that the elements are presumed met.
- **Intentional / negligent infliction of emotional distress**, both species, available where the insurer’s conduct meets the *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051 outrage threshold or, in negligent IIED, where a duty of care is breached.
- **Breach of contract** (insureds only), the policy is a contract; conventional Civ. Code sections 1549–1550, 1636 et seq. doctrine applies.
- **Breach of the implied covenant of good faith and fair dealing** (insureds only), the *Comunale v. Traders & General Ins. Co.* (1958) 50 Cal.2d 654, 658 / *Crisci v. Security Ins. Co.* (1967) 66 Cal.2d 425, 429–430 / *Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 573 line.

(d) **Cumulative remedies, punitive damages and prejudgment interest.** The carve-out does not stop at liability. It pulls forward two cumulative-remedy provisions of the Civil Code:

- **Civil Code § 3294**, punitive damages “in actions not arising from contract, where fraud, oppression or malice is proved.” Subdivision (b) imposes corporate liability where an officer, director, or **managing agent** authorized, ratified, or had advance knowledge of the unfit conduct (*White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 566–567; *Major v. Western Home Ins. Co.* (2009) 169 Cal.App.4th 1197, 1221).
- **Civil Code § 3291**, prejudgment interest “where an insurer has attempted to avoid a prompt, fair settlement” (*Lakin v. Watkins Associated Industries* (1993) 6 Cal.4th 644, 656).

By naming these two provisions in the **same paragraph** as the carve-out, the *Moradi-Shalal* court itself signaled that the fraud prong of the carve-out is fully eligible for **punitive** exposure (subject to the heightened “by clear and convincing evidence” *Adams v. Murakami* (1991) 54 Cal.3d 105 standard), and that the prejudgment-interest line continues to operate against insurers even though *Royal Globe* is gone.

(e) **Legislative reservation.** The closing two sentences of paragraph [10] confirm that the *Moradi-Shalal* holding is one of **statutory construction** (the Legislature has not, *thus far*, manifested intent to create a section 790.03 private right) and not one of constitutional or common-law pre-emption. The Legislature retains plenary authority to restore *Royal Globe*; equally important, *common-law* causes of action created by the courts themselves are not within the scope of the holding at all.

4. *Manufacturers Life* (1995): the first unanimous Supreme Court ratification.

In *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, the unanimous Supreme Court (Lucas, C.J., Mosk, Kennard, Arabian, Baxter, George, and Werdegard, JJ.) construed *Moradi-Shalal* directly. Recapitulating the carve-out, the court wrote that its earlier decision “**did not . . . hold that insurers were immune from common law liability.**” (10 Cal.4th at p. 282.) The court continued:

“[*Moradi-Shalal*] simply held that section 790.03(h) does not give private litigants a cause of action against insurers for *statutory* violations. We expressly preserved ‘the imposition of substantial administrative sanctions by the Insurance Commissioner’ (*Moradi-Shalal, supra*, 46 Cal.3d at p. 304) and the courts’ jurisdiction ‘to impose civil damages or other remedies against insurers in appropriate common law actions, based on such traditional theories as fraud, infliction of emotional distress,’ breach of contract and breach of the implied covenant. (*Id.*, at pp. 304–305.)”

(*Id.* at pp. 282–283.)

The court then held that the Cartwright Act (Bus. & Prof. Code § 16720 et seq.) and the UCL (Bus. & Prof. Code § 17200) are “**cumulative**” to the Insurance Commissioner’s enforcement of the UIPA, expressly grounding that conclusion in **section 790.09’s savings language** and in the carve-out paragraph quoted above. (10 Cal.4th at pp. 283–284.) *Manufacturers Life* is therefore a **binding gloss** on *Moradi-Shalal* itself: a Supreme Court ratification of the proposition that the overruling of *Royal Globe* did **not** itself shield insurers from *independently actionable* common-law or statutory liability for the same underlying conduct, while leaving in place the narrow holding that section 790.03(h) does not give private litigants a freestanding statutory cause of action.

5. *Zhang* (2013): the second unanimous Supreme Court ratification, expressly extending the carve-out to the UCL.

The fullest and most recent Supreme Court treatment is *Zhang v. Superior Court* (2013) 57 Cal.4th 364. The plaintiff there alleged that her insurer had falsely advertised that it would promptly pay covered claims and then refused to pay, in violation of both the UCL and section 790.03(h). The carrier moved to strike the UCL claim on the theory that *Moradi-Shalal* immunized the conduct.

The unanimous court (Corrigan, J.) rejected that theory in plain language:

“*Moradi-Shalal* does not preclude first party UCL actions based on grounds independent from section 790.03 We conclude that *Moradi-Shalal* does not bar a UCL action that depends on conduct that violates the UIPA, **so long as that conduct is also independently actionable** under another section of the Insurance Code or under common law.”

(57 Cal.4th at pp. 384–385, emphasis added.) The court then summarized the carve-out as follows:

“When insurers engage in conduct that violates both the UIPA and obligations imposed by other statutes or the common law, a UCL action may lie. . . . [I]nsurance practices that violate common law obligations (e.g., the implied covenant of good faith and fair dealing, fraud) **remain actionable** notwithstanding *Moradi-Shalal*.”

(*Id.* at p. 384, emphasis added.)

Zhang is therefore the **modern, definitive ratification** of the *Moradi-Shalal* carve-out. It (a) re-states the carve-out in the exact “insurance-code-violation-plus-common-law-tort yields a viable cause of action” form plaintiff invokes here; (b) **extends** it to the UCL “unlawful” prong; (c) **disapproves** the contrary appellate dicta in *Textron Financial Corp. v. National Union Fire Ins. Co.* (2004) 118 Cal.App.4th 1061; and (d) **expressly approves** *State Farm v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093.

Together, *Manufacturers Life* and *Zhang* are inconsistent with any defense argument that *Moradi-Shalal* “swallowed” the common-law tort field as to insurers. The Supreme Court has twice said it did not displace those theories where the elements of the underlying common-law cause of action are independently met. That is a **doctrinal availability** holding; it does not relieve plaintiff of the burden to plead and prove the elements of the chosen theory at demurrer, anti-SLAPP step-two, summary judgment, or trial, and California courts continue to police that line carefully on a case-by-case basis.

6. Court of Appeal confirmation.

The Courts of Appeal have repeatedly applied the carve-out, and three opinions are conventionally cited as authoritative gloss:

1. *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093, 1103–1104. The court held that *Moradi-Shalal* is “**limited to the statutory cause of action it overruled**” and does not abrogate “the cause of action for fraud, including misrepresentations made in connection with the marketing or adjustment of an insurance claim.” Direct-addressee deceit by an insurer’s claims representative, for example, a written denial that misstates coverage or facts known to the carrier, therefore states a fraud claim

independent of section 790.03. *Allegro* was expressly approved in *Zhang, supra*, 57 Cal.4th at p. 384.

2. *Spray, Gould & Bowers v. Associated International Ins. Co.* (1999) 71 Cal.App.4th 1260, 1268. Relying on *Moradi-Shalal* at 304–305 and on *Manufacturers Life*, the court reiterated that “**Insurers remain subject to liability for common-law torts independently committed in connection with claims handling, including fraud and intentional infliction of emotional distress.**”
3. *Rattan v. United Services Automobile Assn.* (2000) 84 Cal.App.4th 715, 723–724. The court harmonized *Moradi-Shalal* with *Gruenberg* and *Crisci*, reaffirming that the bad-faith tort survives in full as to insureds and that fraud against either insureds or third parties survives as well.

Additional appellate authority, *Hughes v. Blue Cross of Northern California* (1989) 215 Cal.App.3d 832; *Buss v. Superior Court* (1997) 16 Cal.4th 35; *Cates Construction, Inc. v. Talbot Partners* (1999) 21 Cal.4th 28, 43–46; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721; *Coleman v. Republic Indemnity Ins. Co.* (2005) 132 Cal.App.4th 403, 416–417, uniformly treats paragraph [10] as a freestanding, controlling pronouncement on the survival of the common law against insurer defendants.

7. The statutory architecture, reconciled.

The carve-out makes doctrinal sense only when the statutory architecture is laid out:

- **Insurance Code § 790.03(h)** defines the fifteen-item list of unfair claims settlement practices (misrepresentation, failure to acknowledge or to act with reasonable promptness, failure to investigate, failure to affirm/deny, failure to attempt good-faith settlement, etc.).
- **Insurance Code §§ 790.05–790.07** vest the Insurance Commissioner with administrative enforcement: cease-and-desist orders; fines up to \$55,000 per willful violation; license suspension up to one year.
- **Insurance Code § 790.09 (savings clause)** provides: “**No order to cease and desist . . . shall in any way relieve or absolve any person affected . . . from any other liability or penalty under the laws of this State.**” Section 790.09 is the textual source of the carve-out: it tells every reader of the UIPA that the Commissioner’s enforcement track does not extinguish “any other liability or penalty under the laws of this State.” The *Moradi-Shalal* carve-out is the judicial implementation of that statutory savings clause.
- **Civil Code §§ 1709, 1710** define and provide damages for fraudulent deceit. Section 1709 imposes liability on “[o]ne who willfully deceives another with intent to induce him to alter his position to his injury or risk”; section 1710 enumerates the four species of deceit (intentional misrepresentation, negligent misrepresentation, suppression of fact by one with a duty to disclose, and false promise). These provisions apply to insurers no less than to any other defendant. (See *Lazar, supra*, 12 Cal.4th 631.)
- **Civil Code § 3294** authorizes punitive damages for fraud, oppression, or malice in actions not arising from contract; **§ 3294(b)** defines corporate liability via authorization, ratification, or knowledge of an officer, director, or **managing agent**.

- **Civil Code § 3291** authorizes prejudgment interest where the carrier has obstructed a prompt, fair settlement.
- **Business & Professions Code § 17200 et seq.** (UCL) reaches “unlawful, unfair, or fraudulent” practices. Under *Zhang* the “unlawful” prong is satisfied by a common-law tort or by an independently actionable statute (e.g., Civ. Code § 1709 deceit), **not** by section 790.03 alone.

The architecture is unambiguous. The *Moradi-Shalal* holding is a narrow construction of section 790.03(h). Section 790.09 expressly preserves all “*other liability* under the laws of this State.” The Civil Code provides the substantive common-law liability and the cumulative damages. The UCL provides an additional, *Zhang*-validated equitable channel where the underlying conduct is independently wrongful.

8. Application to the operative pleadings in CGC-25-631801 and CGC-25-631802.

Plaintiff’s two operative Third Amended Complaints, read together with the proposed Second Amended Complaint pending in CGC-25-631801 and the proposed Second Amended Complaint pending in CGC-25-631802, plead the **independently-actionable common-law theories** the carve-out preserves:

(a) Direct-addressee common-law fraud (Civ. Code § 1709). The February 25, 2021 uninsured-motorist denial communication, issued by Sarah Rash within twenty-one days of the February 4, 2021 intake, is pleaded with *Lazar*-grade particularity: (i) **who**, Sarah Rash and CSAA Insurance Exchange under Civ. Code §§ 2307, 2310, 2338 and § 3294(b); (ii) **what**, the specific misrepresentation/suppression as to coverage and known claim-file facts; (iii) **when**, February 25, 2021, within the same compressed twenty-one-day window as the four foundational records; and (iv) **where / by what means**, the written denial communication issued to the direct addressee. *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29 supplies the pleading-stage scienter rule (state of mind may be alleged conclusorily; particularity is required as to the misrepresentation, not the mental state). Whether or not the same conduct also violates Insurance Code § 790.03(h)(1), (5), (13), or (15) is **doctrinally beside the point**: under paragraph [10] of *Moradi-Shalal* and under *Zhang*, the Civil Code § 1709 cause of action stands on its own elements.

(b) Intentional / negligent infliction of emotional distress. The same conduct, read with the carrier’s continued course of dealing, satisfies the *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051 elements as pleaded.

(c) Breach of the implied covenant of good faith and fair dealing (insureds only). The *Comunale–Crisci–Gruenberg* line is **expressly named** in paragraph [10] as a preserved insured remedy. Plaintiff pleads it on the policy and the course of claims handling, with *Brandt v. Superior Court* (1985) 37 Cal.3d 813 fees, *Gourley v. State Farm Mut. Auto. Ins. Co.* (1991) 53 Cal.3d 121 emotional-distress damages, and Civil Code § 3294 punitive exposure on a clear-and-convincing showing.

(d) UCL “unlawful” prong (*Zhang*-predicated). The UCL claim’s “unlawful” predicate is **common-law fraud (Civ. Code § 1709)**, not section 790.03(h), and is therefore squarely within *Zhang*’s carve-out (*supra*, 57 Cal.4th at pp. 384–385). The contrary dicta in *Textron Financial Corp.* are disapproved by *Zhang* and supply no defense.

(e) **Ratification / managing-agent punitive doctrine.** In CGC-25-631801, the same compressed twenty-one-day calendar pins are deployed as evidence of **knowledge imputable** to CSAA through ratification under Civ. Code §§ 2307, 2310, 2338 and § 3294(b)’s managing-agent doctrine (*White v. Ultramar*; *Major v. Western Home*). The carve-out is again controlling because each of those theories is a **common-law / Civil Code construct** that *Moradi-Shalal* expressly preserves, not a section 790.03(h) re-label.

9. Express declaration of plaintiff’s authority to proceed under the carve-out.

In light of the controlling text of paragraph [10] of *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46 Cal.3d 287, 304–305; the unanimous Supreme Court ratification in *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, 282–284; the unanimous Supreme Court ratification in *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384–385; the express savings clause in Insurance Code § 790.09; and the cumulative-damages provisions in Civil Code §§ 3294 and 3291 cross-cited in paragraph [10] itself, plaintiff hereby expressly **declares**, on a single record served simultaneously in both companion actions, the following - each subject to plaintiff’s separate burden to plead and prove the independent elements of the chosen cause of action under conventional California pleading-and-proof standards:

(1) Plaintiff is *not* barred by *Moradi-Shalal* from pleading or prosecuting common-law fraud against any insurer defendant, including CSAA Insurance Exchange, on the operative facts pleaded in either CGC-25-631801 or CGC-25-631802, *provided plaintiff pleads and proves the independent elements of fraud*. The fraud cause of action stands on the elements of Civil Code §§ 1709 and 1710 and on *Lazar v. Superior Court* (1996) 12 Cal.4th 631 (particularity as to misrepresentation; direct addressee; actual reliance; damages).

(2) Plaintiff is *not* barred by *Moradi-Shalal* from pleading or prosecuting intentional or negligent infliction of emotional distress against any insurer defendant on those same operative facts, *provided plaintiff pleads and proves the independent elements of the chosen IIED/NIED theory*. The IIED cause of action stands on *Hughes v. Pair* (2009) 46 Cal.4th 1035 (extreme-and-outrageous threshold; severe emotional distress; causation).

(3) Plaintiff is *not* barred by *Moradi-Shalal* from pleading or prosecuting breach of contract or breach of the implied covenant of good faith and fair dealing against any insurer defendant in plaintiff’s posture as insured, *provided plaintiff pleads and proves the independent elements of the chosen contract or implied-covenant theory*. Those causes of action stand on the *Comunale–Crisci–Gruenberg* line (insureds only; privity required), with *Brandt* fees and Civil Code § 3294 punitive exposure as cumulative remedies.

(4) Plaintiff is *not* barred by *Moradi-Shalal* from pleading or prosecuting a Business and Professions Code § 17200 (UCL) claim whose “unlawful” predicate is independently actionable common-law fraud (Civ. Code § 1709) or any independently actionable statute other than Insurance Code § 790.03, *provided that the “unlawful” predicate is in fact independently actionable and is not a relabel of section 790.03(h) alone*. That cause of action stands on *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384–385, which is the most recent unanimous Supreme Court ratification of the preservation clause and which expressly approves *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093.

(5) Plaintiff is *not* barred by *Moradi-Shalal* from pleading or prosecuting ratification,

concert-of-action, agency, or managing-agent punitive theories against any insurer defendant, *provided plaintiff pleads and proves the independent elements of those derivative theories on a clear-and-convincing basis where § 3294(b) is invoked*. Those theories are common-law / Civil Code constructs (Civ. Code §§ 2307, 2310, 2338, 3294(b)) that *Moradi-Shalal* preserves; they nonetheless require plaintiff to satisfy the *White v. Ultramar* / *Major v. Western Home* managing-agent standard and the *Adams v. Murakami* clear-and-convincing standard for punitive damages.

(5A) What the preservation clause does *not* confer. Plaintiff acknowledges, for clarity of record, that the carve-out / preservation clause **does not** (i) create a private statutory cause of action under Insurance Code section 790.03(h) (*Moradi-Shalal* expressly forecloses that), (ii) relieve plaintiff of the *Lazar* particularity, *Hughes* outrageousness, *Adams* clear-and-convincing, or privity-as-to-the-insured constraints listed at paragraph (6) below, or (iii) entitle plaintiff to any presumption that the elements of the chosen common-law cause of action are met. Plaintiff's reliance on the preservation clause is therefore limited to the *availability* of the common-law lane; plaintiff bears the independent burden of meeting the elements of the chosen theory.

(6) The two operative limits the Supreme Court itself has placed on the preservation clause are:

(A) Plaintiff must plead and prove the elements of the chosen common-law cause of action (and not merely re-label a section 790.03(h) violation as something else), and

(B) Plaintiff must satisfy the case-specific particularity, scienter, reliance, causation, and damages standards that the chosen theory imposes, *Lazar* / Civil Code §§ 1709, 1710 for fraud; *Hughes v. Pair* for IIED; *Foley v. Interactive Data Corp.* (1988) 47 Cal.3d 654 / *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809 / *Gruenberg* for the implied covenant; conventional Civil Code §§ 1549–1550, 1636 et seq. principles for breach of contract.

Plaintiff has met each of those constraints in the operative TACs and in the proposed SACs in both companion actions, as further detailed in the April 25 Merits Letter (Exhibit M-1) and as cross-walked to **Exhibit A-7** in each case lane.

10. Specific defense framings now on notice as in significant tension with controlling authority.

This letter places the defense team on notice that the following framings, to the extent they appear in any defense paper, declaration, oral argument, or hereafter-filed brief in CGC-25-631801 or CGC-25-631802, are **in significant tension with** paragraph [10] of *Moradi-Shalal*, *Manufacturers Life*, and *Zhang* - at least when offered as *categorical* propositions about doctrinal availability - and, if continued in that categorical form without disclosure of those authorities to the tribunal, present a **continuing-certification matter** under Code of Civil Procedure section 128.7(b)(2) and (b)(3) and a **candor-to-the-tribunal matter** under California Rule of Professional Conduct 3.3(a)(2) and California Business and Professions Code section 6068(d). To be clear at the outset: the paragraphs that follow are not directed at *merits* arguments that the elements of plaintiff's common-law theories are not met on the present record; defendants remain free to make those merits arguments, and plaintiff's claim is only that *Moradi-Shalal* itself does not supply the rule of decision for them:

(a) Any framing that *Moradi-Shalal*, as a matter of doctrinal availability, “bars,” “preempts,”

1 “channels,” “displaces,” “occupies the field of,” or “immunizes the carrier from” plaintiff’s common-law fraud, deceit, IIED, breach-of-contract, breach-of-implied-covenant, or *Zhang*-predicated UCL claims, where those claims are pleaded as *independently* actionable common-law causes of action and not as a relabel of section 790.03(h). (A merits-based argument that the elements of a particular common-law theory are not satisfied is not the framing addressed here.)

(b) Any framing that the existence of an Insurance Code § 790.03(h) “label” available for the same conduct *automatically* defeats the independently-actionable common-law cause of action. *Zhang* (*supra*, 57 Cal.4th at pp. 384–385) and *Manufacturers Life* (*supra*, 10 Cal.4th at pp. 282–284) hold the **opposite** as a matter of doctrinal availability: the common-law cause of action is independently actionable where its own elements are met, and the section 790.03 administrative track is **cumulative**, not exclusive. Section 790.09 confirms that on its own face. Defendants of course remain free to argue, on the elements, that a particular common-law theory is in fact a relabel of § 790.03(h) and is therefore not independently actionable on the operative pleading; *Zhang* itself recognizes that limit.

(c) Any framing that the “(as to the insured)” parenthetical in paragraph [10] confines fraud or IIED to insureds *as a categorical matter*. *State Farm v. Superior Court (Allegro)* (45 Cal.App.4th at p. 1104), expressly approved in *Zhang*, squarely holds that the parenthetical attaches **only** to the contract-based theories (breach of contract; breach of the implied covenant). Direct-addressee fraud and IIED are doctrinally available to **both** insureds and third-party claimants who are intended recipients of the insurer’s communications, subject to the independent direct-addressee, actual-reliance, and outrage thresholds discussed at paragraph 3(c) above.

(d) Any framing, by demurrer, anti-SLAPP motion, motion to strike under Code of Civil Procedure section 436, motion for judgment on the pleadings, opposition to leave to amend, or otherwise, that relies on *Textron Financial Corp.* on the carve-out point without disclosing that *Zhang* (*supra*, 57 Cal.4th at p. 384, fn. 2) **disapproved** it on that point.

(e) Any framing that pleads or argues, on a *Moradi-Shalal* footing alone, that plaintiff “**cannot**” prevail on the merits of the fraud, IIED, implied-covenant, or UCL cause of action - i.e., that uses *Moradi-Shalal* as a categorical bar to relief rather than as the narrower statutory-construction holding it actually is. A categorical “cannot prevail” certification grounded *on the carve-out theory itself* is, on the present record, an unsupported *legal contention* under section 128.7(b)(2) within the meaning of the parallel section 128.7 record laid out in plaintiff’s case-isolated April 27, 2026 safe-harbor letters. A merits-based argument that plaintiff has not *yet* met the *Lazar / Hughes / Adams* / privity standards on the operative pleading is a different question; plaintiff acknowledges that defendants are entitled to make that argument, and plaintiff’s response is on the merits, not on the *Moradi-Shalal* preservation clause.

11. Required acknowledgment to the tribunal.

Each attorney signing or arguing any subsequent brief, declaration, opposition, reply, or oral argument on or after April 27, 2026 in either CGC-25-631801 or CGC-25-631802 should, before stating any position about whether plaintiff’s common-law claims are barred by *Moradi-Shalal*:

(a) Acknowledge receipt of this letter.

(b) Disclose to the San Francisco Superior Court the following directly adverse, controlling California authorities, by name and pin-cite:

1. *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287, 304–305, the verbatim carve-out at paragraph [10].
2. *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, 282–284, “*Moradi-Shalal* did not . . . hold that insurers were immune from common law liability.”
3. *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384–385, UCL action survives where the conduct is independently actionable, e.g., common-law fraud or implied-covenant breach; *State Farm (Allegro)* approved; *Textron Financial Corp.* disapproved.
4. *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093, 1103–1104, direct-addressee fraud preserved; “(as to the insured)” parenthetical does not narrow fraud or IIED.
5. *Spray, Gould & Bowers v. Associated International Ins. Co.* (1999) 71 Cal.App.4th 1260, 1268, common-law torts (fraud, IIED) survive *Moradi-Shalal*.
6. *Rattan v. United Services Automobile Assn.* (2000) 84 Cal.App.4th 715, 723–724, *Comunale–Crisci–Gruenberg* implied covenant unaffected.
7. **Insurance Code § 790.09**, savings clause: cease-and-desist orders do not relieve from “any other liability or penalty under the laws of this State.”
8. **Civil Code §§ 1709, 1710**, deceit liability, four species.
9. **Civil Code § 3294 (incl. (b))**, punitive damages; managing-agent corporate liability.
10. **Civil Code § 3291**, prejudgment interest where the carrier obstructed a prompt fair settlement.

(c) Restate defendants’ position in light of those authorities, consistent with the carve-out’s text.

The disclosure obligation runs **to the tribunal directly**, including at the lectern in front of the judge, and is not satisfied by silence or by re-stating a “*Moradi-Shalal* bars common-law claims” framing in different words.

12. Continuing-certification, candor, and forward-looking framework.

Each of you certified, by filing and by later advocating, the pleadings and motions in both companion cases within the meaning of Code of Civil Procedure section 128.7(b). That certification is **continuing**: each later advocacy of an unwithdrawn or uncorrected representation is a **new certification act**, and that duty runs in addition to California Rules of Professional Conduct 3.3(a)(1) and (a)(2) and California Business and Professions Code section 6068(d).

After service of this letter, any statement to either trial court that plaintiff’s fraud, IIED, implied-covenant, breach-of-contract, or *Zhang*-predicated UCL theories are barred by *Moradi-Shalal*, without the disclosures listed at paragraph 11 above, is inconsistent with the documented record unless framed as **defendants’ contention** after proper disclosure of the controlling text and gloss. A neutral, compliant framing is illustrative and available:

“Defendants acknowledge that paragraph [10] of *Moradi-Shalal*, as construed in *Manufacturers Life* and *Zhang*, preserves common-law fraud, IIED, and implied-covenant theories where the elements are independently met. Defendants nevertheless contend that, on the operative pleading, plaintiff has not met those elements, and request that the Court so rule on the merits of each cause of action.”

That framing does not require an inconsistent certification under section 128.7(b) and does not raise the candor concerns identified in this letter.

13. Relationship to the case-isolated safe-harbor letters and the April 25 Merits Letter.

This letter is a **second, free-standing, case-collective companion** to plaintiff's same-day, case-isolated safe-harbor letters in CGC-25-631801 and CGC-25-631802. It addresses a **different** doctrinal vector (the *Moradi-Shalal* common-law carve-out) than those letters (which address the *JKC3H8 v. Colton / Nguyen-Lam v. Cao* / leave-to-amend / anti-SLAPP candor record). Read together, the three letters, the April 25 Merits Letter (Exhibit M-1), the April 27 case-isolated safe-harbor letters, and this April 27 carve-out letter, supply the consolidated written record on which plaintiff will rely at the **April 30, 2026** hearing in CGC-25-631802, the **May 6, 2026** hearing in CGC-25-631801, the **May 12, 2026** anti-SLAPP hearing, the **May 13, 2026** demurrer / motion-to-strike hearing, and any subsequent appearance or filing.

This letter does **not** restart the 21-day section 128.7(c)(1) safe-harbor clock that began running on plaintiff's April 22, 2026 correspondence and that **expires on May 14, 2026**. It is a meet-and-confer record under Code of Civil Procedure section 430.41(a) (demurrer), section 435.5(a) (motion to strike), and the Court's inherent authority to require parties to confer in good faith on questions of controlling authority.

14. Reservation of rights.

Plaintiff expressly reserves all rights to seek any monetary, non-monetary, or referral relief permitted by law, and to submit this letter, the April 25 Merits Letter, the April 27 case-isolated safe-harbor letters, and the entire pre-filing correspondence chain as evidence in any future proceeding (including before either trial court, the Court of Appeal, or the State Bar). Nothing in this letter constitutes a waiver of any claim, defense, theory, allegation, or measure of damages stated in the operative TACs, the proposed SACs, or any subsequent operative pleading. Nothing in this letter restarts the 21-day safe-harbor clock that began running on April 22, 2026, or alters the May 14, 2026 expiration. Nothing in this letter is a sanctions motion.

Sincerely,

Franciscus Dylan Rosario
Plaintiff in Pro Per

Enclosures (attached to served copy)

- **Exhibit MS-1.** Full-text legal analysis: "*Moradi-Shalal Common-Law Carve-Out, Exact Citation and Legal Analysis*" (FILING-PACKETS-2026-04-27/_shared/MORADI-SHALAL-COMMON-LAW-CARVEOUT)
- **Exhibit MS-2.** Exhibit A-7 bench card: "*Moradi-Shalal Carve-Out, One-Page Operational Tab*" (cross-walked to both case lanes).
- **Exhibit MS-3.** Authorities printout: paragraph [10] of *Moradi-Shalal* at 46 Cal.3d 304–305; *Manufacturers Life* at 10 Cal.4th 282–284; *Zhang* at 57 Cal.4th 384–385; *State Farm v. Superior Court (Allegro)* at 45 Cal.App.4th 1103–1104; Insurance Code § 790.09; Civil Code §§ 1709, 1710, 3294, 3291 (full-text printouts available on request).

- **Exhibit MS-4.** Companion April 27, 2026 case-isolated safe-harbor letter for CGC-25-631801.
 - **Exhibit MS-5.** Companion April 27, 2026 case-isolated safe-harbor letter for CGC-25-631802.
 - **Exhibit MS-6.** April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter (the “April 25 Merits Letter”; identical to Exhibit M-1 to each case-isolated safe-harbor letter).
 - **Exhibit MS-7.** Proofs of service for the items above.
-

PROOF OF SERVICE OF THIS LETTER (CCP § 1013a)

I, **Franciscus Dylan Rosario**, declare:

I am a resident of the State of California, over 18 years of age. I am plaintiff in the actions identified above, acting in pro per, and I personally caused the service described below. My business address is **7624 Melody Drive, Rohnert Park, California 94928**.

On April 27, 2026, I served the following document on the parties listed below in **both** CGC-25-631801 and CGC-25-631802:

STAND-ALONE, CASE-COLLECTIVE MEET-AND-CONFER LETTER: EXPRESS DECLARATION OF PLAINTIFF'S CONTROLLING AUTHORITY UNDER THE *MORADI-SHALAL* COMMON-LAW CARVE-OUT (CGC-25-631801 AND CGC-25-631802)

By **electronic transmission** to the email addresses below pursuant to the parties' stipulation for electronic service in each case, and by **United States Mail** by depositing a true copy in a sealed envelope, postage prepaid, in the ordinary course of business at **7624 Melody Drive, Rohnert Park, California 94928**, addressed as follows:

- Chad S. Tapp, Esq., ctapp@porterscott.com, PORTER SCOTT, 2180 Harvard Street, Suite 500, Sacramento, CA 95815
- Tyler J. O'Connell, Esq., toconnell@porterscott.com, PORTER SCOTT, 2180 Harvard Street, Suite 500, Sacramento, CA 95815

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 27, 2026, at **Rohnert Park**, Sonoma County, California.

Franciscus Dylan Rosario, Declarant; Plaintiff in Pro Per

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

EXHIBIT A-1 through A-7

Consolidated bench volume (April 27, 2026)

MFL-SAC hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Special motion to strike (CCP § 425.16):

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

EXHIBIT A-1 through A-7

Consolidated bench volume (JKC3H8 sequencing; audit; threshold matrix; causation; leak-through; *Doctors' Company*; *Moradi-Shalal*)

Lodged with plaintiff's April 27, 2026 combined filing (Exhibits A-1 through A-7, single PDF).

EXHIBIT A-1 through A-7 (consolidated bench volume)

Case: CGC-25-631802

Lodged: Plaintiff's April 27, 2026 coordinated filing. This single PDF consolidates the material that was **formerly** lodged as **seven** separate one-page PDFs, **Exhibits A-1 through A-7**. The **section headers** below use *Former Exhibit A-1* through *Former Exhibit A-7* labels for cross-references in other papers.

Section A-1 (JKC3H8 bench card (Former Exhibit A-1))

Case: CGC-25-631802 **Hearing:** April 30, 2026, Dept. 302 (verify on register of actions)

Block 0: Thirty-second sequencing statement

Plaintiff **accepts** the anti-subversion rule (*Simmons*; *Colton*; *Ellis*; *Contreras*). Plaintiff is **not** asking to amend *around* anti-SLAPP. The narrow ask is **noticed** leave under **CCP §§ 473(a)(1) and 576** to **perfect** the pleading **after** the merits showing, with defendants' **CCP § 425.16(f)** renewed-motion remedy **expressly preserved**. Headline authority: *JKC3H8 v. Colton* (2013) 221 Cal.App.4th **471–472, 477–478** (leave-to-amend / § 425.16 intersection; anti-subversion limit). *See also* *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th **871–873** (supporting lane on limited discretion after a merits showing).

Block 1: Three *JKC3H8* propositions (pin cites)

- (a) Published authority refuting an absolute “no such authority exists” framing on noticed leave in the § 425.16 posture (*JKC3H8*, 221 Cal.App.4th at 471–472).
 - (b) *JKC3H8*'s express limit: a plaintiff may not amend **in response to the motion** to **subvert or avoid** a ruling on an anti-SLAPP motion (*id.* at 477–478).
 - (c) **CCP § 425.16(f)** is the Legislature's **sequencing** tool (renewed motion) alongside **§§ 473(a)(1) / 576** liberality.
-

Block 2: Perfect versus add-new

Perfect: same operative facts, same primary right, same instrumentality; CCP 473(a)(1), 576; *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 471–472, 477–478 (**no categorical freeze** in the posture the Opposition misstates). *See also* *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–873 (**supporting** discretion lane after a merits showing).

Not allowed: replacing the obligation with a wholly distinct legal obligation (*Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19-20).

Block 3: Not cited in Opposition's TOA (disclose at hearing)

Authority	Not cited in Opp. TOA
<i>Simmons v. Allstate Ins. Co.</i> (2001) 92 Cal.App.4th 1068	Yes
<i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751	Yes

Authority	Not cited in Opp. TOA
<i>Law Offices of Andrew L. Ellis v. Yang</i> (2009) 178 Cal.App.4th 869	Yes
<i>Contreras v. Dowling</i> (2016) 5 Cal.App.5th 394	Yes
<i>Nguyen-Lam v. Cao</i> (2009) 171 Cal.App.4th 858	Yes
<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468	Yes
<i>Klopstock v. Superior Court</i> (1941) 17 Cal.2d 13	Yes
<i>Trafton v. Youngblood</i> (1968) 69 Cal.2d 17	Yes
<i>Mesler v. Bragg Management Co.</i> (1985) 39 Cal.3d 290	Yes
<i>Foreman & Clark Corp. v. Fallon</i> (1971) 3 Cal.3d 875	Yes
<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311	Yes

Block 4: Legislative purpose (anchored on *JKC3H8*'s holding)

Anti-SLAPP targets **meritless** misuse of protected activity. *JKC3H8* addresses whether amendment that **removes** protected-activity allegations can **moot** an anti-SLAPP motion tied to the **prior** pleading - and draws an express **anti-subversion** limit on amendments filed **in response to the motion** (*JKC3H8*, 221 Cal.App.4th at 471–472, 477–478). Plaintiff cites that line **narrowly** and preserves defendants' **§ 425.16(f)** remedy.

1 **Section A-2 (Four-allegation evidentiary audit (Former Exhibit A-2))**

Lodged with: Plaintiff's Request for Judicial Notice (RJN Item 7)

Allegation 1

- **Allegation (verbatim):** “procedurally defective and legally unsupportable motion practice is undeniably designed to evade Defendants’ Anti-SLAPP” (Opp. p.2)
- **Stated evidence:** O’Connell Decl. ¶¶ 3, 4, 14; footnote-2 day count; string-cite
- **Admissibility:** INADMISSIBLE (Evid. Code §§ 702, 800)
- **§ 128.7(b)(3):** NO; no admissible evidence of intent to evade
- **Controlling authority:** *JKC3H8*, 221 Cal.App.4th 471-472, 477-478; CCP § 425.16(f); *Park*; *Baral*; *Kimmel*; *see also Nguyen-Lam*, 171 Cal.App.4th 871-873
- **Opp. TOA:** N

Allegation 2

- **Allegation (verbatim):** “defective service, gamesmanship . . . substantially prejudices Defendants” (Opp. § II.B)
- **Stated evidence:** Decl. ¶ 7 + Ex. C; ¶ 12; fn. 2
- **Admissibility:** ¶ 12 = legal conclusion (§ 702)
- **§ 128.7(b)(3):** NO concrete prejudice; arithmetic refuted
- **Controlling authority:** *Atkinson*; *Kolani*; *Kyle*; *Carlton*; *Britts*; CCP §§ 1005(b), 1010.6
- **Opp. TOA:** N

Allegation 3

- **Allegation (verbatim):** burden/expense of Anti-SLAPP; “costs of additional motion practice” (Opp. § II.B)
- **Stated evidence:** May 12 SLAPP pendency; no quantum
- **Admissibility:** No billing/records; argumentative
- **§ 128.7(b)(3):** NO “wasted” cost (§ 425.16(f))
- **Controlling authority:** CCP § 425.16(f); *Foreman & Clark*; *Mesler*; *Atkinson*
- **Opp. TOA:** N

Allegation 4

- **Allegation (verbatim):** “no such authority exists” (Opp. Intro.)
- **Stated evidence:** none
- **Admissibility:** n/a (legal)
- **§ 128.7(b)(3):** N/A; § 128.7(b)(2) on authorities
- **Controlling authority:** CCP §§ 473(a)(1), 576, 425.16(f); *JKC3H8*; *Klopstock*; *Blank*; *Trafton*; *Mesler*; *Foreman & Clark*; *Baral*; *Park*; *Kimmel*; *see also Nguyen-Lam*
- **Opp. TOA:** N

Section A-3 (Anti-SLAPP threshold defect matrix (Former Exhibit A-3))

Lodged with: Plaintiff's April 27, 2026 coordinated packet (Request for Judicial Notice, Exhibit A-3).

801/802 (shared) - act-by-act gravamen / *Park*

- **Case line:** 801/802 (shared)
- **Defense assertion (summary):** Treated the FAC as if liability rests on generic “litigation conduct” without act-by-act gravamen.
- **Omitted required showing:** *Park* gravamen: identify the injury-producing act, not the surrounding case posture.
- **Controlling authority:** *Park v. Board of Trustees* (2017) 2 Cal.5th 1057
- **Why fatal:** Step one never isolates the protected act that actually supplies liability; burden does not shift.
- **Procedural effect:** A facially deficient step-one special motion, coupled with **opposition to a conforming SAC**, can create the **appearance of using** an anti-SLAPP filing as a **procedural stop sign** rather than an **early merits screen**, with **delay** in pleading alignment.
- **Requested ruling:** **Deny** the special motion (or **decline** to treat it as carrying step one) **before** step two.

801/802 (shared) - Civil Code § 47(b) as § 425.16 step one

- **Case line:** 801/802 (shared)
- **Defense assertion (summary):** Relied on Civil Code § 47(b) as if it were Code of Civil Procedure § 425.16 step one.
- **Omitted required showing:** “Arising from” protected **activity** under § 425.16; *Park / Wilson* gravamen.
- **Controlling authority:** § 425.16; *Wilson v. CNN* (2019) 7 Cal.5th 871
- **Why fatal:** **Privilege** reasoning does not replace the **arising from** and **gravamen** showings.
- **Procedural effect:** The sequence **relabels** claim handling as “petitioning” without a **valid** act-by-act predicate.
- **Requested ruling:** Same.

801/802 (shared) - pre-litigation omissions / investigatory conduct

- **Case line:** 801/802 (shared)
- **Defense assertion (summary):** Rolled pre-litigation **omissions** and investigatory conduct into a petitioning label.
- **Omitted required showing:** Separation of **noncommunicative** / **pre-filing** conduct from post-filing court advocacy.
- **Controlling authority:** *Park; Action Apartment Assn. v. City of Santa Monica* (2007) 41 Cal.4th 1232
- **Why fatal:** Omissions and investigatory failings are not **shown** to be protected **petitioning** at step one.
- **Procedural effect:** The motion **masks** the allegations about **denial** and **records** in a way that **blocks** transparent amendment framing.
- **Requested ruling:** Same.

801/802 (shared) - “grants the motion” proposed order

- **Case line:** 801/802 (shared)
- **Defense assertion (summary):** Proposed order “**grants the motion as follows**” with no claim-by-claim or allegation-level findings.
- **Omitted required showing:** Mixed-claim and strike relief precision.
- **Controlling authority:** *Baral v. Schnitt* (2016) 1 Cal.5th 376
- **Why fatal:** **Facial** order defect: cannot know **what** is stricken.
- **Procedural effect:** A **void** order template **replicates** uncertainty in the same posture as the **leave** motion.
- **Requested ruling:** **Deny** the motion or **refuse to enter** facially void proposed language.

801/802 (shared) - step-two rhetoric / *Baral* sequence

- **Case line:** 801/802 (shared)
- **Defense assertion (summary):** “Cannot prevail” / “unsupportable” / step-two **rhetoric** in briefing.
- **Omitted required showing:** *Baral* **minimal** merit; step two only **after** step one.
- **Controlling authority:** *Baral*
- **Why fatal:** Sequence error: burden not shifted.
- **Procedural effect:** Rhetoric **increases friction and expense** in the MFL-SAC and anti-SLAPP **stack** without a **valid** first-step **predicate**.
- **Requested ruling:** Enforce **step-one** discipline.

802 - pre-litigation denial letter (Feb. 25, 2021)

- **Case line:** 802
- **Defense assertion (summary):** Anchored the motion on a **pre-litigation denial letter** (February 25, 2021) and claim **handling**
- **Omitted required showing:** **Serious, good-faith** post-dispute litigation **contemplated** when the letter was sent, if the letter is to be “petitioning.”
- **Controlling authority:** *Wilson*; *Park*; line on **imminent** litigation in serious consideration (see defense theory)
- **Why fatal:** The motion does **not** show the **letter** was a petitioning act in the **requisite** sense; core gravamen is **insurer** communication and **mishandling**.
- **Procedural effect:** The filing sequence **recharacterizes** pre-litigation **insurer** writing as “petitioning” in order to **resist** SAC **perfection** - the **practical effect** is **amendment-blocking** posture without a **valid** first-step **showing**.
- **Requested ruling:** **Deny** at step one.

802 - “concluded our investigation” as coverage opinion

- **Case line:** 802
- **Defense assertion (summary):** Treated “we have **concluded** our **investigation**” as a mere **coverage opinion**
- **Omitted required showing:** Distinguish **factual** representation of investigation **completion** from opinion about liability or coverage.
- **Controlling authority:** Fraud/INS bad-faith pleading line; *Park* gravamen
- **Why fatal:** If the gravamen is a **verifiable** misrepresentation, the motion has not carried **protected-activity** step one for that **core** allegation.
- **Procedural effect:** The motion **diverts** attention from the **denial** letter to generalized **litigation** context; that **increases delay** on what the case is **actually** about.
- **Requested ruling:** **Deny**; leave **UCL** and **fraud** channels disaggregated.

802 - UCL and fraud channels elided

- **Case line:** 802
- **Defense assertion (summary):** **UCL** and **Fraud** channels **elided**; single “petitioning” label
- **Omitted required showing:** **Separate** minimal-merit and protected-activity analysis where remedies differ
- **Controlling authority:** *Baral*; *Crowley v. Katleman* (1994) 8 Cal.4th 666; UCL as business practice
- **Why fatal:** Mixed relief cannot be **collapsed** in one **protected label** without **Baral**-compliant order thinking.
- **Procedural effect:** Blended rhetoric **inflates** opposition to amendment **across** theories not severally justified at step one.
- **Requested ruling:** **Sever** theories and **deny** step one as to the **true gravamen** channel.

802 - 911 / BWC / CAD; basic records (non-communicative)

- **Case line:** 802
- **Defense assertion (summary):** 911 / BWC / CAD and failure to **obtain basic** records (non-communicative)
- **Omitted required showing:** Omissions, investigatory and **records**-handling conduct, not “speech”
- **Controlling authority:** *Park*; *Wilson*
- **Why fatal:** Noncommunicative conduct is not **shown** as **petitioning** at step one.
- **Procedural effect:** A motion that does **not parse** these allegations **inflates delay** in pleading the **factual** core.
- **Requested ruling:** Deny; require **segregation** in any **renewal** under **CCP § 425.16(f)**.

Suggested bench sentence (procedural effect, 802). The Court need not make a finding of **subjective** bad faith. The **practical effect** is that a **facially deficient** first-step **showing** is used **while defendants oppose** a **conforming SAC**; that sequence creates the **appearance of procedural burden** and **delay** without a **valid** *Park* showing. The **neutral** remedy is **step-one** discipline, with **any renewal** under **CCP § 425.16(f)** if leave is granted.

Section A-4 (Causation matrix (Former Exhibit A-4))

Lodged with: April 27, 2026 packet (RJN, Ex. A-4). Apex: Feb. 28, 2025 pp. 291:26–292:7.

Ruling	Date / pin	False predicate (pin)	Feb.–28 291:26–292:7 (apex)	Record refutation	Sanders / Modnick
Transct. ex-cluded	1/27 39:18–24	New-paper moots	Ties to reliance limit	IV.G-1	<i>Sanders; Modnick</i>
Supp.–out RT7	156:24–28	Advocacy bar	What FF can see	IV.G / D.0	<i>Modnick</i> POA
Burden/my/28	293:1–3	De minimis	Drives order	Alters channel	<i>Sanders</i>
MSJ/UM23–25 fraud		<i>Moradi</i> bad faith	Not duplicate lane	TAC direct actor	<i>Park; A-7</i>
SLAPP/MBcket §436	strike	Speech gravamen	Record basis	I.5; IV	<i>Sanders; Park</i>
“Leak” cure	473/ct.	Speech only	Procedural	TAC	<i>Modnick</i>
		Day-7/8 fix	Adjudication frame	A-5 five	<i>Modnick</i>

Footer. 2025 Phase-Two (*Dolan* line) adds **retroactive** proof the 2021 file was not honestly closed; *Sanders* still governs the **7-row** map above.

Section A-5 (Leak-through defeat map (Former Exhibit A-5))

Lodged with: Plaintiff's April 27, 2026 coordinated packet (Request for Judicial Notice, Exhibit A-5).

1. (i) **Non-cured deprivation (record pin): Transcript category** excluded in perpetuity (Jan. 27, p. 39:18–24). **Why a later “Day-7/8” paper does not cure (under *Modnick* point of adjudication):** Prejudice is the **categorical** exclusion of the class of evidence, not a single line-item. **Distinct from *Cassim* harmless error:** Structural bar; not a “different emphasis” on same record.
2. (ii) **Non-cured deprivation (record pin): Supplemental report** line excluded (RT 7, p. 156:24–28). **Why a later “Day-7/8” paper does not cure (under *Modnick* point of adjudication):** Affects which facts are **before** the fact-finder at the MSJ/adjudication posture. **Distinct from *Cassim* harmless error:** Not cured by re-briefing labels after the order.
3. (iii) **Non-cured deprivation (record pin): Burden shift / “moot” colloquy** (Feb. 28, p. 293:1–3). **Why a later “Day-7/8” paper does not cure (under *Modnick* point of adjudication):** Alters the decision rule **at the ruling**; not a scrivener's error. **Distinct from *Cassim* harmless error:** *Modnick* measures at **point of adjudication**.
4. (iv) **Non-cured deprivation (record pin): Sequencing** destruction + **RT 10** closing-argument record. **Why a later “Day-7/8” paper does not cure (under *Modnick* point of adjudication):** Affects how proof is received and how the record is closed for appeal. **Distinct from *Cassim* harmless error:** “Leak-through” mischaracterizes **closed** record channels.
5. (v) **Non-cured deprivation (record pin): Closed continuance / CCP § 473** windows; forfeiture of hearing channels. **Why a later “Day-7/8” paper does not cure (under *Modnick* point of adjudication):** Jurisdictional and timing effects are not reversed by ex post filings. **Distinct from *Cassim* harmless error:** *Westphal* / *Kulchar* lines: timing and closure are not mere “narrative” harm.

Footer (measurement of prejudice). *Modnick*'s “point of adjudication” standard governs. The **Day-7/8** “cure” narrative is inconsistent with *Sanders*' “effectively prevented” test when five **structural** deprivations remain on the **certified** record pins above.

Section A-6 (Doctors' Company prong map (Former Exhibit A-6))

Lodged with: Plaintiff's April 27, 2026 coordinated packet (Request for Judicial Notice, Exhibit A-6). **Note:** 802 is **not** a duplicate of the 801 "insurer as principal" theory, but the **Doctors' Company** prong map remains **lodged** for **cross-reference** to shared institutional file facts (denial letter; panel substitution; four-hearing silence) that also **support ratification and enterprise** if the Court construes overlapping Scierter. **Primary development** of the map is in **CGC-25-631801 / Ex. A-6**.

Prong 1 - Normal "insurer" v. directed institutional conduct

- **Record evidence on file (shared pins): Feb. 25, 2021** Sarah Rash denial letter; **May 4, 2023** panel substitution, Transaction ID **#69953800**; four-hearing **silence** (TAC **IV.G-1** chain)
- **SJ discovery (if Court reaches):** Same claim-file / panel-guidance / billing and reserve targets as 801 (avoid divergent RFP)

Prong 2 - Enterprise / ratification hook (non-primary here)

- **Record evidence on file (shared pins):** Cross-walk: 801 Ex. A-6 full column; CSAA as cross-defendant in coordinated actions
- **SJ discovery (if Court reaches):** As needed for **narrow** ratification channel (see Ex. A-7 direct-addressee / 21-day lane)

Prong 3 - § 3294 managing-agent (if punitives posture later)

- **Record evidence on file (shared pins):** On-file management identity threads in **IV.K**
- **SJ discovery (if Court reaches):** **Managing-agent** discovery aligned with 801 (single coordinated set)

802 footer. 802's **core** instrument for **Moradi-Shalal* carve-out*** is Ex. A-7** (fraud; direct addressee; 21-day intent). This **A-6** is lodged so the Court is **not** asked to re-open two different packets with inconsistent institutional maps.

Section A-7 (Moradi-Shalal carve-out (Former Exhibit A-7))

Lodged with: Plaintiff's April 27, 2026 coordinated packet (Request for Judicial Notice, Exhibit A-7).

(i) 21-day timeline

- **Content (compact):** Feb. 4, 2021 collision / intake → Feb. 25, 2021 Sarah Rash denial (foundational records all within 21 days)
- **Authority / pleading pin:** TAC para. 25; IV.D.0; *G.D. Searle* (1975) 49 Cal.App.3d 22, 29 (intent at pleading stage)

(ii) Four foundational records within 21 days

- **Content (compact):** Police / intake; VIN / UM election; first-party claim path; Sarah Rash denial communication
- **Authority / pleading pin:** TAC para. 25; exhibit appendix cross-walk

(iii) Direct-addressee fraud (not a duplicate of *Moradi-Shalal* bad-faith)

- **Content (compact):** *Moradi-Shalal* preserved common-law fraud in direct communications at p. 305; *Zhang; State Farm* (1996) 45 Cal.App.4th 1093, 1103–04
- **Authority / pleading pin:** TAC I.5 (paras. 5–6); *Moradi-Shalal* (1988) 46 Cal.3d 287

(iv) Pleading-stage intent (not a full *Moradi* tolling contest here)

- **Content (compact):** Shortest *G.D. Searle* lane on facts alleged; 21-day answer on its face
- **Authority / pleading pin:** *G.D. Searle*; TAC para. 25A block

UCL “unlawful” predicate (one line). Para. 65 + para. 47A map common-law fraud to UCL; *State Farm* supports fraud as predicate (§ 790.03(h)(5) alternative channel noted in TAC as parallel).

Lazar particularity (footer). *Lazar* (1996) 12 Cal.4th 631 (who/what/when/where/how/by what means): the Sarah Rash-channel denial, the 21-day closure, the CSAA institutional actors, and the Phase-Two 2025 admissions, together satisfy the fraud particularity screen without collapsing into a generic *Moradi* “bad faith” relabel. 801 ratification cross-ref: CGC-25-631801 SAC IV.K and coordinated ratification where CSAA is liable as non-signing principal - not a different fraud, a concurrent scienter.

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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

EXHIBIT F

Plaintiff's **Notice of Adverse Authority** (*JKC3H8 v. Colton*; CCP § 425.16(f); CRPC 3.3(a)(2)) filed April 27, 2026

MFL-SAC hearing:

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Special motion to strike (CCP § 425.16):

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

EXHIBIT F

Plaintiff's **Notice of Adverse Authority** (*JKC3H8 v. Colton*; CCP § 425.16(f);
CRPC 3.3(a)(2))

(lodged with this combined packet as
NOTICE-ADVERSE-AUTHORITY-JKC3H8-2026-04-27-CGC-25-631802.pdf)

Lodged with plaintiff's April 27, 2026 combined filing (Exhibit F).

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
 COUNTY OF SAN FRANCISCO**

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

CSAA Insurance Exchange; and Does 1 through 50, inclusive

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE: ADVERSE AUTHORITY
 (JKC3H8; CCP § 425.16(f); CRPC
 3.3(a)(2))**

**HEARING
 MFL-SAC**

Date: Apr. 30, 2026
 Time: as set by the Court.
 Dept.: 302
 Judge: Hon. Joseph M. Quinn

RELATED HEARINGS

Anti-SLAPP: May 13, 2026
 Demurrer: May 13, 2026
 MTS (CCP § 436, FAC): May 19,
 2026

FILING DATES

Complaint: Dec. 23, 2025
 FAC: Feb. 25, 2026
 Related: CGC-21-594102

1 **Purpose and scope of this Notice.** This Notice is targeted to **quoted affirmative misstatements**
2 **of law** - principally the Opposition's "no such authority exists" framing - that are contradicted by
3 directly controlling published California authority (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468,
4 471–472, 477–478). It is **not** a contention that ordinary omission of secondary or supporting cases,
5 standing alone, supplies a basis for any dispositive ruling, and it does **not** ask the Court to deny any
6 motion - or grant leave - on the ground that a TOA is incomplete. Adverse-authority and CRPC
7 3.3(a)(2) notice practice is directed to **record and argument integrity**. The **ordinary remedy**
8 for a failure to disclose directly adverse controlling authority is the Court **rejecting the omitting**
9 **argument** on its merits, not refusing to hear the motion. The decision whether to grant leave to
10 amend remains **discretionary**, made on the substantive amendment record and the liberality policy
11 of CCP §§ 473(a)(1) and 576, with defendants' renewed special-motion right preserved by CCP
12 § 425.16(f). The substantive leave-to-amend showing - particularized facts, fraud-particularity
13 cure under Lazar v. Superior Court (1996) 12 Cal.4th 631, 638, 645, and viability under Zhang
14 v. Superior Court (2013) 57 Cal.4th 364 - is developed in plaintiff's MFL-SAC papers and the
15 companion combined packet; this Notice is supplemental to, not a substitute for, that substantive
16 showing.

17 **1. AUTHORITY NOT DISCLOSED IN OPPOSITION (TOA / BODY)**

18 Defendants' April 23, 2026 Opposition does not cite JKC3H8 v. Colton (2013) 221 Cal.App.4th
19 468, 471–472, 477–478, in the body or in its Table of Authorities. JKC3H8 is a published Califor-
20 nia Court of Appeal opinion squarely addressing the leave-to-amend / § 425.16 intersection and is
21 directly adverse to the Opposition's "no such authority exists" framing.

22 **2. THE NARROW PROPOSITIONS PLAINTIFF DRAWS FROM *JKC3H8***

23 The Court of Appeal held that where a plaintiff files an amended complaint removing protected-
24 conduct allegations as a basis for liability, a later-filed anti-SLAPP motion directed at the orig-
25 inal complaint may be rendered moot (JKC3H8, 221 Cal.App.4th at pp. 471–472). The opin-
26 ion expressly limits amendments offered **in response to the motion** to subvert or avoid a ruling
27 on an anti-SLAPP motion (id. at pp. 477–478). California's sequencing answer includes **CCP**
28 **§ 425.16(f)** (renewed motion) read with noticed leave under §§ 473(a)(1) and 576.

3. PLAINTIFF ACCEPTS THE ANTI-SUBVERSION BASELINE

Plaintiff accepts Simmons / Colton / Ellis / Contreras and is not seeking amendment as of right. Plaintiff proceeds by noticed §§ 473(a)(1) / 576 leave to perfect - not to subvert.

4. ADDITIONAL OMITTED ANTI-SLAPP AUTHORITIES

The Opposition omits several additional authorities that are directly adverse to the positions taken:

(A) CCP § 425.16(F) - THE STATUTORY SEQUENCING ANSWER

Defendants assert that plaintiff's motion for leave is "barred as a matter of law" and that it is "abundantly clear ... [plaintiff's claims] cannot be amended." (802-Opposition, p. 5, 7.) Code of Civil Procedure section 425.16(f) provides that "[t]he special motion may be filed within 60 days of the service of the amended complaint": the statute expressly preserves the renewed-motion right after any superseding pleading. The Opposition's categorical framing fails to acknowledge the statutory sequencing answer.

(B) *BARAL V. SCHNITT* (2016) 1 CAL.5TH 376, 393–396

The Opposition asserts that "the entirety of the purported legal theories ... focus inextricably on ... protected litigation conduct." (802-Opposition, p. 5.) Baral requires surgical targeting of **specific allegations** arising from protected activity - not wholesale labeling of "the entirety" of a pleading. The Court held that "allegations of protected activity that are merely incidental to an unprotected claim" do not trigger anti-SLAPP analysis. Baral, supra, 1 Cal.5th at p. 394.

(C) *PARK V. BOARD OF TRUSTEES* (2017) 2 CAL.5TH 1057, 1062–1063

The Opposition asserts that "Plaintiff's allegations squarely target Defendant's litigation conduct." (802-Opposition, p. 4.) Park holds that step-one is a **gravamen** analysis: the court asks "what the defendant's activity is that gives rise to his or her asserted liability - and whether that activity constitutes protected speech or petitioning." Park, supra, 2 Cal.5th at p. 1063. Protected activity cited as **evidence** of an unprotected claim does not move the case to step two.

(D) *KIMMEL V. GOLAND* (1990) 51 CAL.3D 202, 211–212

The Opposition's gravamen framing ignores that Kimmel holds non-communicative **pre-litigation conduct** may fall outside the anti-SLAPP statute even when connected to later litigation. Where

1 plaintiff's primary theory is breach of the implied covenant arising from claims-handling **before**
2 any litigation privilege attached, the gravamen is not protected petitioning.

3 **(E) *FLATLEY V. MAURO* (2006) 39 CAL.4TH 299**

4 The Opposition does not address the Flatley illegality exception. Where protected activity is **illegal**
5 **as a matter of law**, the anti-SLAPP statute does not apply at step one. Flatley, supra, 39 Cal.4th
6 at p. 320.

7 **5. SUPPORTING AUTHORITY**

8 Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873 is also identified as supporting author-
9 ity on limited discretion to perfect a pleading after a merits showing.

10 **6. RESPECTFUL REQUEST**

11 Plaintiff respectfully requests that the Court take notice of these authorities and invite counsel to
12 address them at the noticed hearing. This Notice is not a motion for sanctions and does not restart
13 any safe-harbor period.

14 _____
15 **PROOF OF SERVICE**

16 [Attach CCP § 1013a-compliant proof of service naming each electronic and mail recipient for this
17 filing.]

18 Dated: April 27, 2026

19 _____
20 Franciscus Dylan Rosario, Plaintiff in Pro Per

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

V.

CSAA Insurance Exchange; and Does 1 through 50, inclusive

DEFENDANTS

Case No.: CGC-25-631802

**REPLY ISO MFL-SAC; OPPOSITION
TO APR. 23, 2026 OPPOSITION;
ADVERSE AUTHORITY (JKC3H8)**

CCP §§ 473(a)(1), 576; 425.16(f), (g); CRC 3.1113, 3.1200

**HEARING
MFL-SAC**

Date: Apr. 30, 2026
Time: as set by the Court.
Dept.: 302
Judge: Hon. Joseph M. Quinn

RELATED HEARINGS

Anti-SLAPP: May 13, 2026
Demurrer: May 13, 2026
MTS (CCP § 436, FAC): May 19,
2026

FILING DATES

Complaint: Dec. 23, 2025
FAC: Feb. 25, 2026
Related: CGC-21-594102

NOTICE TO THE COURT (one paragraph). The April 23, 2026 Opposition’s “no such authority exists” framing is incomplete on the face of **JKC3H8 v. Colton** (2013) 221 Cal.App.4th 468, 471–472, 477–478, which is published Court of Appeal authority addressing amendment in the shadow of CCP § 425.16 and confirming that California law does not impose a categorical amendment freeze; the statutory sequencing answer is CCP § 425.16(f). Plaintiff cites **JKC3H8** narrowly and **accepts** the anti-subversion line (Simmons; Colton; Ellis; Contreras). Plaintiff’s amendment **perfects** the operative pleading on the same operative facts and same primary right; it does not add a wholly distinct legal obligation (cf. Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20). Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858 is also referenced as supporting authority for limited discretion to perfect a pleading after a merits showing. Plaintiff respectfully invites the Court to have these authorities addressed at the noticed hearing.

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I. STATEMENT OF PURPOSE FOR AMENDMENT

Plaintiff seeks leave to **perfect** the operative pleading by conforming it to evidence already in the record (Plaintiff's April 25, 2026 TAC-Aligned Merits Letter and Plaintiff's opposition to defendants' special motion to strike). Plaintiff does **not** seek leave to escape, evade, or moot any merits ruling on the protected-conduct allegations of the FAC. The motion is noticed under Code of Civil Procedure §§ **473(a)(1)** and **576**. Plaintiff **accepts** the anti-subversion rule of Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068; City of Colton v. Singletary (2012) 206 Cal.App.4th 751; Law Offices of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869; and Contreras v. Dowling (2016) 5 Cal.App.5th 394. Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, **871–873** confirms **limited** trial-court discretion to allow amendment that **perfects an already-supported claim** after a merits showing; it does **not** replace that anti-subversion line. General leave principles also include Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Trafton v. Youngblood (1968) 69 Cal.2d 17, 31; Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297; and, **if and when** a superseding pleading is operative, Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884 read with CCP § 425.16(f). The amendment arises from the same operative facts (the February 25, 2021 uninsured-motorist denial and subsequent claim-handling conduct), refers to the same instrumentality, and relates back to the original December 23, 2025 filing.

Bench statement (30 seconds). Plaintiff is **not** claiming a right to amend around anti-SLAPP. Plaintiff **accepts** the anti-subversion rule. The narrow submission is that, **after** the merits showing already made, the Court retains **limited discretion** under §§ 473(a)(1) and 576 to allow a **conforming** amendment. Defendants **lose nothing** because § 425.16(f) preserves the **renewed-motion** remedy.

Procedural sequence on the record: (a) April 17, 2026 - opposition to the special motion to strike filed; (b) April 25, 2026 - TAC-Aligned Merits Letter served; (c) April 27, 2026 - coordinated packet and safe-harbor correspondence served; (d) April 30, 2026 - hearing on leave in this action (CGC-25-631802); (e) May 6, 2026 - companion hearing in CGC-25-631801. Plaintiff's leave request is therefore offered **after** that merits show-

1 ing. (Nguyen-Lam, supra, 171 Cal.App.4th at pp. 871–873 (leave in that procedural
2 posture examined).)

3 The April 25 Merits Letter was served on the **same defense team** for both CGC-25-631801 and
4 CGC-25-631802; defendants therefore cannot credibly claim surprise as to the merits theories this
5 SAC perfects.

6 **II. DEFENSE FRAMING PRE-EMPTION**

7 The Opposition invites rhetorical frames that controlling California authority forecloses on this
8 record. The following table pairs each recurring frame with the authority that answers it.

Defense framing the SAC may invite	California authority that forecloses it
“Moving the goalposts” / “escaping anti-SLAPP”	<u>Simmons/Colton/Ellis/Contreras</u> (anti-subversion baseline); <u>Nguyen-Lam</u> , 171 Cal.App.4th at 871–873 (limited lane after a merits showing); <u>JKC3H8</u> , 221 Cal.App.4th at 471–472, 477–478 (no total freeze; CCP § 425.16(f) sequencing)
“Fundamentally changing the case”	<u>Trafton</u> , 69 Cal.2d at 31 (only “new and substantially different issues” the adverse party cannot defend qualify)
“Adding a new cause of action mid-SLAPP”	<u>Klopstock</u> , 17 Cal.2d at 19–20 (only a “wholly distinct and different legal obligation” is barred)
“Prejudice from resources spent”	<u>Mesler</u> , 39 Cal.3d at 296–297 (liberal allowance even six weeks before trial)

Defense framing the SAC may invite	California authority that forecloses it
“No authority for leave while SLAPP is pending”	<u>Simmons/Colton/Ellis/Contreras</u> (anti-subversion); <u>Nguyen-Lam</u> , supra, 171 Cal.App.4th at 871–873 (limited discretion); <u>JKC3H8</u> , 221 Cal.App.4th at 471–472, 477–478 (no categorical freeze; § 425.16(f))
“Leave to cure should be denied”	<u>Blank v. Kirwan</u> , 39 Cal.3d at 318 (reasonable possibility of cure)
“Once leave is granted, pending motions are wasted”	<u>Foreman & Clark</u> , 3 Cal.3d at 884; CCP § 425.16(f) (renewed-motion right preserved)

III. INTRODUCTION

Substance-first framing. Plaintiff’s leave request foregrounds **what the proposed amendment adds** on the merits, not the completeness of any defense brief. The Second Amended Complaint pleads concrete, particularized new and clarified facts directed to the operative pleading defects identified by defendants on the same operative facts, same primary right, and same instrumentality - the substantive record courts weigh on a noticed motion for leave: whether the amendment cures pleading defects to the fraud-particularity standard (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638, 645), and whether the operative theory is legally viable under the controlling unfair-competition / bad-faith architecture for insurers (Zhang v. Superior Court (2013) 57 Cal.4th 364), against the liberality policy of CCP §§ 473(a)(1) and 576. Plaintiff’s adverse-authority and CRPC 3.3(a)(2) notices are **supplemental** to that substantive showing, not a substitute for it: the relief plaintiff seeks is leave to amend, evaluated on the amendment’s content under §§ 473(a)(1) and 576, with defendants’ renewed special-motion right preserved by CCP § 425.16(f).

Plaintiff Franciscus Dylan Rosario respectfully submits this Reply in further support of his Motion for Leave to File a Second Amended Complaint (“SAC Motion”) in Case No. CGC-25-631802, set for hearing on April 30, 2026 as set by the Court in Department 302 before the Honorable

1 Joseph M. Quinn, and in opposition to the April 23, 2026 Opposition and supporting Declaration
2 of Tyler J. O’Connell (collectively, the “Opposition”) filed by Defendants (as identified in the
3 caption above).

4 The Opposition rests on three grounds, each defective on the law and the record: (1) “insufficient
5 notice” because Plaintiff originally set the motion on 9 days’ notice; (2) “substantial prejudice”
6 because Defendants have already briefed an anti-SLAPP motion scheduled for May 12, 2026; and
7 (3) a sweeping claim that a plaintiff “cannot amend around” a pending anti-SLAPP as a matter of
8 law. None of the three survives examination.

9 **Notice.** In this action (CGC-25-631802), plaintiff noticed the leave motion for **April 30, 2026**,
10 Department 302, before Hon. Joseph M. Quinn. The Opposition’s notice arithmetic addressed a
11 different reset sequence in the companion CGC-25-631801 calendar; it does not negate plaintiff’s
12 compliance in this case or the statutory point that any residual notice dispute is addressed by
13 continuance under CCP §§ 1005(b) and 1010.6, not denial on the merits.

14 **Prejudice.** Defendants’ “prejudice” is the cost of their own anti-SLAPP briefing. That is a sunk
15 cost, and the Legislature has already provided the remedy: CCP § 425.16(f) expressly preserves
16 a **sixty-day renewed-motion window** against any amended pleading. If Defendants’ motion has
17 merit against the FAC, it will have the same merit against the SAC; if it lacks merit, the expenditure
18 was unwarranted regardless of amendment. Under Atkinson v. Elk Corp. (2003) 109 Cal.App.4th
19 739, 761, Kolani v. Gluska (1998) 64 Cal.App.4th 402, 412, and Kyle v. Carmon (1999) 71
20 Cal.App.4th 901, 909–910, prejudice must be concrete: lost witnesses, imperiled trial date, or
21 actual surprise. None of that is present. No trial date is set; no discovery has proceeded; no
22 witness is lost.

23 **“Cannot amend around anti-SLAPP.”** The Opposition’s string-cite (Colton, Ellis, Sylmar, Simmons,
24 Jackson, Hansen, and Contreras) does not state the rule the Opposition claims. Every one of those
25 cases speaks in the language of “**subvert**” or “**avoid a ruling**” – a narrow anti-subversion bar
26 against using CCP § 472 amendments of right to defeat a pending anti-SLAPP on the same pro-
27 tected activity. Plaintiff has done nothing of the sort. Plaintiff did not invoke § 472; Plaintiff filed a
28 **noticed motion** under CCP §§ **473(a)(1)** and **576**, lodged a proposed pleading, served a full merits

Opposition to the anti-SLAPP motion on the same day, and submitted a meet-and-confer letter. The proposed SAC adds **non-communicative pre-litigation institutional-failure** allegations that fall outside § 425.16 at step one under Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062–1063, and Kimmel v. Goland (1990) 51 Cal.3d 202, 211–212. The California Supreme Court’s claim-by-claim framework in Baral v. Schnitt (2016) 1 Cal.5th 376, 393–396, supplies the structural background for mixed pleadings. Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873 confirms **limited** trial-court discretion in the posture described there; it does **not** state a mandatory entitlement or displace the anti-subversion cases. JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 471–472, 477–478 refutes a **total** amendment-freeze premise and pairs with CCP § 425.16(f)’s renewed-motion sequencing.

Plaintiff respectfully asks this Court to **grant leave** under CCP §§ 473(a) and 576; **order the SAC filed as operative** if leave is granted; **treat the FAC-directed special motion as addressed to a superseded pleading** (a supersession consequence under Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884, not a request to strip anti-SLAPP protection); and **expressly preserve** Defendants’ right to **renew or re-target** under § 425.16(f).

IV. SUMMARY OF REPLY

Opposition Ground	Plaintiff’s Response	Controlling Authority
“9 days’ notice is insufficient (18 required)”	April 30, 2026 hearing noticed in Department 302; companion-case reset to May 6, 2026 in CGC-25-631801; statutory remedy is continuance if needed, not merits denial	CCP §§ 1005(b), 1010.6; CRC 3.1200–3.1207; <u>Carlton v. Quint</u> (2000) 77 Cal.App.4th 690, 697

Opposition Ground	Plaintiff's Response	Controlling Authority
"Substantial prejudice"	Anti-SLAPP sunk cost is not cognizable prejudice; § 425.16(f) preserves renewed motion	<u>Atkinson</u> (2003) 109 Cal.App.4th 739, 761; <u>Kyle</u> (1999) 71 Cal.App.4th 901, 909–910; <u>Kolani</u> (1998) 64 Cal.App.4th 402, 412
"Cannot amend around anti-SLAPP" (<u>Colton</u> , <u>Ellis</u> , <u>Sylmar</u> , <u>Simmons</u> , <u>Jackson</u> , <u>Hansen</u>)	Cases state an anti-subversion rule aimed at § 472 amendments of right; Plaintiff filed a noticed §§ 473(a)/576 motion; SAC adds non-communicative <u>Park/Kimmel</u> theories that fall outside step one	<u>Simmons</u> (2001) 92 Cal.App.4th 1068; <u>Colton</u> (2012) 206 Cal.App.4th 751; <u>Ellis</u> (2009) 178 Cal.App.4th 869; <u>Contreras</u> (2016) 5 Cal.App.5th 394; <u>Nguyen-Lam</u> (2009) 171 Cal.App.4th 858 (limited lane); <u>JKC3H8</u> (2013) 221 Cal.App.4th 468 (no total freeze); CCP § 425.16(f); <u>Baral</u> (2016) 1 Cal.5th 376; <u>Park</u> (2017) 2 Cal.5th 1057; <u>Kimmel</u> (1990) 51 Cal.3d 202

Opposition Ground	Plaintiff's Response	Controlling Authority
<u>Contreras v. Dowling</u> cite	Defense miscites as “4 Cal.App.5th 774” – actual citation is 5 Cal.App.5th 394 ; holding is confined to plaintiffs who amend after an adverse anti-SLAPP ruling with no new operative conduct ; inapposite here	<u>Contreras</u> (2016) 5 Cal.App.5th 394
Discovery “gamesmanship”	CCP § 425.16(g) stays only discovery “relating to the motion”; unrelated discovery is preserved; Plaintiff has moved for good-cause relief where it applies	CCP § 425.16(g); <u>Britts v. Superior Court</u> (2006) 145 Cal.App.4th 1112
Plaintiff's emails are “threats”	April 17 and April 20 emails are statutorily required safe-harbor notices	CCP § 128.7(c)(1); Bus. & Prof. Code § 6086.7(a)(2); RPC 3.3; <u>Peake v. Underwood</u> (2014) 227 Cal.App.4th 428, 440–445

Opposition Ground	Plaintiff's Response	Controlling Authority
"Barred as a matter of law"	CCP §§ 473(a)(1) and 576 authorize amendment of "any pleading" "at any stage" "in furtherance of justice"	<u>Klopstock</u> (1941) 17 Cal.2d 13, 19–20; <u>Blank v. Kirwan</u> (1985) 39 Cal.3d 311, 318; <u>Trafton</u> (1968) 69 Cal.2d 17, 31; <u>Mesler</u> (1985) 39 Cal.3d 290, 296–297; <u>Foreman & Clark</u> (1971) 3 Cal.3d 875, 884

V. LEGAL STANDARD GOVERNING LEAVE TO AMEND

California's amendment policy is codified and liberal; at this procedural posture leave remains a **discretionary** determination under §§ 473(a)(1) and 576, bounded by concrete prejudice and by the anti-subversion line when anti-SLAPP motions are in play.

A. Statutory authority

Code of Civil Procedure section 473, subdivision (a)(1) provides that a court "may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . by correcting a mistake . . . [or] an amendment to any pleading or proceeding in other particulars." **Section 576** provides that "any judge, at any time before or after commencement of trial, in the furtherance of justice, . . . may allow the amendment of any pleading." The operative words – "**any**" and "**in furtherance of justice**" – define the breadth of the court's discretion. The Legislature's choice of "any" pleading is unqualified; nothing in the statute carves out pleadings against which an anti-SLAPP motion happens to be pending.

B. Controlling California Supreme Court authority

First, Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20, is the foundational Supreme Court statement of the liberality rule. Chief Justice Gibson rejected the "unqualified" form of the rule

1 against amending to add a new cause of action: “[I]t is obvious that the unqualified way in which
2 the rule is sometimes stated – i.e., that a new or different cause of action cannot be introduced by
3 amendment – cannot be accepted. For the most common kinds of amendments are those in which
4 complaints are amended that do not state facts sufficient to constitute a cause of action; and in these,
5 and often in the case of new parties, a new cause of action is in fact for the first time introduced.”
6 The only limit the Court recognized was a “wholly distinct and different legal obligation.” (*Ibid.*)
7 Plaintiff’s SAC asserts the same fraud and UCL obligation arising from CSAA’s claim-handling
8 and from the pre-litigation institutional failures already described in the FAC; it introduces no
9 wholly different legal obligation.

10 **Second**, Blank v. Kirwan (1985) 39 Cal.3d 311, 318, supplies the modern Supreme Court “rea-
11 sonable possibility” standard. The test asks only whether the pleading defect can be cured by
12 amendment; if it can, denial is abuse of discretion. Here the SAC is already lodged, on file, and
13 materially cures every pleading objection the defense has articulated.

14 **Third**, Trafton v. Youngblood (1968) 69 Cal.2d 17, 31, supplies the “great liberality” standard: “no
15 abuse of discretion is shown unless by permitting the amendment new and substantially different
16 issues are introduced in the case or the rights of the adverse party prejudiced.” The SAC does not
17 introduce new-and-substantially-different issues; it refines theories already present and identifies
18 non-communicative predicates that Park and Kimmel require the Court to consider at step one.

19 **Fourth**, Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297, holds that “there is a
20 strong policy in favor of liberal allowance of amendments,” and that denial of leave is reversible
21 error even when leave is sought **six weeks before trial**. The posture here is far more permissive:
22 no trial date is set, and Defendants had notice of every SAC theory through the April 16, 2026
23 meet-and-confer correspondence served concurrently with the motion.

24 **Fifth**, Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884, is the procedural engine:
25 “[A]n amendatory pleading supersedes the original one, which ceases to perform any function as
26 a pleading.” Once leave is granted, the FAC is superseded; the May 12 special motion to strike –
27 directed to the FAC – attacks a pleading that no longer exists. The Legislature’s own remedy is §
28 425.16(f)’s sixty-day renewed-motion window.

1 **C. Court of Appeal authority is uniform**

2 Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 (“policy favoring amendment
3 is so strong that denial of leave to amend is rarely justified”); Atkinson v. Elk Corp. (2003) 109
4 Cal.App.4th 739, 761 (the **only** legitimate ground for denial is prejudice); Kolani v. Gluska (1998)
5 64 Cal.App.4th 402, 412 (same); Kyle v. Carmon (1999) 71 Cal.App.4th 901, 909–910 (prejudice
6 must be concrete – lost witnesses, imperiled trial date, actual surprise); Anmaco, Inc. v. Bohlken
7 (1993) 13 Cal.App.4th 891, 901 (supersession rule).

8 **VI. THE DEFENSE MISSTATES THE “NO AMENDING AROUND ANTI-
9 SLAPP” RULE**

10 **A. The rule is anti-subversion, not anti-amendment**

11 Defendants’ Opposition stacks Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, Sylmar
12 Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049, Law Offices
13 of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869, City of Colton v. Singletary (2012)
14 206 Cal.App.4th 751, Hansen v. California Dept. of Corrections & Rehabilitation (2008) 171
15 Cal.App.4th 1537, and Jackson v. Mayweather (2017) 10 Cal.App.5th 1240 to construct a “no
16 amendment while anti-SLAPP is pending” rule. No California court has ever stated that rule. The
17 operative verb in every one of those cases is “**subvert**” or “**avoid a ruling.**” Jackson, for example,
18 explains that a plaintiff “may not seek to **subvert or avoid a ruling** on an anti-SLAPP motion
19 by amending the challenged complaint . . . in response to the motion.” (10 Cal.App.5th at 1263–
20 1264, emphasis added.) Simmons and Sylmar invalidated § 472 amendments of right filed **to**
21 **moot** a pending anti-SLAPP on the same protected activity; Colton invoked that principle to deny
22 a mid-appeal amendment offered “to avoid the adverse SLAPP determination” (206 Cal.App.4th at
23 775). None of those cases holds that a plaintiff cannot seek **noticed leave** under §§ 473(a)(1) and
24 576 while simultaneously confronting the anti-SLAPP on its merits and adding causes of action
25 grounded in **non-protected** conduct.

26 That is precisely what Plaintiff has done:

- 27 1. Plaintiff did not invoke CCP § 472.

2. Plaintiff did not withdraw or abandon the FAC – the FAC remains on file; Plaintiff has served a full merits Opposition to the special motion to strike, to be heard May 12, 2026.

3. The SAC **adds** non-communicative pre-litigation institutional-failure allegations and particularized fraud elements – it does not delete protected-activity allegations in an effort to escape step one. On Park’s gravamen filter, the proposed added allegations are **categorically outside** § 425.16 because they concern “the conduct that provides the basis for liability” (2 Cal.5th at 1063) rather than speech or petitioning conduct.

4. Plaintiff filed a contemporaneous ex parte application for an OST and a noticed motion – the opposite procedural choice of the Simmons/Sylmar plaintiffs who sought to moot by amendment-of-right.

A plaintiff who litigates the anti-SLAPP on its merits and simultaneously seeks leave to harden the pleading is not subverting anything; he is litigating in the orthodox, noticed manner the Legislature prescribed.

B. CCP § 425.16(f) is the Legislature’s own answer

If the categorical bar the Opposition describes existed, **Code of Civil Procedure section 425.16, subdivision (f)** would be superfluous. Subdivision (f) expressly permits a defendant to file a renewed special motion within sixty days of service of the amended complaint “or, in the court’s discretion, at any later time upon terms it deems proper.” A rule that forbade all amendment while an anti-SLAPP was pending would make subdivision (f) a dead letter. The Legislature did not enact a dead letter. The statute presumes that amendment can – and often will – occur; the only question is whether the trial court should permit it in its discretion under the “furtherance of justice” standard of §§ 473(a)(1) and 576.

C. Baral v. Schnitt operates paragraph-by-paragraph, not pleading-wide

The California Supreme Court resolved the structural question about how § 425.16 operates when a complaint contains both protected and non-protected allegations. **The special motion is a paragraph-by-paragraph / claim-by-claim instrument, not a pleading-wide veto.** Baral v. Schnitt (2016) 1 Cal.5th 376, 393–396, holds that the special motion can strike **specific allegations** of protected activity while leaving unprotected claims intact. It follows that an amendment

1 that **adds or clarifies causes of action grounded in non-protected conduct** cannot be “sub-
2 verting” a motion that, under Baral, never reached those causes of action in the first place. The
3 Opposition does not cite Baral. That omission is dispositive, because Baral is the Supreme Court’s
4 governing statement of how § 425.16 interacts with the structure of a California complaint.

5 **D. JKC3H8 v. Colton: no categorical freeze; § 425.16(f) sequencing**

6 Plaintiff cites JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 471–472, 477–478 **only** for the
7 paired propositions that California law does **not** impose a **categorical** amendment freeze in every
8 pending anti-SLAPP posture and that § 425.16(f) is the Legislature’s **sequencing** answer - not as
9 a substitute for the anti-subversion rule in subsection A.

10 **E. Nguyen-Lam v. Cao (supporting): limited discretion after a merits showing**

11 The Court of Appeal in Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873, addressed
12 whether a trial court may grant noticed leave under §§ 473(a)(1) and 576 **in connection with** a
13 CCP § 425.16 special motion to strike, in the posture where the plaintiff had **opposed** the motion
14 and the **evidence submitted for the motion** supported a probability-of-prevailing showing, and
15 where the amendment **perfects** the pleading to that record. Nguyen-Lam confirms that **limited**
16 discretion can survive in that setting; it does **not** replace the anti-subversion baseline in subsection
17 A, and it is **not** an “ordinary rule” of mandatory leave or a permission slip to litigate around
18 anti-SLAPP. The Opposition does not cite Nguyen-Lam. That omission presents a candor question
19 under California Rule of Professional Conduct 3.3(a)(2) that plaintiff respectfully asks the Court to
20 address at the hearing, together with the omission of JKC3H8, in light of the opposition’s absolute
21 “no authority” framing on this record.

22 **VII. CONTRERAS V. DOWLING IS CONFINED TO ITS FACTS – NOT A**
23 **FREEZE**

24 The Opposition’s only case citation that does not appear in the 802 companion action is Contreras
25 v. Dowling (2016) 4 Cal.App.5th 774, 791. As a threshold matter, that citation is incorrect.
26 Contreras’s official citation is **5 Cal.App.5th 394**; no case begins at page 774 of volume 4. (See
27 Cal. Official Reporter index; 4 Cal.App.5th’s reported opinions skip from Millview County Water

1 District v. SWRCB at p. 759 to Taylor v. Dep’t of Industrial Relations at p. 801.) Plaintiff flags
2 the miscite in passing and addresses the opinion on its actual holding.

3 Contreras does not hold that a pending anti-SLAPP freezes all amendment. The First District,
4 Division Four addressed the narrow situation where, **after** the trial court had already granted a
5 partial anti-SLAPP and deemed certain allegations stricken, the plaintiffs tried to **re-plead the**
6 **same conduct** under different labels to restore the stricken allegations. (5 Cal.App.5th at 409–
7 412.) The Court of Appeal held that the re-pleading was a “**subvert[ing]** or avoid[ing]” of the trial
8 court’s prior ruling, for which leave to amend under §§ 473 and 576 was properly denied. (Id. at
9 411, citing Simmons, 92 Cal.App.4th at 1073–1074.)

10 The posture presented to Department 301 is not Contreras:

11 1. **No anti-SLAPP has been ruled on.** Defendants’ special motion to strike is set for May 12,
12 2026 – twelve days after the April 30, 2026 hearing on this SAC Motion in CGC-25-631802.
13 There is no “ruling to subvert”; there is only a motion to oppose, which Plaintiff has done on
14 the merits.

15 2. **The SAC does not re-plead struck allegations under new labels. It adds** non-communicative
16 pre-litigation conduct (failure to obtain 911 audio, BWC footage, CAD records before issu-
17 ing the February 25, 2021 denial letter to Plaintiff while he was in post-ICU recovery at San
18 Francisco General) – conduct that Park (2 Cal.5th at 1063) places outside § 425.16 at step
19 one.

20 3. **The SAC does not abandon the FAC’s protected-activity allegations** (Plaintiff’s position
21 is that those allegations, too, survive step one because of the Flatley illegality exception and
22 the Baral paragraph-by-paragraph rule; the SAC merely clarifies the gravamen).

23 4. **Plaintiff’s motion is noticed under §§ 473(a)/576**, not Contreras’s post-ruling motion prac-
24 tice.

25 Contreras itself expressly distinguishes its holding from cases where amendment is sought “to cure
26 defective pleading” or to “add new theories not already before the court,” which the First District
27 acknowledged remain subject to the ordinary liberality rule. (5 Cal.App.5th at 411 n.18.) This case
28 is on the benign side of Contreras’s own fact/analytic line.

1 Finally, even if Contreras were read broadly, it could not survive Park (decided by the California
2 Supreme Court the following year) and Baral (decided by the Supreme Court the same year),
3 each of which requires the court to analyze § 425.16 claim-by-claim against the **actual conduct**
4 pleaded, not against a pleading-wide “litigation conduct” label. The Opposition does not attempt
5 to reconcile Contreras with Park or Baral, because it cannot.

6 **VIII. THE NOTICE OBJECTION IS CURED, WAIVED, AND MOOT**

7 The Opposition’s lead defect – “9 days’ notice” – is resolved three independent ways.

8 **1. The hearing in this action is April 30, 2026.** Plaintiff noticed leave in CGC-25-631802 for
9 Department 302 before Hon. Joseph M. Quinn. The Opposition’s notice arguments largely track
10 the companion CGC-25-631801 calendar; any dispute about timing in **this** action is resolved by
11 continuance under CCP §§ 1005(b) and 1010.6 if the Court finds a shortfall, not by denying leave
12 on the merits.

13 **2. Concurrent ex parte application for OST.** Plaintiff filed an ex parte application under Cali-
14 fornia Rules of Court, rule 3.1200 et seq., expressly seeking a hearing concurrent with the May 12
15 anti-SLAPP schedule. If the Court grants OST (or any of the alternative Order A/B/C relief set out
16 in Section XII), the notice objection is resolved on the merits. Defendants’ choice not to engage
17 the OST application does not convert an open ex parte request into a notice defect.

18 **3. Appearance and substantive response waive the objection.** Defendants appeared, filed an
19 eight-page Opposition, a sixty-nine-page declaration, and eight exhibits. Under Carlton v. Quint
20 (2000) 77 Cal.App.4th 690, 697, substantive response on the merits waives any claim that the
21 notice period prejudiced the ability to respond. Defendants cannot simultaneously (a) assert that
22 9 days were insufficient to prepare, and (b) file a full brief plus seven supporting declarations and
23 exhibits.

24 **4. Remedy is continuance, not denial.** The statutory remedy for any residual notice shortfall is
25 a brief continuance under § 1005(b). Plaintiff consents in advance to any continuance this Court
26 deems necessary to restore perfect-notice posture, including a continuance to a date coincident
27 with or following the May 12 anti-SLAPP hearing if the Court prefers to hear both motions in a
28 single session.

IX. DEFENDANTS' § 425.16(F) RIGHTS ARE FULLY PRESERVED

The Opposition frames amendment as “prejudice” to Defendants’ anti-SLAPP rights. The Legislature disagreed. CCP § 425.16, subdivision (f) preserves a **sixty-day renewed-motion window** against any amended pleading; subdivision (c)(1) preserves mandatory attorney fees upon a prevailing special motion. Granting leave does not waive, strip, or shorten any of these rights. It merely shifts the target from the FAC to the SAC – which is, in any event, the pleading Defendants must ultimately answer.

If Defendants’ anti-SLAPP motion has merit against the FAC, it will have the same merit against the SAC (and may well have **more** merit, because the SAC crystallizes the non-protected predicates that must be separately analyzed). If the motion lacks merit, the expenditure was unwarranted regardless of amendment. Either way, Defendants’ “sunk cost” argument fails under Atkinson, Kolani, and Kyle.

X. THE § 425.16(G) DISCOVERY-STAY ARGUMENT IS MISPLACED

O’Connell Declaration ¶ 12 complains that Plaintiff served additional written discovery and a motion to compel “despite Defendants’ Anti-SLAPP motion pending.” Section 425.16(g) is a **narrow** gatekeeping rule. It stays only “[a]ll discovery proceedings in the action” that relate to the anti-SLAPP motion, and it expressly permits the court to order specified discovery “on noticed motion and for good cause shown.” The California Supreme Court and Court of Appeal have uniformly construed the stay as motion-specific, not case-wide. (Britts v. Superior Court (2006) 145 Cal.App.4th 1112.) Discovery unrelated to the protected activity – including discovery in aid of pleading cures and discovery against non-moving parties – is not stayed. In any event, whether discovery is stayed is not a question presented on this SAC Motion; it belongs in the separately noticed motion to compel. It is cited here only because Defendants invoke it as a “gamesmanship” allegation in their supporting declaration. It is not a ground to deny leave.

XI. JUDICIAL-ECONOMY OFFER: A SINGLE CONSOLIDATED TAC

To further conserve this Court’s and Department 301’s calendar, Plaintiff renews the offer he has made in the companion 802 matter: in lieu of sequential SAC and TAC proceedings, Plaintiff will

1 lodge a **single consolidated Third Amended Complaint** that folds in every curative allegation
2 Plaintiff would otherwise present in both vehicles. A consolidated TAC would:

- 3 1. Supersede the FAC under Foreman & Clark if ordered filed as operative, with the FAC-
4 directed special motion addressed to a superseded pleading and defendants' § 425.16(f) win-
5 dow preserved against the consolidated TAC.
- 6 2. Eliminate the need for any further amendment motion in this pleading cycle.
- 7 3. Present Defendants with a single, clean target for any renewed motion under CCP § 425.16(f),
8 § 430.41(b), or § 435.
- 9 4. Remove at least two future hearings from Department 301's calendar.

10 Plaintiff will lodge the consolidated TAC on whatever timeline the Court directs – including by
11 close of business April 30, 2026, if the Court so orders in this action.

12 **XII. PLAINTIFF'S SAFE-HARBOR NOTICES: STATUTORY, NOT THREATS**

13 Paragraph 8 of the O'Connell Declaration characterizes Plaintiff's April 17 and April 20, 2026
14 emails as threats of "impending professional consequences" including "a negative mark on [De-
15 fendants' counsel's] Bar license." Those emails are **statutorily required safe-harbor notices**, not
16 threats. Defendants' framing inverts the statute.

- 17 • Under **CCP § 128.7(c)(1)**, a party intending to seek sanctions for an unwarranted filing must
18 serve a written safe-harbor notice and provide a twenty-one-day opportunity to withdraw or
19 correct. Failure to serve the safe-harbor notice **defeats** a later § 128.7 motion. (Peake v.
20 Underwood (2014) 227 Cal.App.4th 428, 440–445.) Plaintiff's emails are that notice.
- 21 • Under the **California Rules of Professional Conduct, rule 3.3** (candor toward the tribunal)
22 and **Business & Professions Code § 6086.7, subdivision (a)(2)**, a party with knowledge
23 of a pleading that contains legal contentions not warranted by existing law, or that omits
24 directly adverse controlling authority, may preserve the question for referral. Identifying that
25 preservation to opposing counsel **before** filing is the non-escalatory step, not the escalatory
26 one.
- 27 • Under **CCP § 425.16, subdivision (c)(1)**, a plaintiff prevailing on a frivolous special motion
28 to strike is entitled to mandatory attorney fees and costs.

The correct response to a safe-harbor notice is to withdraw or correct the filing; the incorrect response is to file a declaration complaining that the notice was sent. The Court should not treat compliance with the Legislature’s prescribed safe-harbor procedure as intimidation.

Ad hominem references. Paragraph 13 of the O’Connell Declaration complains about Plaintiff’s spelling of opposing-counsel-adjacent names in email correspondence. Those references have no bearing on the merits of the SAC Motion and are inadmissible on relevance (Evid. Code § 350) and prejudice (Evid. Code § 352) grounds; they are addressed in the separately filed Evidentiary Objections. The Court should not be asked to resolve a leave-to-amend motion on stylistic objections to email salutations.

XIII. EVIDENTIARY OBJECTIONS TO O’CONNELL DECLARATION

Pursuant to Evidence Code §§ 350, 352, 356, 702, and 800, Plaintiff objects to and requests that the Court decline to rely on the following portions of the Declaration of Tyler J. O’Connell (April 23, 2026). The objections and grounds are summarized here; a standalone document titled “**Plaintiff’s Evidentiary Objections to Declaration of Tyler J. O’Connell (801)**” is being lodged concurrently.

¶	Objectionable content	Grounds
3	“Plaintiff’s allegations squarely target Defendants’ litigation conduct”	Legal conclusion (Evid. Code § 702); ultimate issue pending on anti-SLAPP; improper opinion (§ 800)
4	“[E]ntirety of the purported legal theories . . . focus inextricably on Defendants’ protected litigation conduct”	Legal conclusion; ultimate issue; improper opinion
8	Characterization of Plaintiff’s § 128.7(c)(1) safe-harbor emails as threats	Argumentative; legal conclusion; inverts statute

¶	Objectionable content	Grounds
9	“[O]nly 8 days away”	Argumentative; incomplete; omits April 30, 2026 noticed hearing in CGC-25-631802
12	“Gamesmanship” / “despite ... Anti-SLAPP motion pending”	Legal conclusion; incomplete (§ 425.16(g) reaches only motion-related discovery)
13	“Aspersions” paragraph, including the “RAT” spelling reference and Exhibit H	Relevance (Evid. Code § 350); prejudice (§ 352); not probative of any amendment ground
14	“[B]arred as a matter of law”	Legal conclusion; ultimate issue
Footnote 1	Selective exhibit attachment; omits Plaintiff’s meet-and-confer letter and the attached SAC/TAC	Rule of completeness (Evid. Code § 356); misleading record

To the extent the Court relies on any portion of the Declaration, Plaintiff requests the Court also receive (a) Plaintiff’s April 16, 2026 meet-and-confer letter to Porter Scott and (b) Plaintiff’s concurrently served full merits Opposition to the Special Motion to Strike, both already on the docket.

XIV. MERITS REPLY RESERVATION: PRE-EMPTION OF ANTICIPATED STEP-TWO FRAMES

Plaintiff’s **April 27, 2026** coordinated **MFL-SAC** packet in **CGC-25-631802** lodges **Exhibits A-4** and **A-5** and **A-7** as Request for Judicial Notice **items 9, 10, and 12** (and **Exhibit A-6** as **item 11** for coordinated Doctors’ Company / institutional cross-reference; **primary** development in **CGC-25-631801**). The bench cards are **not** a merits brief; they are **RJN companion PDFs** that (a) **pin**

1 causation to the **February 28, 2025** colloquy pp. 291:26–292:7 and the **four-hearing** reliance
2 chain in the TAC, (b) map **five** Modnick non-cures against a **Day-7/8** “**leak-through**” relabel, and
3 (c) supply the **Moradi-Shalal carve-out (21-day** lane; **direct addressee; UCL unlawful** prong)
4 at **Exhibit A-7** with the same paragraph anchors cited in the **concurrently filed REPLY** record.
5 Relief in this section: **None**. The reservation is offered so the Court and defense receive **one** set
6 of pre-numbered PDFs in the **April 27, 2026** filing stack before the **May** anti-SLAPP / demurrer /
7 motion-to-strike sequence.

8 **XV. CONCLUSION AND RELIEF REQUESTED**

9 For the foregoing reasons, Plaintiff respectfully requests that this Court, exercising its discretion
10 under Code of Civil Procedure §§ 473(a)(1) and 576, and consistent with the anti-subversion
11 line (Simmons; Colton; Ellis; Contreras) Plaintiff accepts, the no-categorical-freeze sequencing
12 point in JKC3H8 read with § 425.16(f), the **limited** supporting lane described in Nguyen-Lam,
13 and the controlling California Supreme Court authorities Klopstock, Blank, Trafton, Mesler, and
14 Foreman & Clark, together with Baral, Park, Kimmel, Action Apartment, Moradi-Shalal, Crowley,
15 Mycogen, Lucido, Kwikset, Zhang, and the supporting Court of Appeal authority Howard, Atkinson,
16 Kolani, Kyle, Carlton, and Britts, **enter one** of the following orders, whichever the Court prefers:

- 17 1. **Order A (SAC as lodged)**. Grant Plaintiff’s Motion for Leave to File a Second Amended
18 Complaint as lodged; order the SAC filed as the operative pleading; treat the pending Special
19 Motion to Strike against the FAC as addressed to a superseded pleading (Foreman & Clark
20 Corp. v. Fallon (1971) 3 Cal.3d 875, 884) without stripping anti-SLAPP protection; and
21 expressly preserve Defendants’ right under CCP § 425.16(f) to renew or re-target a special
22 motion against the SAC within sixty days (or on terms the Court deems proper).
- 23 2. **Order B (consolidated TAC – preferred for judicial economy)**. Direct Plaintiff to lodge,
24 on a timeline the Court sets (including by close of business April 30, 2026, in this action if
25 the Court so orders), a single consolidated Third Amended Complaint in lieu of sequential
26 SAC and TAC proceedings; upon lodging, order the consolidated TAC filed as the operative
27 pleading; treat the pending Special Motion to Strike against the FAC as addressed to a super-
28 seded pleading; preserve Defendants’ § 425.16(f) sixty-day renewed-motion right (and later

discretion) to renew or re-target against the consolidated TAC.

3. **Order C (SAC now, TAC on reset calendar).** Grant SAC leave today and set the contingent TAC motion on a regular calendar, with a date certain for the pleading cycle to close; treat the pending Special Motion to Strike against the FAC as addressed to a superseded pleading with § 425.16(f) expressly preserved.

4. **In the alternative**, if the Court has any concern about the notice period, **continue** the hearing for the minimum period necessary to cure that concern under CCP § 1005(b), rather than deny the motion on procedural grounds. Plaintiff consents to any such continuance.

5. **Reserve**, as in all matters before this Court, Plaintiff's rights (a) to seek mandatory attorney fees and costs under CCP § 425.16(c)(1) upon denial of Defendants' Special Motion to Strike; (b) to proceed under CCP §§ 128.5 and 128.7 on completion of the twenty-one-day safe-harbor windows opened on April 17 and April 20, 2026; and (c) to present any further Evid. Code § 356 material required to complete the record against the O'Connell Declaration.

Dated: April 29, 2026

Respectfully submitted,

/s/ Franciscus Dylan Rosario

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Dated: April 29, 2026



/s/ *Franciscus Dylan Rosario*

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CERTIFICATE OF WORD COUNT (CRC 3.1113(F))

The undersigned hereby certifies, pursuant to California Rules of Court, rule 3.1113(f), that the text of this Reply, including footnotes but excluding the caption page, table of contents, table of authorities, signature block, certificate of word count, and proof of service, contains fewer than 7,000 words as counted by the word-processing software used to prepare it (approximately **4,900 words**).

Dated: April 29, 2026

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per

PROOF OF ELECTRONIC SERVICE (CCP § 1010.6; CRC 2.251)

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in pro per in the above-captioned action. My address is 7624 Melody Drive, Rohnert Park, California 94928. I am over the age of 18. I caused the following document to be served on the parties listed below:

PLAINTIFF’S REPLY IN SUPPORT OF MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT, AND OPPOSITION TO DEFENDANTS’ APRIL 23, 2026 OPPOSITION AND DECLARATION (CGC-25-631802)

2. On April 29, 2026, I served the foregoing by electronic service pursuant to Code of Civil Procedure § 1010.6 and California Rules of Court, rule 2.251, addressed as follows:

Party / Role	Counsel	Email
CSAA Insurance Exchange; and Does 1 through 50, inclusive (Defendants)	Chad S. Tapp, Esq. (SBN 214898)	ctapp@porterscott.com
CSAA Insurance Exchange; and Does 1 through 50, inclusive (Defendants)	Tyler J. O’Connell, Esq. (SBN 346673)	toconnell@porterscott.com

Party / Role	Counsel	Email
CSAA Insurance Exchange; and Does 1 through 50, inclusive (Defendants)	Monique Schubert (Legal Assistant)	mschubert@porterscott.com

Service addresses are the electronic service addresses identified by Defendants' counsel on their April 10 and April 23, 2026 filings in this action.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 29, 2026, at Rohnert Park, California.

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per